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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

NOVEMBER 10, 2025

>> CITY CLERK: OKAY.

>> MAYOR ISHII: HELLO, GOOD EVENING, EVERYONE. I'M CALLING TO ORDER THE MONDAY, NOVEMBER 10TH, 2025, BERKELEY CITY COUNCIL MEETING. CLERK, COULD YOU PLEASE START US OFF WITH THE ROLL?

>> CITY CLERK: OKAY, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: HERE.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: PRESENT.

>> CITY CLERK: BARTLETT? COUNCILMEMBER BARTLETT? ROLL CALL.

>> B. BARTLETT: HERE. I CAN'T HEAR YOU GUYS, I WONDER IF IT'S ON MY END. CAN YOU HEAR ME?

>> CITY CLERK: WE CAN HEAR YOU OKAY. TREGUB?

>> I. TREGUB: PRESENT.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: HERE.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: HERE.

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>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: HERE.

>> MAYOR ISHII: HUMBERT?

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: HERE.

>> CITY CLERK: MAYOR ISHII.

>> MAYOR ISHII: HERE. DO YOU NEED TO READ FOR COUNCILMEMBER BARTLETT?

>> CITY CLERK: YES, COUNCILMEMBER BARTLETT IS PARTICIPATING PURSUANT TO THE BROWN ACT UNDER THE EMERGENCY CIRCUMSTANCES JUSTIFICATION. THE OTHER COUNCILMEMBERS ARE PARTICIPATING AT THE POSTED MEETING LOCATION. COUNCILMEMBER BARTLETT HAS NOTIFIED THE COUNCIL OF HIS NEED TO PARTICIPATE REMOTELY. PLEASE DESCRIBE GENERAL CIRCUMSTANCES FOR YOUR NEED, HOWEVER DO NOT DISCLOSE ANY CONFIDENTIAL MEDICAL INFORMATION.

>> B. BARTLETT: THANK YOU. I'M READING THE TRANSCRIPTION BECAUSE I STILL CAN'T HEAR ANYTHING. I WILL RESTART IN A SECOND. I HAVE A FAMILY MEDICAL SITUATION TO ATTEND TO HERE IN THE HOUSE. THANK YOU.

>> CITY CLERK: AND COUNCILMEMBER, PLEASE DISCLOSE IF THERE IS ANYBODY THERE PRESENT WITH YOU WHO IS 18 YEARS OF AGE OR OLDER, AND IF SO, THEIR RELATIONSHIP TO YOU.

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>> B. BARTLETT: NO.

>> CITY CLERK: HE IS READING... OKAY. COUNCILMEMBER BARTLETT WILL PARTICIPATE THROUGH BOTH AUDIO AND VISUAL TECHNOLOGY. FOR THE EMERGENCY CIRCUMSTANCES REQUEST, THE COUNCIL MUST VOTE, MAJORITY VOTE TO ALLOW COUNCILMEMBER BARTLETT TO PARTICIPATE. SO IS THERE A MOTION?

>> I. TREGUB: SO MOVED.

>> CITY CLERK: OKAY. ON THE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: COUNCILMEMBER BARTLETT? ON THE MOTION?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

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>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: THAT'S APPROVED. SO COUNCILMEMBER BARTLETT WILL BE PARTICIPATING REMOTELY.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER BARTLETT, BEFORE YOU RESTART YOUR COMPUTER, DO YOU WANT TO READ THE LAND ACKNOWLEDGMENT. OR WOULD YOU PREFER SOMEONE ELSE DO IT IN YOUR STEAD TONIGHT?

>> B. BARTLETT: I CAN DO IT AS LONG AS YOU CAN HEAR ME.

>> MAYOR ISHII: YES, WE CAN HEAR YOU GREAT.

>> B. BARTLETT: THE CITY OF BERKELEY RECOGNIZES THAT THE COMMUNITY WE LIVE IN WAS BUILT ON THE TERRITORY OF XUČYUN (HUCHIUN (HOOCH-YOON)), THE ANCESTRAL AND UNCEDED LAND OF THE CHOCHENYO (CHO-CHEN-YO)-SPEAKING OHLONE (OH-LOW-NEE) PEOPLE, THE ANCESTORS AND DESCENDANTS OF THE SOVEREIGN VERONA BAND OF ALAMEDA COUNTY. THIS LAND WAS AND CONTINUES TO BE OF GREAT IMPORTANCE TO ALL OF THE OHLONE TRIBES AND DESCENDANTS OF THE VERONA BAND. WE ACKNOWLEDGE AND HONOR THE ORIGINAL INHABITANTS OF BERKELEY, THE DOCUMENTED 5,000-YEAR HISTORY OF A VIBRANT COMMUNITY AT THE WEST BERKELEY SHELLMOUND, AND THE OHLONE PEOPLE WHO CONTINUE TO RESIDE IN THE EAST BAY. WE RECOGNIZE THAT

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BERKELEY'S RESIDENTS HAVE AND CONTINUE TO BENEFIT FROM THE USE AND OCCUPATION OF THIS UNCEDED STOLEN LAND SINCE THE CITY OF BERKELEY'S INCORPORATION IN 1878. AS STEWARDS OF THE LAWS REGULATING THE CITY OF BERKELEY, IT IS NOT ONLY VITAL THAT WE RECOGNIZE THE HISTORY OF THIS LAND, BUT ALSO RECOGNIZE THAT THE OHLONE PEOPLE ARE PRESENT MEMBERS OF BERKELEY AND OTHER EAST BAY COMMUNITIES TODAY. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LISJAN TRIBE AND TO CREATE MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGEMENT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. GO AHEAD AND RESTART YOUR COMPUTER AND HOPEFULLY YOU CAN REJOIN US SOON. I WILL REPORT OUT FROM OUR CLOSED SESSION. ON THE CLAIM OF SIERRA CAMPANA, 6014C2025-0001, THE CITY COUNCIL MET IN CLOSED SESSION AND APPROVED A SETTLEMENT AGREEMENT FOR A TOTAL AMOUNT OF $700,000, $350,000 OF WHICH WILL BE PAID BY THE CITY. USDCND CAL CASE #3:25-CV-01414-EMC, THE CITY COUNCIL AUTHORIZED THE CITY ATTORNEY TO APPEAL THE COURT'S ORDER, EXTENDING THE PRELIMINARY INJUNCTION INITIALLY ISSUED BUT THE COURT IN 2025. ALTHOUGH THERE WAS LISTED A CEREMONIAL ITEM THIS EVENING, IT WILL GET MOVED TO DECEMBER 2ND. WE WON'T HAVE ANY CEREMONIAL ITEMS THIS EVENING. I WILL MOVE NEXT TO THE CITY MANAGER COMMENTS.

>> CITY MANAGER BUDDENHAGEN: THANK YOU, MADAM MAYOR. ONE

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COMMENT, AT THE COUNCIL MEETING OF SEPTEMBER 9TH, I REMOVED AN ITEM PURSUANT TO FLOCK FIXED CAMERAS AND INDICATED WE WOULD DO SOME MORE RESEARCH ON POTENTIAL OTHER VENDORS AND BRING THAT ITEM BACK TO COUNCIL. WE ARE STILL IN THE PROCESS; I JUST WANTED TO UPDATE THE COMMUNITY AND UPDATE YOU. WE ARE STILL IN THE PROCESS OF LOOKING AT OTHER VENDORS. ONCE WE ARE FINISHED WITH THAT PROCESS WE WILL BRING BACK TO COUNCIL OPTIONS FOR CONSIDERATION. THAT WON'T BE UNTIL AFTER THE COUNCIL BREAK. THAT'S ALL, THANKS.

>> MAYOR ISHII: THANK YOU SO MUCH. AND WE HAVE NO COMMENTS FROM OUR CITY AUDITOR TONIGHT AS WELL, OR EITHER. FOR THE NEXT PART OF THE AGENDA IS THE PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> CITY CLERK: IF YOU ARE PARTICIPATING REMOTELY AND YOU WOULD LIKE TO PROVIDE COMMENTS ON NON-AGENDA ITEMS, NOW IS THE TIME TO RAISE YOUR HAND. WE WILL TAKE THE FIRST FIVE ONLINE AFTER WE DO THE FIVE SPEAKERS IN PERSON. THIS IS RIVETING TELEVISION, I CAN TELL. OKAY, THE FIVE NAMES ARE MERYL SEGAL, TREVIS SMITH, MARJORIE ALVORD, KAREN BINS AND LINDA CURRY. COME UP IN ANY ORDER. YOU HAVE ONE MINUTE EACH.

>> MAYOR ISHII: YEP, COME ON UP.

>> GOOD EVENING, MADAM MAYOR, AND CITY COUNCIL MEMBERS. MY NAME IS TREVIS SMITH. MY FAMILY HAS BEEN A HOMEOWNER IN BERKELEY

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SINCE 1947. BUT I'M CURRENTLY HOMELESS. LIVING ON THE STREETS OF BERKELEY. SO I KNOW WHAT IT IS LIKE TO OWN A HOME IN BERKELEY, AS WELL AS BEING HOMELESS. I DON'T KNOW IF THIS IS THE RIGHT PLACE OR NOT, BUT I'M CURIOUS HOW DOES A PERSON USE THE FREE THRONE BATHROOM IN CIVIC PARK AS A HOMELESS PERSON. IS IT POSSIBLE ANYONE CAN HELP ME GET INTO THE WINTER SHELTER THIS MONTH BECAUSE I'M HOMELESS. THANK YOU FOR HEARING ME.

>> MAYOR ISHII: THANK YOU. I WILL ASK MY STAFF CAN HOPEFULLY ANSWER SOME OF YOUR QUESTIONS. UNLESS THE CITY MANAGER? THE CITY MANAGER WILL MEET YOU OVER THERE AND ANSWER YOUR QUESTIONS. THANK YOU. OKAY. MERYL?

>> SO WE OF WEST BERKELEY NEED A FAIR MEETING FOR OUR SAN PABLO AVENUE SPECIFIC PLAN REZONING. AND WE ASK THAT YOU GIVE OUR COMMUNITY A NEW WORK SESSION MEETING BEFORE THE PLAN GETS FINALIZED. SCHEDULED AT A TIME WHEN COMMUNITY MEMBERS, INCLUDING BUSINESS OWNERS, YOU KNOW, WE HEARD FROM THE BUSINESS OWNERS FROM THE OTHER PLANS FOR FOUR HOURS. AND THE BUSINESS OWNERS ON SAN PABLO AVENUE WEREN'T ABLE TO COME. WE WOULD LIKE TO GIVE EVERYONE A CHANCE TO PARTICIPATE. AND I THINK THAT'S ONLY FAIR. AB686 WAS INVOKED SEVERAL TIMES LAST WEEK. IT'S ONLY FAIR THAT THERE'S A FAIR DISCUSSION OF ALL THE WORK THAT ROBERT AND THE CONSULTANTS PUT INTO THAT PLAN. I MEAN, IT'S MASSIVE, SO. THAT'S

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OUR REQUEST.

>> MAYOR ISHII: THANK YOU, MERYL.

>> CAN I CEDE MY MINUTE TO --

>> MAYOR ISHII: YOU WILL HAVE TWO MINUTES.

>> WE HAVE PICTURES. I'M MARJORIE ALVORD WITH THE 350 BERKELEY CLUB. I WANT YOU TO KNOW HOW MUCH WE LOVED PARTICIPATING IN THE BERKELEY SUNDAY EVENT IN SEPTEMBER AT WILLARD PARK. THANK ALL FOR YOUR SUPPORT OF THAT EVENT. AT THE 350 BAY AREA TABLE, WE MADE THIS BEAUTIFUL POSTER WHERE WE INVITED PEOPLE TO CONVEY THEIR GREEN IDEAS FOR A LIVABLE CITY. WE ALSO MADE POSTCARDS AVAILABLE FOR PEOPLE TO SIGN TO TELL THEIR LEADERS "CLIMATE SOLUTIONS FOR A LIVABLE FUTURE ARE MY TOP PRIORITY. PLEASE MAKE IT YOURS." WITH SPACE FOR INDIVIDUAL MESSAGES. NOW WE BELIEVE IT'S CRITICALLY IMPORTANT TO FIGHT THE MYRIAD OF INHUMANE PRACTICES COMING DOWN ON US FROM THE FEDERAL ADMINISTRATION, AS WELL AS THE AFFORDABILITY CRISES AND SO ON. BUT AS WE DO THAT, ATMOSPHERIC CO2 CONTINUES TO INCREASE, ALREADY DANGEROUSLY HIGH AT 425.7 PARTS PER MILLION WHEN 350 PARTS PER MILLION IS THE SAFE LEVEL FOR SUSTAINABLE CLIMATE. WE CAN'T AFFORD TO DEFER CLIMATE ACTION. ALL THOSE THAT CO2 IS INCREASING THE HEAT IMPACTS AND ILLNESSES FROM HEAT ILLNESS AND DROUGHT AND FLOODS AND ATMOSPHERIC RIVERS AND ALL THAT. SO WE BROUGHT TO YOU THE

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POSTCARDS, SOME HAVE COMMENTS, SOME DON'T, FOR YOU TO PERUSE. AND NOW MY COLLEAGUE, LINDA CURRY WOULD LIKE TO TELL YOU ABOUT THE LIVABLE CITY IDEAS. THANK YOU VERY MUCH FOR THIS OPPORTUNITY TO SPEAK. AND THANK YOU FOR YOUR SERVICE TO THE CITY OF BERKELEY.

>> GOOD EVENING, MAYOR. COUNCILMEMBERS. YEAH, I'M LINDA CURRY, I'M A LONG-TIME CLIMATE ACTIVIST IN BERKELEY. ALSO FOUNDER OF TRANSITION BERKELEY, ALTHOUGH I'M SPEAKING ON MY OWN BEHALF TONIGHT. SO PEOPLE ARE REALLY ENTHUSIASTIC ABOUT A CLEAN HEALTHY ENVIRONMENT AND CLEAN WATER AND AIR. SOME OF THE COMMENTS THAT WERE OFFERED WERE PEOPLE WANTED LOTS MORE SOLAR, CAR-FREE STREETS, PLEASE ENFORCE NO GAS LAWN AND LEAF BLOWERS. BUILD MORE PUBLIC EV CHARGERS IN OUR NEIGHBORHOODS. PLEASE MORE NATIVE STREET TREES. REPLACE PG&E WITH PUBLIC UTILITY. THEY WOULD LIKE TO SEE OVER THE COUNTER HEAT PUMP PERMITTING. PLEASE TELL YOUR CITY COUNCIL TO SUPPORT GREEN ENERGY. AND BUS -- MAKING E-BIKES MORE AVAILABLE. ALL SHOULD HAVE A WALK SCORE OF 80 OR ABOVE.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. BUT THANK YOU SO MUCH, I REALLY APPRECIATE IT.

>> THANK YOU FOR YOUR TIME.

>> MAYOR ISHII: WERE YOU GOING TO GIVE US... OKAY. WOULD LOVE TO GET A PICTURE OF THAT POSTER. THANK YOU.

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>> CITY CLERK: OKAY, MOVING TO NON-AGENDA COMMENTS FOR PEOPLE PARTICIPATING ONLINE. THE FIRST SPEAKER IS AIMEE BALDWIN.

>> HI, THANK YOU. I DON'T KNOW IF ANYONE ELSE ONLINE WAS GOING TO CEDE THEIR MINUTES TO ME? DO YOU KNOW? I GUESS, I DON'T KNOW. OKAY, I WILL READ ONE MINUTE. OKAY?

>> CITY CLERK: OKAY.

>> COUNCIL'S REJECTION LAST THURSDAY OF THE COMMUNITY'S REQUEST TO RESCHEDULE A WORK SESSION FOR THE SAN PABLO SPECIFIC PLAN AND REFUSAL OF RECOMMENDATION OF ITS OWN DEPARTMENT'S TWO-YEAR OUTREACH REVEALS OUR COUNCIL'S FALSE AND PERFORMATIVE COMMITMENT -- WE TRY TO REPAIR AND PREVENT BIAS TREATMENT FAVORING HISTORICALLY WEALTHIER COMMUNITIES. THEY DESERVE TO BE HEARD AND AT A TIME WHEN WHOLE COMMUNITIES CAN ATTEND. AND COUNCIL NEEDS TO STOP FAVORING THE WEALTHY CLASS OVER HISTORICALLY DISADVANTAGED AND DISINVESTED COMMUNITIES AND ITS SMALL BUSINESSES. I'M FROM BEAUTIFUL SAN PABLO. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANKS, AIMEE.

>> CITY CLERK: NEXT IS JUDY STROYER. NEVER MIND. GO AHEAD.

>> HELLO, CAN YOU BUMP ME TO THE END OF THIS PUBLIC COMMENT?

>> CITY CLERK: NEXT IS EVE. EVE, YOU SHOULD BE ABLE --

>> CAN YOU HEAR ME?

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>> CITY CLERK: YES.

>> THANK YOU. HI, I WANTED TO SECOND AIMEE'S REQUEST FOR ANOTHER SESSION. TO DISCUSS WEST BERKELEY, SAN PABLO UPZONING PLAN. THE LAST ONE WHEN THE ISSUE EVEN STARTED AT THE CITY COUNCIL MEETING, MOST OF US WEREN'T ABLE TO ATTEND. WE DID NOTICE EARLIER IN THE MEETING THAT THE CITY COUNCIL WAS RIGHTFULLY AND UNDERSTANDABLY GIVING PREFERENTIAL TREATMENT TO PARENTS BECAUSE 7:00 P.M. OR 8:00 P.M. MAKES A BIG DIFFERENCE AND THAT MAKES SENSE. BUT TO WEST BERKELEY RESIDENTS WHETHER PARENTS OR NOT, OR BUSINESS OWNERS OR NOT WHO NEED TO BE AT WORK THE NEXT DAY OUR ONLY CHOICE WAS YOU ARE HERE AT THE 11:00 P.M. OR YOU DON'T GET TO PARTICIPATE. WE WOULD LIKE TO --

>> MAYOR ISHII: THANK YOU.

>> PARTICIPATE, THANK YOU.

>> CITY CLERK: OKAY, AND THE LAST SPEAKER IS TONI.

>> GOOD EVENING. SO FOR ALL THE TALK ABOUT EQUITY, IT WAS NOT IN EVIDENCE THURSDAY NIGHT WHEN YOU SPENT FOUR HOURS LISTENING TO WEALTHIER PEOPLE BUT WHEN IT CAME TO THE SAN PABLO SPECIFIC PLAN, YOU REFUSED OUR REQUEST TO POSTPONE SO THAT WE COULD PARTICIPATE. I DO NOT STAY UP AFTER 11:00 AT NIGHT, AND NEITHER DO BUSINESSPEOPLE, PARENTS, WORKERS, THE DISABLED AND OTHER ELDERLY PEOPLE. SO TO BE FAIR, WE WOULD LIKE YOU TO RESCHEDULE

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THE WORKSHOP ON THE WEST BERKELEY SAN PABLO SPECIFIC PLAN AND HOLD IT AT THE 6:00 HOUR. IT IS A MATTER OF R-E-S-P-E-C-T. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANKS, TONI.

>> CITY CLERK: OKAY, THAT'S IT.

>> MAYOR ISHII: THAT WAS OUR FINAL. OKAY. ALL RIGHT, THANK YOU VERY MUCH. ARE THERE ANY UNIONS FOR PUBLIC COMMENT BY EMPLOYEE UNIONS? NONE IN PERSON. IS THERE ANYONE ONLINE?

>> CITY CLERK: NOPE, NOBODY HAS THEIR HAND RAISED.

>> MAYOR ISHII: OKAY. ALL RIGHT; I WILL MOVE US ALONG THEN TO THE CONSENT CALENDAR. SORRY, MY PARLIAMENTARIAN IS NOW ON. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU. I WISH TO CONTRIBUTE $250 FROM MY D-13 ACCOUNT TOWARDS ITEM #6. THE 15TH ANNUAL M.L.K. JR. CELEBRATION. AND ON ITEM #8, I WANT TO THANK MY CO-SPONSORS WHICH, PER MY SUPPLEMENTAL ITEM INCLUDES COUNCILMEMBERS HUMBERT AND TAPLIN. AS WELL AS COUNCILMEMBER LUNAPARRA AS MY ORIGINAL CO-SPONSOR. THIS IS A RESOLUTION SUPPORTING THE BAY AREA AIR DISTRICT ZERO EMISSION BUILDING APPLIANCE RULES. I'M VERY PROUD TO HAVE BEEN ONE OF COUNTLESS INDIVIDUALS RESIDING IN THE BAY AREA DISTRICT JURISDICTION THAT LED TO A UNANIMOUS VOTE TO PUT FORTH THESE

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RULES SEVERAL YEARS AGO. THIS IS A TIME, AS YOU'VE HEARD FROM A COUPLE PREVIOUS SPEAKERS FOR CLIMATE LEADERSHIP. THE TIME IS NOW. IT IS VERY IMPORTANT THAT THESE RULES CONTINUE TO BE IN PLACE. AND AT THE SAME TIME THAT WE ALSO GIVE THE AIR DISTRICT THE FLEXIBILITY AND SUPPORT THEIR EFFORT TO ENSURE THAT CLIMATE EQUITY IS SOMETHING THAT IS ACCESSIBLE TO ALL, INCLUDING LOWER INCOME HOMEOWNERS AND RENTERS, WHICH IS WHAT THIS RESOLUTION PURPORTS TO DO. I JUST WANT TO THANK EVERYONE AND THANK MY COLLEAGUES FOR CONSIDERING YOUR SUPPORT FOR THIS ITEM.

>> MAYOR ISHII: THANK YOU VERY MUCH. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANTED TO THANK YOU, MADAM MAYOR, FOR ADDING ME AS A CO-SPONSOR FOR THE M.L.K. JR. CELEBRATION AND I WOULD LIKE TO CONTRIBUTE $500 TO SUPPORT THAT. AS TO ITEM 7 -- NO, EXCUSE ME. NUMBER 8 THAT COUNCILMEMBER TREGUB JUST ADDRESSED, I WANT TO THANK HIM FOR ADDING ME AS A CO-SPONSOR ON THIS VERY MERITORIOUS ITEM AND I JOIN IN HIS COMMENTS. THANK YOU, THAT'S ALL I HAVE.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. I WOULD LIKE TO CONTRIBUTE $250 FROM OUR DISTRICT 6 ACCOUNT FOR ITEM 6 FOR THE M.L.K. JR. CELEBRATION, THAT'S MY ONLY COMMENT. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER LUNAPARRA?

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>> C. LUNAPARRA: THANK YOU. I WOULD LIKE TO DONATE $200 TO ITEM 6 AND THANK COUNCILMEMBER TREGUB FOR THE RESOLUTION FOR THE EMISSION RULES. THANKS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: I WOULD LIKE TO CONTRIBUTE $500 TO ITEM 6 AND LIKEWISE THANK COUNCILMEMBER TREGUB.

>> CITY CLERK: DID YOU SAY $500?

>> T. TAPLIN: $500.

>> MAYOR ISHII: OKAY, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: I WOULD ALSO LIKE TO CONTRIBUTE $250 FOR ITEM 6, CELEBRATING MARTIN LUTHER KING JUNIOR DAY. AND I ALSO, WHY NOT, THANK COUNCILMEMBER TREGUB FOR THE RESOLUTION. [LAUGHTER] I GOT TO GET IN ON THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: YOU'LL NEVER GUESS WHAT I'M GOING TO SAY. I'M ACTUALLY NOT GOING TO THANK IGOR, BUT -- [LAUGHTER] I'M GOING TO DONATE $250 TO ITEM 6.

>> MAYOR ISHII: OKAY. THANK YOU. OH, COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: SORRY, I REALIZE I HAD ACTUALLY ALREADY DONATED AS A CO-SPONSOR OF THE ITEM. SORRY.

>> MAYOR ISHII: YOU WERE JUST WANTING TO MAKE SURE WE KNEW. VERY GOOD. I'M REALLY HONORED TO BE THE AUTHOR OF THE 15TH ANNUAL

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MARTIN LUTHER KING JUNIOR BREAKFAST CELEBRATION. THIS IS GOING ON 15 YEARS NOW, AND I'M ACTUALLY THE THIRD MAYOR TO CHAMPION THIS IMPORTANT COMMUNITY. NOT BECAUSE OTHERS DIDN'T BUT BECAUSE THEY CONTINUED TO DO IT THROUGHOUT THEIR TERM, JUST TO CLARIFY. THIS IMPORTANT COMMUNITY-BUILDING EVENT CELEBRATES LIFETIME ACHIEVEMENT AND NEXT GENERATION OF LEADERS IN THE SPIRIT OF DR. KING. BELOVED COMMUNITY BE THE LIGHT IS THE THEME. PLEASE JOIN ME IN ALLOCATING, YOU ALREADY DID. SO THANK YOU SO MUCH FOR ALLOCATING FROM YOUR OFFICE DISCRETIONARY ACCOUNTS. I ALSO WANT TO TAKE A QUICK MOMENT TO THANK DR. P. BEATTIE FOR CONTINUING TO SERVE ON THE U.C. BERKELEY FOUNDATION BOARD OF TRUSTEES.

>> COUNCILMEMBER BARTLETT? DID YOU HAVE ANY COMMENTS?

>> B. BARTLETT: I WAS JUST GOING TO AFFIRM, I'M THANKFUL TO YOU FOR DOING THE M.L.K. BREAKFAST ITEM AND MAKE SURE MY $250 IS REGISTERED. AND ALSO TO JOIN THE CHORUS OF THANKS TO COUNCILMEMBER TREGUB FOR BRINGING EQUITY INTO THE EMISSIONS. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH, COUNCILMEMBER. SO NOW I WILL CLOSE COUNCIL COMMENTS AND OPEN PUBLIC COMMENTS ON OUR CONSENT CALENDAR. ARE THERE ANY COMMENTS ON OUR CONSENT CALENDAR? INFORMATION ITEMS ONLY? THANK YOU. NO NEED TO RUN, IT'S OKAY.

>> GOOD EVENING, MAYOR, AND COUNCILMEMBERS. I'M LEWIS AIMS,

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RESIDENT OF CENTRAL BERKELEY AND CHAIR OF THE BERKELEY CLIMATE CRISIS COMMITTEE. I'M SPEAKING ON BEHALF OF THE 350 BERKELEY HUB TO SUPPORT BAY AREA DISTRICT BUILDING APPLIANCE RULES. WE SUPPORT THIS TO COMBAT CLIMATE CRISIS. IT ACCOUNTS FOR A THIRD OF ALL GREENHOUSE GASES IN BERKELEY. FOR PEOPLE WHO SIGNED THE POSTCARDS WE APPLAUD THE CITY'S LEADERSHIP BY APPROVING THIS RESOLUTION. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. NEXT SPEAKER?

>> HELLO, COUNCILMEMBERS, MAYOR. MY NAME IS SAM FISHMAN, I'M WITH SPUR, THE PUBLIC POLICY NONPROFIT IN THE BAY AREA. I WANT TO TAKE A FEW SECONDS TO THANK YOU VERY MUCH FOR THIS RESOLUTION SUPPORTING THE AIR DISTRICT RULES AND TO THANK COUNCILMEMBER TREGUB FOR PUTTING THIS FORWARD. THESE RULES HAVE BEEN IN THE MAKING FOR MANY YEARS NOW. AND ARE REALLY GOING TO BE TRANSFORMATIVE FOR THE BAY AREA. THE RESOLUTION SUPPORTS A PROCESS THAT'S HAPPENING RIGHT NOW TO ENSURE EQUITY, FLEXIBILITY IN THE RULES. BUT WE DO NEED CITIES TO SHOW UP AND SHOW THEIR SUPPORT, WE ARE IN AN ERA WHERE THE ENVIRONMENT IS AT RISK OF POLITICAL ROLL BACK. THIS IS IMPORTANT, THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> I'M TOM GRAYLY, I HAVE BEEN A RESIDENT OF BERKELEY FOR ALMOST 60 YEARS NOW. AND I AM THE OWNER OF AN ALL ELECTRIC HOME NOW AND

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I REALLY APPRECIATE IT. SO I WOULD LIKE COUNCILMEMBER TREGUB'S RESOLUTION, I THINK IT'S ABSOLUTELY PERFECT. I HAVE A VERY HEALTHY SAFE HOME. I ALSO WORK WITH A VARIETY OF OTHER GROUPS, CITIZENS CLIMATE LOBBY BERKELEY, ELECTRIFICATION WORKING GROUP. SO WE GREATLY SUPPORT THIS AND WE REALLY THANK YOU VERY, VERY MUCH FOR SUPPORTING THIS. THANK YOU.

>> MAYOR ISHII: THANK YOU VERY MUCH. [APPLAUSE]

>> MAYOR ISHII: ANYONE ELSE HAVE COMMENT ON OUR CONSENT CALENDAR OR INFORMATION ITEMS? PERHAPS ONLINE?

>> CITY CLERK: OKAY. FIRST SPEAKER WE HAVE IS ANN PERNICK.

>> MAYOR ISHII AND COUNCIL, THANK YOU FOR THE OPPORTUNITY TO SPEAK TONIGHT. I'M ANNE PERNICK WITH SAFE CITIES; WE ARE IN SUPPORT OF AIR DISTRICT AND RESOLUTION BY THE CITY COUNCIL TO SUPPORT THOSE RULES. BERKELEY IS A LEADER IN YOUR OWN POLICIES TO CUT AIR AND CLIMATE POLLUTION FROM BUILDINGS, PROTECTING YOUR NEIGHBORHOODS AND THE PLANET. SO YOUR VOICE IS ESPECIALLY IMPORTANT IN THIS DISCUSSION. WE APPRECIATE YOU SPEAKING UP FOR THESE CRITICAL RULES. IT WILL PHASE OUT THE MOST POLLUTING FURNACES AND WATER HEATERS AND REPLACE WITH ZERO EMISSION ALTERNATIVES. THIS IS IMPORTANT FOR HEALTH SAFETY AND QUALITY OF LIFE FOR ALL COMMUNITIES IN THE AIR DISTRICT. IT'S FAILING TO MEET STANDARDS FOR HARMFUL POLLUTANTS. AND THESE ARE THE LARGEST

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SOURCES OF LOCAL POLLUTION, LEADING TO ASTHMA ATTACKS, PREMATURE DEATHS AND NEARLY $900 MILLION IN HEALTH-RELATED COSTS.

>> MAYOR ISHII: I'M SORRY, YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT UP IS JEFF WHITE. JEFF, YOU SHOULD BE ABLE TO UNMUTE.

>> DO YOU HEAR ME?

>> CITY CLERK: YES.

>> I ALSO SUPPORT THE RESOLUTION TO CONVERT FOSSIL FUEL FURNACES AND HEATERS AND SO ONTO CLEAN ENERGY DEVICES. I AM REQUESTING HOWEVER THAT POSSIBLY THE COUNCIL COULD LOBBY THE ORGANIZATION TO ONLY REQUIRE NEW HOMEOWNERS TO CONVERT FOSSIL FUEL FURNACES AND HOT WATER HEATERS TO CLEAN ENERGY DEVICES. IN THAT, TYPICALLY THE UPFRONT COST FOR A HEAT PUMP FOR INSTANCE IS OFTEN DOUBLE WHAT IT IS FOR A NATURAL GAS FURNACE AND FOR CASH-STRAPPED ELDERLY PEOPLE, THAT'S A BIG COST. ACCORDING TO RMI MODEL, MR. TREGUB REFERENCED IN AN EMAIL TO ME, IT WOULD COST LIKE $5400 FOR ME TO GET --

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THANK YOU. THAT IS ALL. NO MORE SPEAKERS.

>> MAYOR ISHII: OKAY, THANK YOU ALL VERY MUCH FOR YOUR COMMENTS. AND IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR?

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>> SO MOVED.

>> I. TREGUB: SECOND.

>> MAYOR ISHII: WE NEED TO TAKE THE ROLL SINCE COUNCILMEMBER BARTLETT IS ONLINE.

>> CITY CLERK: WHO WAS THE SECONDER? TREGUB. OKAY. OKAY, ON THE CONSENT CALENDAR, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

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>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: WE BLEW THROUGH CONSENT. WE ARE NOW MOVING ONTO THE ACTION CALENDAR. SO I'M GOING TO ASK THAT FOLKS WHO ARE PRESENTING HERE FOR ITEM #9, ADOPTION OF THE 2025 CALIFORNIA FIRE CODE WITH LOCAL AMENDMENTS COME ON FORWARD. THANK YOU.

>> GOOD EVENING, MAYOR, AND COUNCIL. WE ARE HERE TO PRESENT FIRST THE FIRE CODE UPDATE AND ADOPTION. TO DO THAT I HAVE FIRE MARSHAL DREW WHITE WITH ME. HE WILL GO AHEAD AND TAKE THIS FIRST PRESENTATION. AFTER THE FIRST PRESENTATION WE WILL PAUSE AND THEN WE HAVE A SEPARATE PRESENTATION FOR THE WUI CODE ADOPTION.

>> THANK YOU AND GOOD EVENING. TONIGHT WE ARE DISCUSSING THE FIRE CODE ADOPTION. THIS IS SOMETHING THAT HAPPENS EVERY THREE YEARS. A NEW FIRE CODE COMES OUT. THE COUNCIL INTRODUCES FIRE CODE; EACH STATE ADOPTS THEIR OWN VERSION. IN CALIFORNIA WE HAVE THE CALIFORNIA STATE FIRE CODE. AND ONCE WE ADOPT THAT CODE, WHICH WILL BE IN JANUARY, IT WILL GO INTO EFFECT AND GOES INTO STATE LAW AND IT'S SOMETHING WE MUST FOLLOW. IN ADDITION TO ADOPTING THE STATE CODE WE ALSO ADOPT LOCAL MODIFICATIONS, AND WE ALSO CARRY OVER EXISTING ORDINANCES AND MODIFICATIONS FROM PREVIOUS CODE CYCLES. SOMETHING NEW THIS YEAR IN THE FIRE CODE ADOPTION IS CHAPTER 49 OF THE CALIFORNIA FIRE CODE USED TO

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ADDRESS WILDLAND FIRES. IN ADDITION 7A OF THE CALIFORNIA BUILDING CODE USED TO ADOPT HOME HARDENING, CHIEF ARNOLD WILL TALK ABOUT THAT WHEN WILDLAND IS UP. THIS YEAR THEY REMOVED BOTH OF THOSE CHAPTERS FROM THEIR RESPECTIVE CODES AND CREATED A WILDLIFE URBAN INTERFACE CODE THAT STANDS ALONE. CALIFORNIA FIRE CODE PROVIDES MINIMUM STANDARDS FOR SAFETY. THE LOCAL JURISDICTIONS MUST ENFORCE; IT'S OUR JOB TO FOLLOW IT. THIS INCLUDES STATE MANDATED FIRE INSPECTIONS FOR A NUMBER OF DIFFERENT OCCUPANCIES. FOR EXAMPLE, ASSEMBLY AREAS, SCHOOLS, HIGH RISES, HAZARDOUS MATERIALS, FACILITIES AND CERTAIN TYPES OF RESIDENTIAL STRUCTURES. I ACTUALLY HAVE TO SEND A REPORT TO THE STATE FIRE MARSHAL EVERY YEAR TO LET HIM KNOW WE COMPLETED OUR STATE MANDATED FIRE INSPECTIONS. GOD BLESS YOU. ADDITIONALLY DURING FIRE CODE ADOPTION, THIS YEAR, THE LAST CODE WE ARE STILL UNDER IS THE 2022 CODE, THE 2025 CODE GOES ACTUALLY INTO EFFECT IN 2026. WHICH CAN BE A LITTLE CONFUSING. BUT ONCE THE CODE GOES INTO EFFECT, IT GETS ADOPTED AND WE START THAT PROCESS TONIGHT. AND IT BECOMES PART OF THE BERKELEY MUNICIPAL CODE. WHEN WE ARE ABLE TO ENFORCE OUR CODE WE ADOPTED THE STATE FIRE CODE INTO BERKELEY'S MUNICIPAL CODE AND THAT'S WHAT WE USE TO ENFORCE THESE THINGS. IN ADDITION THIS YEAR A FEW CHANGES. THE STATE CODE ADDED SOME OPERATIONAL PERMITS. AND WHEN THEY DO THAT, WE

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DECIDE TO ADOPT THEM AS WELL. SO THIS YEAR SOME OF THE NEW ONES THAT CAME ACROSS IN THE STATE FIRE CODE WERE INSPECTION REGULATION OF INDOOR PLANT CULTIVATION, MOBILE FOOD PREPARATION VEHICLES, IE FOOD TRUCKS. TEMPORARY HEATING OR TENTS FOR FESTIVALS AND TEMPORARY HEATING FOR CONSTRUCTION SITES. WE ALSO HAVE A NUMBER OF LOCAL AMENDMENTS THAT WE ARE ADOPTING AS WELL. THOSE ARE THINGS WHERE WE HAVE THE ABILITY TO BE MORE STRICT THAN THE FIRE CODE IN CERTAIN INSTANCES BUT WE CANNOT BE LESS STRICT. SOME OF THE AMENDMENTS THAT WE ARE ADOPTING LOCALLY THIS YEAR, I WILL READ THIS OFF THE SCREEN CLOSER, IT'S PRETTY BRIGHT UP THERE. A LOT HAVE TO DO WITH ADMINISTRATIVE, CHAPTER 1 OF THE FIRE CODE. AND HAVE TO DO WITH THE BERKELEY BUILDING CODE AND HOME HARDENING, CHIEF ARNOLD WILL TALK ABOUT THE WUI CODE CHANGES. FOR CHAPTER 9 THAT ADDRESSES FIRE ALARMS AND SPRINKLER SYSTEMS. WE MADE SOME CHANGES TAKING AWAY, THERE WAS SOMETHING THAT SAID ALL NEW ONE AND TWO FAMILY DWELLINGS DIDN'T NEED TO INSTALL A CERTAIN TYPE OF ALARM. WE MADE A CHANGE THAT SIMPLY SAYS WE WANT YOU TO ADD A VISUAL INDICATOR, NOT JUST AN AUDIBLE ALARM. THAT IS NOT ONLY FOR ANYBODY ON THE STREET CAN SEE THAT THE ALARM IS GOING OFF, IT ALSO ADDRESSES ANY A.D.A. ISSUES AND MAKES IT EASIER FOR OUR RESPONDING UNITS TO SEE FROM A DISTANCE AS THEY ARE APPROACHING. SO NOT A BIG CHANGE AT ALL. IT'S ONLY

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FOR NEW SYSTEMS. WE AREN'T MAKING PEOPLE GO BACK AND SPEND MONEY. CHAPTER 9 ALSO REQUIRES THAT PROPERTY OWNERS WITH FIRE ALARM SYSTEMS NOW PROVIDE A UL CERTIFICATE. IT'S COMMON IN MOST CITIES WHEN YOU INSTALL A NEW FIRE ALARM, THE UL LABORATORY NEEDS TO INSPECT AND CERTIFY IT UNDER NFA72. IN BERKELEY WE HADN'T BEEN REQUIRING CONTRACTORS TO PROVIDE US WITH THAT DOCUMENTATION AT THE TIME OF INSPECTION. WE JUST MADE THE CHANGE SAYING TO THE CONTRACTORS YOU MUST PROVIDE THE PAPERWORK FROM THE UL SAYING THEY CERTIFY THE SYSTEM. JUST A BOOKKEEPING ITEM FOR US TO MAKE SURE IT'S A SYSTEM THAT MEETS ALL THE MINIMUM REQUIREMENTS. SECOND TO LAST, WE REMOVED APPENDIX L. WE USED TO HAVE SOMETHING CALLED FIREFIGHTER AIR REPLENISHMENT SYSTEMS. WE STILL HAVE IN A FEW HIGH RISES IN BERKELEY. FIREFIGHTERS CAN ACTUALLY REFILL THEIR AIR BOTTLES THE HIGHER UP THEY GO INSTEAD OF HAVING TO CARRY THEM UP. ONE REASON WE ELIMINATING IT, WE ARE NO LONGER GOING TO BE INSTALLING THESE SYSTEMS IN NEW BUILDINGS BECAUSE THE CODE HAS COME UP WITH A FIRE ACCESS SAFETY ELEVATOR. TYPICALLY, OR HISTORICALLY FIREFIGHTERS DID NOT TAKE ELEVATORS BECAUSE IT WAS UNKNOWN WHERE THEY WOULD OPEN. AND UNFORTUNATELY THERE WAS A TRAGEDY MANY YEARS AGO WHERE AN ELEVATOR OPENED ON THE FIRE FLOOR AND MANY FIREFIGHTERS WERE KILLED IN PHILADELPHIA. THEY MADE THESE CHANGES TO THE AIR SYSTEMS BUT

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FOUND THEY WEREN'T SUSTAINABLE OR MAINTAINABLE. SO THEY ADDED THIS TO THE BUILDING CODE, THIS NEW FIRE ACCESS SAFETY ELEVATOR. AND WE ARE GOING TO START ADDING THOSE TO ANY BUILDING ABOVE FOUR STORIES IN BERKELEY. THAT'S ELIMINATING THE NEED FOR US TO HAVE THOSE AIR FILLING SYSTEMS. LASTLY, WE ARE ADOPTING APPENDIX O, WHICH THERE IS A NEW THING CALLED VALET TRASH SERVICE WHICH IS COMING ALONG IN A LOT OF PLACES WITH CENTRAL CORRIDORS, YOU PAY SOMEONE TO PUT YOUR TRASH IN THE HALLWAY AND SOMEONE TAKES IT TO YOU SO YOU DON'T HAVE TO TAKE IT TO A DUMPSTER OR TRASH CHUTE. WE ARE APPROVING APPENDIX O WITHIN R-2 OCCUPANCIES. FOR OUR TIMELINE TONIGHT IS OBVIOUSLY OUR FIRST READING. WE ARE SCHEDULING THE PUBLIC HEARING AND SECOND READING FOR DECEMBER 2ND. FINDINGS OF FACT ORDINANCE, ADOPT A RESOLUTION. A FEE SCHEDULE WHICH WAS ADOPTED BACK IN JULY. SOME OF THE NEW OPERATIONAL PERMITS CARRY THOSE SAME FEES. WE ARE ONLY ADDRESSING THAT. NOT BECAUSE THE FEES WENT UP. WE ADOPTED THAT IN JULY AND THOSE FEES HAVEN'T CHANGED BUT THEY ADDED SOME PERMITS TO THE LIST THAT ARE GOING TO BE CHARGEABLE AND WE ARE JUST ADOPTING THE PERMITS. WE AREN'T CHANGING THE FEES OR FEE SCHEDULE, JUST TO BE CLEAR ON THAT. FIRE CODE ORDINANCE, ADOPT FIRST READING, SECOND READING HOPEFULLY DECEMBER 2ND AND THIS WILL GO INTO EFFECT.

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>> TRYING TO KEEP IT SHORT AND SWEET, THAT'S THE END OF OUR PRESENTATION, WOULD LOVE TO ANSWER ANY QUESTIONS YOU MAY HAVE.

>> MAYOR ISHII: ANY QUESTIONS FROM COUNCILMEMBERS? STARTING WITH COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU SO MUCH FOR THE PRESENTATION. JUST ONE QUESTION ON APPENDIX L. IT SAYS LOCAL AMENDMENTS ARE SUPPOSED TO BE MORE STRICT, BUT CAN'T BE LESS. IS THE STATE BASICALLY DOING AWAY WITH THE AIR REPLENISHMENT SYSTEM, AND SO IT'S NO LONGER LANGUAGE THAT'S NECESSARY?

>> NO, THE STATE IS NOT DOING AWAY WITH IT, WE IN BERKELEY ARE JUST NO LONGER GOING TO BE INSTALLING THEM ANYMORE, SO WE DON'T FEEL THE NEED TO HAVE AN ORDINANCE TO DISCUSS THAT. BECAUSE IT'S NO LONGER GOING TO BE A COST TO US.

>> THERE ARE SOME APPENDIXES THAT ARE OPTIONAL FOR LOCAL JURISDICTIONS TO ADOPT. THAT WAS ONE OF THEM.

>> I. TREGUB: THANK YOU FOR CLARIFYING.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES, THANK YOU VERY MUCH FOR YOUR PRESENTATION. YOU KNOW, SO I'M LOOKING AT THIS FROM A LENS OF OBVIOUSLY FIRE SAFETY. BUT I ALSO, YOU KNOW, I'VE BEEN ONE OF THE VOICES ON THIS COUNCIL ABOUT THE COST OF HOUSING. SO I KNOW THAT YOU ARE SPEAKING TO THAT. YOU SAID THE FIRE ALARMS THAT YOU ARE NOW

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GOING TO REQUIRE FOR ONE-AND TWO-FAMILY DWELLINGS YOU SAID IT WILL INCLUDE A VISUAL SYSTEM. IT DOESN'T SOUND MUCH MORE EXPENSIVE THAN THE EXISTING SYSTEM. CAN YOU SPEAK TO THE PRICE DIFFERENCE?

>> I CAN'T SPEAK TO IT SPECIFICALLY, BUT GENERALLY SPEAKING, ESPECIALLY FOR A ONE OR TWO FAMILY RESIDENT IT'S A SINGLE STROBE LIGHT. IT'S VERY SMALL.

>> R. KESARWANI: I WASN'T THAT CONCERNED ABOUT THAT ONE BUT I WANTED TO ASK. I'M NOT AS FAMILIAR WITH THESE SYSTEMS.

>> EXTERIOR OF THE BUILDING YOU COULD SEE THE ALARM IS GOING OFF AND NOT JUST HEARING IT.

>> R. KESARWANI: THE ALARM IS STILL INSTALLED INSIDE, CORRECT? BUT BECAUSE OF THE STROBE LIGHT YOU ARE ABLE TO SEE IT FLASHING THROUGH WINDOWS.

>> THEY HAVE HORN STROBES ALREADY INSTALLED INSIDE. WE ARE JUST MAKING SURE THAT LEVEL OF ALARM GOES INTO ONE AND TWO FAMILY DWELLINGS AS WELL AS EVERYWHERE ELSE. FOR EXAMPLE, OVER YOUR LEFT SHOULDER YOU CAN SEE A HORN STROBE THAT IS RED, IT HAS THE SINGLE STROBE, WE ALREADY INSTALL THOSE BUT IN A SINGLE AND TWO FAMILY DWELLING WE TYPICALLY DID NOT. NOW WHEN YOU PUT AN ALARM IN THOSE DWELLINGS, IT WILL HAVE TO HAVE ONE OF THOSE STROBE LIGHTS AS PART OF THE SYSTEM.

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>> R. KESARWANI: AT WHAT POINT IS A HOMEOWNER GOING TO DO THAT? WHEN THEY ARE APPLYING FOR A PERMIT FOR NEW CONSTRUCTION OR A REMODEL? WHAT WOULD TRIGGER THE CITY SAYING YOU NEED THAT?

>> A FEW THINGS. NEW CONSTRUCTION, YES. THAT WILL BE PART OF NEW CONSTRUCTION. FOR A REMODEL, IT DEPENDS ON THE SIZE OF THE REMODEL AND AMOUNT OF THE HOUSE. FOR THE MOST PART REMODEL OF THE HOUSE IF IT STAYS THE SAME OCCUPANCY CLASS WILL NOT TRIGGER THE CHANGE. AS LONG AS YOU LEAVE TWO WALLS UP AND CERTAIN AMOUNT OF SQUARE FOOTAGE, IT WOULD NOT TRIGGER THIS.

>> R. KESARWANI: CHIEF, YOU ARE WELCOME TO ADD IN.

>> LET ME CLARIFY.

>> R. KESARWANI: OKAY.

>> SO INSTALLING THE ALARM IS THE FIRE CODE ALREADY AND AN ORDINANCE FOR US, WE ARE JUST ADDING THE LIGHT. THAT'S THE ONLY THING WE ARE ADDING.

>> R. KESARWANI: THAT'S HELPFUL. THAT'S WHAT IT WOULD LOOK LIKE, THAT TYPE OF LIGHT. THEN MY REAL SORT OF QUESTION AND WHERE I'M NOT FULLY FOLLOWING, OBVIOUSLY YOU DESCRIBED THIS TRAGEDY IN PHILADELPHIA WITH THE ELEVATOR. THIS AIR-FILLING SYSTEM, YOU SAID WE ARE GETTING RID OF THAT. AND HAVING WHAT SOUNDED TO ME LIKE A NEW REQUIREMENT FOR A FIRE ACCESS SAFETY ELEVATOR FOR BUILDINGS THAT EXCEED FOUR STORIES, YOU ARE SAYING. SO CAN YOU

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JUST FIRST EXPLAIN IN A LITTLE MORE DETAIL, WHAT WAS THE AIR FILLING SYSTEM? IS THAT WHAT THE STATE IS SAYING WE CAN DO? FIRST IF YOU CAN WALK THROUGH THE AIR FILLING SYSTEM, IF I HAVE THAT RIGHT.

>> AIR FILLING SYSTEMS WERE ONLY PLACED IN HIGH RISES, ANYTHING HIGHER THAN 75 FEET TALLER THAN THE LOWEST FIRE DEPARTMENT ACCESS. EIGHT STORY BUILDING OR HIGHER. THEY ARE ONLY INSTALLED EVERY THIRD FLOOR BEGINNING WITH THE THIRD FLOOR. IF YOU WERE ON THE 21ST FLOOR YOU WOULD BE ABLE TO REFILL YOUR AIR BOTTLES FROM A LOCKED CLOSET WITH A CASCADE SYSTEM. YOU CAN TAKE THE AIR BOTTLE OFF, PUT IT IN THE SYSTEM AND LOCK IT IN, IT HAD A PLUMBED LINE. AND AN AIR COMPRESSOR, LARGE TRUCK THAT WOULD FEED THAT SYSTEM AND PRESSURIZE YOUR BOTTLE ON THE 21ST FLOOR. THIS PREVENTED YOU FROM HAVING TO CARRY SPARE BOTTLES FROM WHAT YOU WERE WEARING. ELIMINATE SOME OF THE WEIGHT. A FIREFIGHTER EQUIPPED TO FIGHT A HIGH RISE FIRE USED TO HAVE TO TAKE THE STAIRS, ELEVATORS RECALLED TO THE LOBBY. THEY WERE UNSAFE AND YOU DIDN'T KNOW WHERE THEY WOULD OPEN. WE WERE HAVING TO CARRY OVER 110 POUNDS OF GEAR UP 21 FLIGHTS OF STAIRS AND THEN FIGHT THE FIRE. IT WAS BECOMING VERY, VERY CUMBERSOME.

>> R. KESARWANI: THAT'S HELPFUL. THAT CLARIFIES IT. NOW WE ARE GOING TO FOR NEW BUILDINGS MOVING FORWARD WITH THE ADOPTION, WE

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WILL ELIMINATE THE AIR FILLING SYSTEMS AND WHAT ARE WE DOING INSTEAD?

>> ADDING A FIRE SAFETY ELEVATOR.

>> R. KESARWANI: OKAY, OH, GIVE YOU A SECOND.

>> THAT'S GOING TO BE THE NEW STATE REQUIREMENT IS MY UNDERSTANDING.

>> R. KESARWANI: THIS IS NOT A DISCRETIONARY CHANGE?

>> NO.

>> R. KESARWANI: OKAY, THAT'S WHAT I WANTED TO UNDERSTAND BETTER. WE ARE ALWAYS TOLD ELEVATORS ARE COSTLY. WE SEE DEVELOPMENTS THAT SOMETIMES ONLY DO THREE OR FOUR STORIES SO THEY CAN AVOID AN ELEVATOR, SO THAT'S WHY I WANTED TO UNDERSTAND. THAT MAKES SENSE THEN. YOU ARE SAYING THIS IS THE NEW STATE REQUIREMENT TO HAVE A FIRE ACCESS SAFETY ELEVATOR FOR BUILDINGS THAT ARE TALLER THAN FOUR?

>> RIGHT. THEY ARE GOING TO HAVE AN ELEVATOR ANYWAY. THAT ISN'T GOING TO CHANGE. TYPICALLY THIS ONLY HAPPENS WHERE THERE'S MORE THAN ONE ELEVATOR AND ONE WILL BE DESIGNATED AS THAT ELEVATOR. IT JUST HAS AN INDEPENDENT CONTROL SYSTEM ON AN INDEPENDENT POWER SYSTEM THAT WILL ALLOW MORE CONTROL FROM THE FIRE DEPARTMENT TO AVOID IT OPENING ON THE WRONG FLOOR AND THINGS LIKE THAT. IT'S JUST A LOT SAFER.

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>> R. KESARWANI: GOT IT. THAT'S EXTREMELY HELPFUL. THANK YOU FOR THE CLARIFICATION, I DON'T HAVE ANY FURTHER QUESTIONS.

>> MAYOR ISHII: OTHER QUESTIONS FROM COUNCILMEMBERS? I'M CURIOUS IF YOU COULD SPEAK TO HOW WE ARE UPDATING RESIDENTS AND BUSINESSES ON THESE NEW CODES?

>> AS FAR AS GETTING THE NEWS OUT IN AN EDUCATIONAL WAY?

>> MAYOR ISHII: UH-HUH.

>> THEY WILL BE POSTED ON THE CITY WEBSITE. ONCE THE BERKELEY MUNICIPAL CODE IS IN EFFECT, THEY CAN FIND ALL OF THAT INFORMATION THERE.

>> MAYOR ISHII: ARE THERE OTHER WAYS THAT WE GET THE WORD OUT TO THE COMMUNITY ABOUT FIRE CODES, WHERE THEY CAN ACCESS AND GET THAT INFORMATION?

>> HISTORICALLY NO. DESIGNERS AND BUILDERS ARE FAMILIAR WITH THE CODE ADOPTION PROCESS AND THEY KNOW WHERE TO GO TO FIND THE INFORMATION.

>> MAYOR ISHII: THANK YOU. IS THERE ANY PUBLIC COMMENT ON THIS ITEM? ANYONE ONLINE?

>> CITY CLERK: ONE HAND RAISED ONLINE. THIS IS PUBLIC COMMENT ON ITEM 9, ADOPTION OF THE FIRE CODE. THAT'S THEO GORDON.

>> GOOD EVENING, COUNCILMEMBERS, I JUST WANT TO SPEAK IN FAVOR OF THIS ITEM. MY NAME IS THEO GORDON, A MEMBER OF THE FIRE AND

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DISASTER SAFETY COMMISSION. A FEW NOTES, BERKELEY HAS SOME OF THE OLDEST HOUSING STOCK WEST OF THE MISSISSIPPI. WHILE THESE CHANGES ARE GREAT THEY WILL ONLY HELP NEW BUILDINGS. WE NEED TO LOOK AT WAYS TO MAKE IT MORE ECONOMICAL TO TEAR DOWN OLD BUILDINGS AND BETTER SAFETY STANDARDS, ESPECIALLY AS WE TALK ABOUT THE WUI. WE WILL BE TALKING ABOUT HISTORICAL LANDMARK LATER BUT WOULD LIKE THE CITY TO TAKE A LOOK AT NON LIFE SAFETY ISSUES AND REMOVING SOME OF THAT, THAT HAS BEEN ADDED OVER THE YEARS AND LOOK AT THE CITY ADOPT SINGLE -- REFORM AS OTHER CITIES IN THE STATE ARE STARTING TO LEAD THE WAY ON THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU. OTHER PUBLIC COMMENT ON THIS ITEM?

>> CITY CLERK: THERE'S ONE MORE COMMENTER. NAME IS GEORGE LANCE. GEORGE, YOU SHOULD BE ABLE TO UNMUTE.

>> MY FRIEND JUDY WAS ACTUALLY HUNG UP ON EARLIER, I DON'T KNOW WHY YOU DID THAT. BUT WE WANTED TO TALK ON THE FIRE ISSUE BUT THERE WAS ANOTHER ISSUE WE WANTED TO SPEAK ABOUT. I DON'T EXPECT YOU WILL GIVE ME THE COURTESY ON THAT. I'M WONDERING WHY YOU HAVE A FLAG WITH A BUTT HOLE ON IT.

>> MAYOR ISHII: I'M GUESSING THAT PERSON ISN'T INTERESTED IN MAKING A COMMENT ON THIS ITEM. ANY OTHER PEOPLE?

>> CITY CLERK: NO OTHER SPEAKERS.

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>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING. I JUST REALIZED WE ARE IN A PUBLIC HEARING.

>> SO MOVED.

>> M. HUMBERT: SECOND.

>> CITY CLERK: OKAY, TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

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>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, THE PUBLIC HEARING IS CLOSED.

>> MAYOR ISHII: THANK YOU VERY MUCH. MOVING ONTO COUNCIL DELIBERATIONS? COMMENTS, COUNCILMEMBERS?

>> B. BLACKABY: MOVE STAFF'S RECOMMENDATION.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: ALL RIGHT, CAN WE TAKE THE ROLL, PLEASE CLERK?

>> CITY CLERK: OKAY, ON ADOPTION OF THE FIRE CODE AND THE LOCAL FINDINGS, LOCAL CONDITIONS ADOPTING THE PERMIT FEES AND SCHEDULING THE PUBLIC HEARING FOR DECEMBER 2ND FOR THE SECOND READING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES .

>>> BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES .

>>> BLACKABY?

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>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION PASSES.

>> MAYOR ISHII: THANK ALL VERY MUCH. APPRECIATE IT. WE ARE MOVING ONTO ITEM #10. ADOPTION AMENDMENTS TO THE CALIFORNIA WILDLAND-URBAN INTERFACE, WUI. GO AHEAD.

>> THIS USE TO BE PART OF THE FIRE CODE AND THE STATE HAS MOVED CHAPTER 49 OF THE CALIFORNIA FIRE CODE AND CHAPTER 7A OF THE CALIFORNIA BUILDING CODE OUT OF THOSE CODES AND CREATED THIS SEPARATE CODE. SO WE ARE NOW REQUIRED TO ADOPT THIS AS A SEPARATE ORDINANCE, A SEPARATE CHAPTER IN THE BMC BUT IT WILL BE EASIER TO FIND WILDLAND RELATED INFORMATION IN ONE PLACE INSTEAD OF LOOKING IN SIX DIFFERENT REGULATIONS. SO WITH THAT, CHIEF COLLIN ARNOLD?

>> THANK YOU VERY MUCH. GOOD EVENING. WHAT WE ARE LOOKING AT TONIGHT IS PART OF ADOPTING THE WUI CODE IS THE STATE MINIMUM CODE, WHICH IS STANDARDS FOR HOME HARDENING, SAFETY PRECAUTIONS

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FOR WILDFIRE PRONE AREAS. MOST NOTABLY PROBABLY VEGETATION MANAGEMENT. THERE'S NO SUBSTANTIVE CHANGES TO THE CODE. JUST AS CHIEF SPRAGUE MENTIONED A REPACKAGING OF THE CODE TO FIND A MORE SIMPLE PLACE TO FIND THE INFORMATION. LOCALLY WHAT'S BEEN AMENDED IN THE CODE IS NON COMBUSTIBLE ZONE IN THE HIGHEST RISK AREA, ZONE ZERO. MORE CLEAR ON VEGETATION IN THE FIRST 30 FEET THAT REDUCE INTERPRETATION OF THE INSPECTOR AND PROPERTY OWNER. WHERE THIS CODE APPLIES, THE WUI CODE IS BASICALLY A RIDER ON TOP OF THE FIRE CODE. ANYONE BUILDING A HOME OR STRUCTURE WOULD LOOK AT BASE FIRE CODE AND BASED ON WHERE THEY LIVE THAT WUI CODE MAY OR MAY NOT APPLY. THIS IS A MAP ADOPTED BY COUNCIL IN JUNE. MODIFICATION OF THE CALIFORNIA HIGH FIRE SEVERITY ZONE AND THE WUI ZONE APPLIES, FURTHER AWAY FROM WILDLAND, THE LESS RESTRICTIVE, THE CLOSER YOU ARE, THE MORE RESTRICTIVE.

>> JUST A KEY POINT ON THAT, THERE ARE NO CHANGES PROPOSED TO THAT MAP OR WHAT COMPONENTS OF THE CODE APPLY TO THE MAP. THAT WAS ALL DONE BY COUNCIL EARLIER THIS YEAR.

>> SO WHAT'S BEEN HAPPENING SINCE YOU ADOPTED BOTH THE MAP AND LOCAL MODIFICATIONS IN JUNE. JUST A BRIEF RECAP, THE 2022 CODE WAS LOCALLY MODIFIED AND ADOPTED IN JUNE. THOSE LOCAL AMENDMENTS CONTAINED ADDITIONAL VEGETATION REQUIREMENTS, COMMONLY KNOWN AS THE EMBER PROPOSAL. FROM THERE TWO THINGS HAPPENING. WE WERE

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DISTRICTED TO DEVELOP A STAKEHOLDER GROUP TO TALK THROUGH COMPONENTS OF WHAT'S PASSED AND BEST PRACTICES MOVING FORWARD. FROM THAT WORK GROUP ONE OF THE PRIMARY THINGS CREATED, THE LOCAL AMENDMENTS FROM JUNE, THE GROUP WENT THROUGH THAT, THEY LOOKED FOR CLARITY, LOOKED FOR AN OPPORTUNITY TO SIMPLIFY. THE CODE WAS NOT SUBSTANTIVELY CHANGED BUT IT'S CLEAR AND EASIER TO READ. THEY DID A TREMENDOUS AMOUNT OF WORK, WORKING THROUGH THAT AS CITIZENS, I'VE GOT TO SAY IT'S SOME OF THE MORE EASILY DIGESTIBLE FIRE CODE OUT THERE, WHICH IS IMPRESSIVE. AT THE SAME TIME, OUT IN THE FIELD A COUPLE THINGS HAVE BEEN HAPPENING, SINCE JUNE WE HAVE SEEN HIGHEST LEVEL OF RESIDENT INTERACTION AND ACTION THIS RECENT MEMORY. MOST NOTABLY USE OF THE CHIPPER PROGRAM, REMOVAL OF HAZARDOUS VEGETATION. THERE'S BEEN A LOT OF ACTION AROUND VEGETATION MANAGEMENT. WE HAVE SEEN INCREASE IN INSPECTIONS AND ENGAGEMENT, ACCESSING ALL FOUR SIDES OF THE PROPERTY HAS REALLY GIVEN US THE OPPORTUNITY TO COACH FOLKS AND THE GET THEM READY FOR WHAT'S COMING. THAT'S BEEN INCREDIBLY SUCCESSFUL FOR THOSE WHO HAVE CHOSEN TO PARTICIPATE WITH OUR DIVISION. WE HAVE SEEN AN INCREASE IN THE NUMBER OF PREPARED HOMES. WE SEE A GROWING NUMBER OF HOMES COMPLETELY COMPLIANT WITH THE FUTURE CODE. BUT IN JUNE, IT REQUIRES A MAJORITY OF THOSE HOMES TO BE COMPLIANT FOR THERE TO BE REDUCTION OF RISK

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AND WE HAVEN'T SEEN THAT NUMBER OF HOMES. THIS IS A QUICK VIEW ON A RECENT TOUR OF THE HILLS, A NUMBER OF HOMEOWNERS THAT INVITED US ON THE PROPERTY TO SHOW US THEIR NEARLY COMPLIANT HOMES. WE SEE THOSE NUMBER OF HOMES ARE INCREASING OVER TIME. NORMALLY THEY ARE MISSING ONE OR TWO PIECES TO BE COMPLIANT. MOST NOTABLY THE GATES OR PIECE OF ORNAMENTAL VEGETATION. THIS IS A BRIEF EXAMPLE OF SOME OF THE WORK GOING ON, SOME OF THE FULLY COMPLIANT HOMES WE SEE, THEY ARE POPPING UP. THERE'S VARYING LEVELS OF INTEREST DOING THE WORK, SOME FOLKS ARE TAKING THIS AS AN OPPORTUNITY TO DO A MASSIVE AMOUNT OF LANDSCAPING. SOME FOLKS ARE MAKING SMALL CHANGES TO MEET THE CODE. SO THE WUI WORK GROUP, JUST A QUICK UPDATE, THIS WILL BE OUR 13TH MEETING ON WEDNESDAY. THE WORK GROUP TOOK MULTIPLE CLASSES. THAT INVOLVED QUITE A BIT OF STREAMLINING, THEY WORKED HARD AND IT WAS A VERY SUCCESSFUL PROCESS. THEY ESTABLISHED FRAMEWORK FOR A RESIDENT GUIDE. WHILE THE CODE IS GREAT AT TELLING YOU WHAT YOU CAN AND CAN'T DO, A RESIDENT GUIDE CAN GET INTO MORE NUANCED APPROACHES. SOME OF OUR WORK GROUP MEMBERS ARE CONCERNED ABOUT POLLINATORS AND NATIVE VEGETATION. THIS HELPS THEM THROUGH THE PROCESS. THE GROUP LOOKED AT ALTERNATE MEANS AND MEASURES REQUEST. FOLKS LOOKING TO MODIFY THE CODE FOR THEIR SPECIFIC PROPERTY. THEY BELIEVE THEY HAVE A WAY TO MEET THE INTENT OF THE

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CODE WITHOUT THE EXACT LANGUAGE. THIS GROUP WALKED THROUGH THE PROCESS OF WHAT THAT WILL LOOK LIKE, WE ARE STILL WORKING THROUGH THAT. AND THEN OF COURSE THE GROUP IS MONITORING THE BOARD OF FORESTRY PROGRESS AT THE STATE LEVEL. AS A REMINDER THEY WERE DUE BACK TO HAVE A ZONE ZERO REGULATION IN PLACE BY THE END OF THE YEAR. IT CURRENTLY DOESN'T LOOK LIKE THEY WILL MEET THAT MANDATE. THEY WILL BE GOING INTO NEXT YEAR. ANOTHER THING THIS GROUP HAS DONE THAT'S BEEN REALLY HELPFUL, THEY HAVE GIVEN US GOOD FEEDBACK HOW WE CAN BETTER REACH CONSTITUENTS AND BETTER HELP FOLKS UNDERSTAND WHAT APPLIES TO THEM. IN ADDITION TO THE RESIDENT GUIDE, YOU WILL SEE IF YOU GO TO THE WEBSITE NOW, THERE'S A SUBSTANTIALLY DIFFERENT WEBSITE. MOST NOTABLY YOU CAN ENTER YOUR WEBSITE IT WILL TELL YOU THE REQUIREMENTS FOR YOUR HOME AND TELL YOU WHAT SERVICES ARE AVAILABLE. REGARDLESS WHERE YOU LIVE, YOU SHOULD BE ABLE TO ENTER YOUR ADDRESS AND FIGURE OUT EXACTLY WHAT THE REQUIREMENTS ARE. WE ALSO, WITH THE HELP OF THIS GROUP, ESTABLISHED AN OUTREACH CAMPAIGN. ONE OF THE MAJOR CONCERNS IS SOME FOLKS MAY NOT KNOW THIS IS COMING. AS OF TODAY EVERY HOME IN THE NEW MITIGATION ZONES SHOULD HAVE GOTTEN A MALER. IF NOT IT WILL BE COMING TOMORROW OR THE NEXT DAY. THAT'S THE BEGINNING OF OUR OUTREACH CAMPAIGN. EXACTLY THE SAME TIMELINE AS WHAT THE FIRE MARSHAL JUST MENTIONED FOR THE FIRE

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CODE, THIS IS IN PARALLEL WITH THAT.

>> THAT'S THE END OF OUR PRESENTATION. THANK YOU.

>> MAYOR ISHII: VERY GOOD. THANK YOU SO MUCH. APPRECIATE THE PRESENTATION. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. AND THANK YOU, CHIEFS FOR ALL THIS WORK. AND ALSO THANKS TO THE VEGETATION MANAGEMENT GROUP WORK GROUP FOR ALL THE WORK THEY HAVE DONE. I WILL COMMENT MORE LATER IN MY COMMENTS. I JUST HAD A FEW QUESTIONS TO KIND OF GUIDE WHERE WE GO FROM HERE. SO THIS VEGETATION MANAGEMENT WORK GROUP HAS DONE A LOT OF WORK AND A LOT OF THOSE EDITS ARE REFLECTED IN THE CODE WE ARE APPROVING TONIGHT. ONCE THAT IS COMPLETE, WHAT ADDITIONAL WORK REMAINS FOR THAT GROUP BEFORE THEY WRAP UP? AS I REMEMBER FROM THE ITEM WE PUT FORWARD IN JUNE, WE BASICALLY HAD THREE THINGS. WE ASKED FOR IMPLEMENTATION PLAN, WHICH YOU DID. AND THEN WE ASKED FOR THE SORT OF AMENDMENTS TO THE VEGETATION PIECE, WHICH IS WHAT'S IN FRONT OF US. AND ALSO REMOVING REFERENCES TO MISDEMEANORS AND A FEW OTHER SPECIFIC THINGS WE CALLED OUT. BY MY CALCULUS, ALL OF THAT IS MORE OR LESS DONE BUT IS THERE ANY EXPECTATION WHAT ELSE THEY MIGHT BE DOING BEFORE THE END OF THE YEAR?

>> I THINK THE BOARD OF FOR FORESTRY THROUGH A WRENCH INTO THIS. THE WORK GROUP WILL WRAP UP THE RESIDENT GUIDE AND WRAP UP THE

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REVIEW OF THE BEST AVAILABLE SCIENCE OUT THERE, SCIENCE BEING AN EVER EVOLVING PROCESS. AFTER THAT WE DON'T HAVE ANY ADDITIONAL MANDATES FROM COUNCIL.

>> B. BLACKABY: OKAY, ONCE THAT WORK GROUP DOES WRAP UP AT THE END OF THE YEAR, THERE WILL STILL BE A BODY FOR SUBSEQUENT CITIZEN ENGAGEMENT AND THAT'S BASICALLY DISASTER AND FIRE SAFETY COMMISSION. IS THAT THE RIGHT WAY TO THINK ABOUT IT? THIS VEGETATION MANAGEMENT WORK GROUP HAS BEEN AROUND TO ADDRESS A FEW THINGS WE TASKED YOU GUYS WITH. THEY HAVE BEEN WORKING ON THOSE. THAT WORK GROUP FINISHES UP THE END OF THE YEAR AND FIRE AND DISASTER SAFETY COMMISSION CONTINUES, IS THAT FAIR TO SAY?

>> YEAH, THAT'S FAIR. AND WE ALSO FIELD A NUMBER OF COMPLAINTS AND OTHER ISSUES ABOUT THE FIRE CODE FROM COUNCILMEMBERS SO THAT CAN CONTINUE TO HAPPEN.

>> B. BLACKABY: THERE WILL BE PLENTY OF OPPORTUNITY WHETHER THROUGH COUNCIL MEETINGS OR FIRE AND DISASTER SAFETY COMMISSION FOR THAT. THE LAST THING IS BOARD OF FORESTRY; THIS IS THE STATEWIDE EFFORT WHERE THE STATE IS HAMMERING OUT THE ZONE ZERO REQUIREMENTS THEY ARE GOING TO IMPLEMENT FOR THE REST OF THE STATE. YOU MENTIONED THAT THEY ARE LIKELY GOING TO MISS THEIR END-OF-YEAR DEADLINE. DO YOU HAVE ANY ROUGH SENSE WHAT THAT UPDATING TIMING MIGHT LOOK LIKE? BEST GUESS?

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>> I COULDN'T GIVE YOU A GUESS. I COULD TELL YOU BECAUSE OF AB1455 THIS IS NOW EMERGENCY RULEMAKING PROCESS, THEY REVISIT THE EMERGENCY RULEMAKING NEXT YEAR. SO THE FINAL RULEMAKING I BELIEVE WOULD OCCUR AT SOME POINT NEXT YEAR, BUT I DON'T HAVE A SPECIFIC TIME.

>> B. BLACKABY: OKAY, THE OTHER THING WE DID IN THE JUNE ITEM IS ASKED ONCE THOSE RULES ARE IN PLACE THAT THE DEPARTMENT WOULD COME BACK AND BASICALLY PROVIDE US AN UPDATE ON WHAT THOSE ZONE ZERO REGS ARE AND ANY DIFFERENCES BETWEEN THE STATE. I'M ASSUMING WE COULD STILL SCHEDULE THAT KIND OF FOLLOW-UP BRIEFING?

>> YEAH, I THINK IF WE COULD HAVE A COUPLE MONTHS AFTER ITS REGULATION TO ANALYZE IT, WE WOULD BE HAPPY TO COME BACK.

>> MAYOR ISHII: THANK YOU, OTHER QUESTIONS FROM COUNCILMEMBERS? OKAY, IS THERE ANY PUBLIC COMMENT ON THIS ITEM? ANYONE ONLINE TO MAKE PUBLIC COMMENT ON ITEM #10? ADOPTION OF AN AMENDMENT TO THE CALIFORNIA WILD URBAN INTERFACE CODE. WUI CODE.

>> CITY CLERK: WE HAVE ONE SPEAKER, THAT'S THEO GORDON.

>> HELLO AGAIN COUNCIL. THEO GORDON, DISASTER FIRE SAFETY COMMISSION SPEAKING FOR MYSELF. AGAIN, SUPPORT THIS ADOPTION DISASTER PREPAREDNESS AND ESPECIALLY FIRE PREPAREDNESS IS SOMETHING WE ALL HAVE TO WORK ON AS MEMBERS OF THE BERKELEY

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COMMUNITY BUT ESPECIALLY IMPORTANT THAT IN THE WUI THAT BUILDINGS ARE DEFENSIBLE AND SLOW DOWN THE FIRE SO WE CAN GET PEOPLE OUT. SO PLEASE PASS THIS MEASURE TONIGHT AND LET'S BUILD A SAFER CITY.

>> MAYOR ISHII: THANK YOU, THEO. OTHER COMMENTS?

>> CITY CLERK: NO OTHER COMMENTS.

>> MAYOR ISHII: OKAY, VERY GOOD. IN THAT CASE, COMING BACK TO COUNCIL, ANY COMMENTS FROM COUNCIL? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: SORRY, I DO HAVE A COUPLE COMMENTS. I APPRECIATE ALL THE WORK. I DO WANT TO GIVE KUDOS TO THE MEMBERS OF THIS WORK GROUP. THEY HAVE BEEN MEETING WEEKLY SINCE AUGUST FOR AT LEAST WHAT AN HOUR OR TWO EACH TIME. AND I KNOW WE MAY NOT HAVE ALL GONE THROUGH ALL THE EDITS BUT JUST TO SUMMARIZE WHAT THEY HAVE DONE. IT WAS A CLARIFICATION ABOUT THAT MATURE TREES ARE ALLOWED IN ZONE ZERO, THAT WAS A QUESTION WE HEARD FROM MEMBERS OF THE PUBLIC. THEY WORKED THROUGH LANGUAGE TO MAKE SURE IN THE CODE IT WAS CLEAR MATURE TREES ARE PERMITTED. THEY MADE RECOMMENDATIONS WHAT TREE CANOPY MEANS. THEY SIMPLIFIED WHAT ZONE ZERO, ZONE ONE AND ZONE TWO ARE AND WHAT'S ALLOWABLE IN THE ZONES AND PROVIDED BERKELEY-SPECIFIC CLARIFICATION AROUND ANNUAL VEGETATION IN ZONE ONE. SEASONAL GARDENS. THESE ARE IMPLEMENTATION DETAILS THAT WE HAD ASKED FOR AND I'M JUST SO

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GRATIFIED FOR THE WORK THEY HAVE DONE. FOR THE WORK WITH THE DEPARTMENT. FOR CHIEF WINNACKER AND COLIN ARNOLD AND ALL WHO HAVE BEEN INVOLVED IN THAT. AGAIN, I THINK IT WAS A GREAT PROCESS THAT GOT AT WHAT WE WERE HOPING FOR, TRYING TO BUILD SOME MORE COMMON CONSENSUS AROUND THIS WORK. I KNOW OTHER COLLEAGUES MAY HAVE CONSENSUS BUT FOR THE SAKE OF PUTTING A MOTION ON THE TABLE I WANT TO SHARE MY SCREEN. THE MOTION I WOULD LIKE TO MAKE TO MOVE FORWARD, IT REFLECTS SOME OF THE QUESTIONS WE TALKED ABOUT. TO ADOPT STAFF'S RECOMMENDATION WITH THREE OTHER ITEMS. THE FOURTH IS TO THANK THE MEMBERS OF THE WORK GROUP FOR THEIR EFFORTS AND ASK THEM TO SUBMIT A MEMO WITH ANY ADDITIONAL FOLLOW-UP RECOMMENDATIONS TO THE CHIEF. IF THERE ARE ITEMS THEY AREN'T ABLE TO COMPLETE BEFORE THEIR TERM OF SERVICE IS DONE, THAT IS ENCAPSULATED AND GOES TO THE CHIEF SO WE HAVE THE BENEFIT OF THEIR THINKING. AND THE CHIEF COME BACK TO THE COUNCIL AND PUBLIC SAFETY COMMITTEE WITH ANY ADDITIONAL WUI ITEMS THAT MAY COME OUT OF THOSE RECOMMENDATIONS. AGAIN, IF THERE'S SOMETHING TO ACT ON BASED ON THAT FEEDBACK THAT WE HAVE A WAY OF CAPTURING IT. AND AS DISCUSSED WITHIN 60 DAYS OF THE STATE BOARD OF FORESTRY'S BEING FINALIZED REQUEST TO COME BACK TO COUNCIL TO UPDATE STATE VEGETATION MANAGEMENT LAWS. THAT'S MY MOTION.

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>> M. HUMBERT: SECOND. I'LL DEFER TO THE MAYOR.

>> MAYOR ISHII: ANY OTHER COMMENTS? I HAVE COUNCILMEMBER HUMBERT ON HERE.

>> M. HUMBERT: YES, THANK YOU, MADAM MAYOR. I SIMPLY WANT TO THANK CHIEF SPRAGUE, CHIEF ARNOLD, CHIEF WINNACKER AND ALL BFD STAFF WHO WORKED ON THIS HUGE AND CRITICALLY IMPORTANT PROJECT. AND ALSO TO EXPRESS MY GRATITUDE TO COUNCILMEMBER BLACKABY FOR HIS HERCULEAN EFFORTS IN THIS REGARD.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, CHIEFS AND EF ONE. THIS IS PURELY PROCEDURAL, TECHNICALLY REFERRALS ARE TO THE CITY MANAGER, I WONDER IF I MIGHT OFFER A FRIENDLY AMENDMENT THAT THE FINAL TWO POINTS BE REQUESTED OF THE CITY MANAGER?

>> B. BLACKABY: YEP.

>> T. TAPLIN: GREAT.

>> MAYOR ISHII: GREAT CATCH. THANK YOU. I AGREE AS THE SECONDER. OTHER COMMENTS FROM COUNCILMEMBERS? OKAY, I ALSO WANT TO SAY THANK YOU SO MUCH. I KNOW THE BEGINNING OF THIS WAS CHALLENGING AND I APPRECIATE THE FIRE DEPARTMENT TOOK A LOT OF TIME TO WORK WITH THE COMMUNITY. I REALLY WANT TO THANK THE WORKING GROUP AS WELL, WHO DID A LOT OF WORK ON THIS. THEIR TEAM MEETINGS IS A LOT. AND I APPRECIATE FOLKS WERE ABLE TO COME TOGETHER AND

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CREATE RESOURCES THAT WILL REALLY HELP THEIR NEIGHBORS. AT THE END OF THE DAY THAT'S WHAT WE WANT, WE WANT ADOPTION AND MAKE SURE FOLKS FEEL SUPPORTED AND KNOW WHAT THEY ARE SUPPOSED TO BE DOING. THANK YOU SO MUCH TO ALL OF YOU AND THE WORKING GROUP AND OF COURSE, COUNCILMEMBER BLACKABY AND ALL OF US WHO HAVE BEEN INVOLVED IN THIS FIREWORK. AND GENERALLY, OUR COUNCIL HAS BEEN INCREDIBLY SUPPORTIVE OF IT. I'M REALLY HAPPY TO SEE THIS MOVING FORWARD. I WANT TO THANK YOU ALL. OKAY. IS THERE A MOTION?

>> CITY CLERK: YES, A MOTION AND SECOND. ON THE MOTION, WHICH IS THE STAFF RECOMMENDATION, PLUS THE THREE BULLET POINTS FROM COUNCILMEMBER BLACKABY WITH THE AMENDMENT BY COUNCILMEMBER TAPLIN. ON THE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

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>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU ALL.

>> GOOD NIGHT.

>> MAYOR ISHII: I JUST WANT TO TAKE A TEN-MINUTE BREAK SO WE CAN ALLOW THE CHIEF TO SET UP AND SHIFT, WE WILL COME BACK IN TEN. THANK YOU. [BREAK] [RECORDING IN PROGRESS]

>> MAYOR ISHII: ALL RIGHT. THANK YOU ALL SO MUCH FOR YOUR PATIENCE. APPRECIATE IT. WE ARE COMING BACK TO OUR CITY COUNCIL MEETING. WE ARE ON ITEM #11, ANNUAL SURVEILLANCE TECHNOLOGY REPORT FOR BOD YIE WORN CAMERAS, GPS TRACKERS, FIXED SURVEILLANCE VIDEO CAMERAS, PARKING ENFORCEMENT OFFICER AUTOMATED LICENSE PLATE READERS AND STREET LEVEL IMAGERY PROJECT, UNMANNED AERIAL SYSTEMS AND FIXED AUTOMATED LICENSE PLATE READERS. CHIEF LOUIS?

>> JUST TO SET THE STAGE, THIS IS OUR ANNUAL REPORT, CONDUCTED

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PURSUANT TO THE SURVEILLANCE TECHNOLOGY ORDINANCE. WE REPORT ON NUMBER OF USES, COSTS ASSOCIATED WITH, COMPLAINTS WE HAVE RECEIVED ABOUT SPECIFIC TECHNOLOGIES, AND PROVIDE AN OPPORTUNITY FOR BOTH THE PUBLIC AND COUNCIL TO GIVE US FEEDBACK ON BOTH THE TECHNOLOGY AND THE INFORMATION THAT'S IN THE REPORT. I KNOW THIS YEAR PARTICULARLY THERE'S A LOT OF COMMUNITY INTERESTS IN OUR SURVEILLANCE TECHNOLOGIES, ESPECIALLY IN LIGHT OF ACTIVITIES AROUND FEDERAL IMMIGRATION AGENCIES. UNDERSTAND THAT'S ADDED A LOT MORE QUESTIONS AND EYES ON THE REPORTS THAT WE PRODUCE. I KNOW WE WILL ANSWER AS MANY QUESTIONS AS WE CAN WITH THE UNDERSTANDING THAT MORE INFORMATION IS HELPFUL IN THE TIMES WE ARE IN RIGHT NOW. THE SURVEILLANCE ORDINANCE HAS SPECIFIC THINGS IT REQUIRES FOR THE REPORTING WE DO AROUND IT. EVERY TECHNOLOGY WE HAVE HAS AN ACQUISITION REPORT, A USE POLICY, AND AN OVERALL DEPARTMENTAL POLICY ON THE USE. THOSE ARE THINGS THAT ARE BROUGHT TO COUNCIL AND APPROVED BY COUNCIL. THESE REPORTS INCLUDE AUDIT REQUIREMENTS AND REPORTING REQUIREMENTS. AND THE REPORT THAT WE SUBMIT ANNUALLY ON THIS YEAR BY ORDINANCE AND BY INTERNAL POLICY ASKS THAT WE INCLUDE AUDIT RESULTS WITHIN THE REPORT. AS WE HAVE GONE THROUGH EACH YEAR AND EACH ITERATION OF THIS REPORT, REALLY IT'S BEEN GUIDED IN GREAT PART BY COUNCIL WHO HAVE ASKED US, CAN YOU INCLUDE MORE OR REPORT ON THIS

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DIFFERENTLY. AS ALWAYS WE LOOK FORWARD TO GETTING YOUR FEEDBACK AND ADDING ADDITIONAL THINGS OF INTEREST TO THE COUNCIL WE ARE ABLE TO COLLECT AS WE USE THESE TECHNOLOGIES. THE OTHER THING I WANT TO ACKNOWLEDGE OR CALL OUT AROUND THE SURVEILLANCE TECHNOLOGY ORDINANCE REPORTING IS A NEWER PIECE OF THE WORK WE ARE DOING INTERNALLY AROUND THAT, THE ESTABLISHMENT OUR OFFICE OF STRATEGIC PLANNING AND ACCOUNTABILITY. LET BY ARLO. HIS OFFICE IS RESPONSIBLE FOR OVERSIGHT OF OUR TECHNOLOGIES. HE GIVES US A NON LAW ENFORCEMENT PERSPECTIVE. HE BRINGS A SKILL SET ABOUT PROCESSES AND ANALYTICS TO THE WORK WE ARE DOING OUR REVIEWS AROUND THESE TECHNOLOGIES. BY DOING THIS WORK AND HAVING HIM WITH US INTERNALLY, WE ARE ABLE TO IDENTIFY ISSUES QUICKLY, EARLY AND EMPLOY INTERVENTIONS AS WE GO THROUGH OUR PROCESS. I WANT TO TALK SPECIFICALLY ABOUT SOME OF THE AUDITS THAT ARE REPORTED. WHAT IS REALLY GOOD FROM ONE OF THE THINGS WE LEARNED FROM OUR AUDITS, OUR DEPARTMENTAL PERSONNEL HAD APPROPRIATELY ACCESSED THE SURVEILLANCE TECHNOLOGIES THAT WE HAD AND USED THOSE TECHNOLOGIES ACCORDING TO OUR DEPARTMENTAL POLICIES. OUR PERSONNEL, OUR STAFF ARE AWARE OF OUR POLICIES, VALUES AND WE DIDN'T FIND ANY ISSUES IN AUDITING THOSE PARTICULAR PIECES. WHEN WE MOVE TO THE FIXED ALPR AUDIT, ATTACHED TO THIS REPORT, IT DID REVEAL A SMALL NUMBER OF OUTSIDE AGENCY SEARCHES THAT INCLUDED

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REFERENCES THAT WE WANTED TO ASSESS WHEN WE DISCOVERED THIS INFORMATION. USING INDICATORS THAT MIGHT HAVE EVIDENCED AN ISSUE WITH SB-54 CONNECTED TO FEDERAL IMMIGRATION AGENCIES. SO AS SOON AS WE SAW THAT THOSE DESIGNATORS WERE IN A COUPLE SEARCHES, WE IMMEDIATELY TIGHTENED UP OUR SHARING PARAMETERS TO ENSURE WE WERE NO LONGER SHARING WITH THOSE AGENCIES AND WE WERE ABLE TO STEP INTO THE MORE ROBUST AUDIT PROCESS. WHAT I NEED TO REMAIN VERY CLEAR AND CONSISTENT ABOUT IS OUR VALUES. OUR CITY'S, OUR DEPARTMENT'S VALUES AROUND SANCTUARY CITY STATUS AROUND NOT SUPPORTING IMMIGRATION RESPONSES OR IMMIGRATION ACTIVITIES, AROUND RAISING UP WHAT THE STATE LAW HAS GUIDED US ON. AND SO THAT'S AN IMPORTANT VALUE FOR US. THAT'S ALWAYS GOING TO BE A VALUE FOR US AS WE DO OUR AUDIT PROCESSES. UNDERSTANDING THE HEIGHTENED SENSITIVITY OF ALL OF OUR COMMUNITY AND WANT TO CLEARLY STATE THAT. THAT WE DON'T STAND FOR ANY MEMBER IN OUR DEPARTMENT OR ANY OTHER AGENCY THAT WOULD POTENTIALLY BE USING OUR INFORMATION TO SUPPORT THAT PURPOSE. I DO WANT TO GIVE ARLO WHO CONDUCTED THE AUDIT A CHANCE TO SPEAK IN MORE DETAIL ABOUT THE PROCESS WE WENT THROUGH AND WHAT WE DISCOVERED IN THAT A*UT AUDIT.

>> THANKS, CHIEF. FOR THIS AUDIT WE LOOKED AT FOUR AREAS. WHO INSIDE THE DEPARTMENT ACCESSED THE OR RAN A SEARCH ON OUR

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NETWORK. HOW THEY USED IT. WHICH OUTSIDE AGENCIES RAN SEARCHES AND HOW THOSE AGENCIES USED IT. SO WE FOUND FULL COMPLIANCE ON THE FIRST THREE OF THOSE. EVERYONE INSIDE BPD WHO RAN A SEARCH HAD AUTHORIZED ACCESS AND THEIR SEARCHES MATCHED OUR POLICY. ALL OUTSIDE AGENCIES THAT RAN SEARCHES WERE CALIFORNIA LAW ENFORCEMENT AGENCIES THAT ALREADY HAD PERMISSION UNDER STATE LAW. THE FINAL PART OF THE AUDIT FOUND SEARCHES FROM OUTSIDE AGENCIES WITH FREE TEXT NOTES THAT INCLUDED ACRONYMS TIED TO FEDERAL AGENCIES. AS SOON AS WE SAW THE PATTERN WE SUSPENDED SHARING WITH AGENCIES THAT SUBMITTED THE SEARCH REASON THAT WE FLAGGED. ON TOP OF THAT, WE ALSO SUSPENDED SHARING WITH ANY AGENCY OUTSIDE OF THE BAY AREA. ONE OF THE NOTES REFERENCED I.C.E. BECAUSE IT'S BEEN WIDELY REPORTED IN THE NEWS, OTHERWISE THIS INFORMATION IS PROTECTED AROUND RULES AROUND INVESTIGATIVE INFORMATION. I CAN SHARE THAT SEARCH WAS CONDUCTED BY THE CALIFORNIA HIGHWAY PATROL. AND IT WAS TWO SOUTHERN CALIFORNIA AGENCIES THAT MADE SEARCH THAT'S REFERENCED CPP. WE IMMEDIATELY CHANGED ALL SHARE SETTINGS LIMITING THOSE AGENCIES TO SEARCH ON OUR NETWORK. THOSE THREE AGENCIES NO LONGER HAVE ACCESS TO OUR ALPR DATA. TO JUST ZOOM OUT FOR A SECOND. THESE SEARCHES WERE NOT FOCUSED ON BERKELEY. THEY APPEARED ON AGENCIES LOGS ACROSS THE STATE AND REGIONALLY. AND I'M PROUD THAT OUR RESPONSE WAS

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THE MOST PROACTIVE AND THE MOST RESTRICTIVE OF ANY AGENCY THAT WE ARE AWARE OF. AND FOLKS CAN CHECK OUT OUR FLOCK TRANSPARENCY PORTAL AND SEE WHAT AGENCIES WE ARE CURRENTLY SHARING WITH AND COMPARE THAT WITH OTHER AGENCIES. WE TOOK THOSE STEPS EARLY IN THE AUDIT TO REMOVE ANY UNCERTAINTY WHILE WE COMPLETED THE REST OF THE REVIEW. FLOCK HAS SINCE ADDED KEYWORD FILTERS TO BLOCK ANY IMMIGRATION RELATED SEARCHES. WE MORE REGULARLY REVIEW THE SEARCHES NOW TO MAKE SURE THAT NO AGENCIES THAT STILL HAVE ACCESS ARE SEARCHING ANYTHING THAT WOULD RAISE A FLAG WITH US. AND SINCE WE TOOK THOSE RESTRICTIVE MEASURES WE HAVEN'T SEEN ANY FURTHER REFERENCES TO IMMIGRATION OR FEDERAL AGENCIES.

>> SORRY, I KNOW THERE MIGHT BE MORE QUESTIONS ABOUT OUR PROCESSES, ABOUT THE REMEDY STEPS WE HAVE TAKEN. I CAN SAY THAT IT WAS IMPORTANT FOR ME TO RECOGNIZE THE IMPORTANCE AND VALUE OF THIS TOOL. IT'S NOT LOST ON ME ABOUT THE DATA THAT WE HAVE SEEN, THE CASES WE HAVE SEEN RESOLVED, THE ABILITY TO AID OUR INVESTIGATIONS VERY RAPIDLY AND RESOLVE CRIMES WE MIGHT NOT EVER BE ABLE TO IDENTIFY A SUSPECT WITHOUT THEM. AT THE SAME TIME WE ARE HIGHLY FOCUSED ON ENSURING THE WORK WE DO, DATA WE COLLECT TO DO OUR WORK IS NOT PUTTING OUR COMMUNITY AT RISK. WHAT'S MOST IMPORTANT TO ME IS THAT WE ARE CLEAR AND CONSISTENT IN OUR ACTIONS AROUND THAT. AND KNOW THAT THE MEASURES WE TAKE TO

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TIGHTEN UP OUR SECURITY WE WILL CONTINUE TO LOOK AND ADJUST. AS WE LAND AND KNOW WHAT THE BEST NEXT STEPS ARE, AFTER WE PASS THIS INITIAL AUDIT PERIOD, WE WILL BE LOOKING TO ABSORB SOME OF THOSE AUDIT EXPECTATIONS INTO OUR POLICIES IN WAYS THAT CONTINUE TO REFLECT OUR SANCTUARY CITY VALUES.

>> MAYOR ISHII: THANKS, CHIEF. I THINK THERE'S A QUESTION FROM COUNCILMEMBER HUMBERT.

>> M. HUMBERT: YES. YOUR PRESENTATION IS COMPLETED, IS THAT RIGHT? THANK YOU. YEAH, I HAVE A COUPLE QUESTIONS. ONE IS THANK YOU FOR A DIRECTION THE ISSUE OF THESE POTENTIALLY PROBLEMATIC SEARCHES FROM OUTSIDE AGENCIES. WHAT DO YOU THINK THE COMMUNITY SHOULD TAKE AWAY FROM THE WAY BPD RESPONDED AND HANDLED THESE CONCERNS?

>> ARLO HUMBLY ADMITTED HE IS PROUD OF IT. I TOO, THIS WAS OUR INITIAL AUDIT. THIS IS US STEPPING INTO A NEW TECHNOLOGY AND REALLY LEARNING AS WE SAW WHAT THE DATA WAS COMING IN. AND TAKING IMMEDIATE STEPS WHEN WE REALIZED THERE WAS ANY ISSUE AT ALL BEFORE LAUNCHING INTO A LONG INVESTIGATION, WE TOOK IMMEDIATE STEPS TO LIMIT THE AMOUNT OF DATA THAT WAS GOING OUT, UNDERSTAND WHAT WAS HAPPENING. I WOULD LOVE FOR EVERY AUDIT THAT WE EVER DID TO NEVER HAVE ANY FINDINGS. BUT WHAT IT TELLS ME IS OUR AUDIT PROCESSES ARE WORKING. THAT WE DIDN'T SHY AWAY FROM

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IT, WE MADE THE DECISIONS THAT WE KNEW WERE RIGHT FOR OUR COMMUNITY QUICKLY. SET NEW RULES AND NEW WAYS TO EVALUATE THAT AS WE GO SO WE DON'T HAVE RECURRENCES.

>> M. HUMBERT: THANK YOU, CHIEF. AND MY ONLY OTHER QUESTION WAS, I'M AWARE THAT THE AUTOMATED LICENSE PLATE READERS HAVE BEEN REALLY EFFECTIVE IN HELPING US PREVENT AND SOLVE CRIMES. AND WANTED TO KNOW A LITTLE BIT ABOUT WHAT THE STATS HAVE BEEN SO FAR.

>> YEAH, SO FAR THIS YEAR, OFFICERS HAD MADE AT LEAST, I SAY AT LEAST BECAUSE THIS DEPENDS ON THEIR REPORTING AFTER THE FACT. MADE AT LEAST 52 ARRESTS INCLUDING COMMERCIAL BURGLARIES, ROBBERIES, SEXUAL ASSAULTS, HOMICIDES. INVESTIGATORS HAVE ALSO USED ALPR'S TO ASSIST IN AT LEAST 29 OTHER CASES. WHICH MEANS THIS TECHNOLOGY IS PLAYING A ROLE BOTH IN IMMEDIATE EMERGENCY RESPONSE AND ALSO IN LONGER-TERM INVESTIGATIONS. THERE'S SOME PRELIMINARY EVIDENCE THAT OUR CLEARANCE RATES HAVE GONE UP SINCE WE STARTED USING ALPR'S PARTICULARLY WITH ROBBERIES BUT IT'S A TOOL THAT SUPPORTS BOTH THE IMMEDIATE ENFORCEMENT AND THESE LONGER-TERM INVESTIGATIONS. AND THAT WE ARE SEEING THE FRUITS OF THAT ALREADY AND OUR OFFICERS WOULD TELL YOU THE SAME IN A HEARTBEAT.

>> M. HUMBERT: THANK YOU VERY MUCH. THAT'S ALL I HAVE.

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>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB? SORRY, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. I JUST WANT TO DOUBLE CLICK ON SOMETHING YOU JUST SAID. THE FACT THAT WE ARE JUST HAVING THIS CONVERSATION IS EVIDENCE THAT THE SYSTEM IS WORKING, THE AUDITS ARE WORKING. WE HAVE AN OVERSIGHT THROUGH THE PAB, THROUGH THE REPORTING, THROUGH THE AUDIT TRAIL WE ARE ASKING FOR. WE HAVE A MECHANISM FOR EVALUATING HOW TECHNOLOGY IS WORKING AND FINDING PLACES WHERE MAYBE WE COME UP SHORT. I DO WANT TO ECHO THAT; THIS IS EVIDENCE THAT DOES WORK. I'M SURE THERE ARE OTHER JURISDICTIONS WHERE WE MAY NOT HAVE BEEN AWARE OF WHAT HAPPENED AND YOU GUYS ARE BEING VERY FORTHRIGHT AND FORTHCOMING ABOUT THAT, I JUST WANT TO SAY IT'S APPRECIATED. CAN YOU GIVE US A LITTLE MORE CONTEXT ON THOSE THREE SEARCHES? AGAIN, I AGREE WITH COUNCILMEMBER HUMBERT THAT THERE'S A TREMENDOUS VALUE IN THIS TECHNOLOGY. SO YOU KNOW, I UNDERSTAND THAT. BUT JUST TO KIND OF FOCUS ON THESE THREE INCIDENTS. TO OUR KNOWLEDGE WERE THERE ANY HITS ON BERKELEY IN TERMS OF LICENSE PLATE THAT'S WERE IDENTIFIED?

>> WE DON'T HAVE ANY REASON TO BELIEVE THAT ACCESSED ANY BERKELEY DATA. SIMPLY THE STATEWIDE LOOK-UP FUNCTION WAS TURNED ON. YOU MIGHT HAVE RECALLED THERE WERE NEWS STORIES IN THE

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SUMMER THAT OUR OTHER LOCAL JURISDICTIONS WERE REPORTING THE SAME, THEY HAD THE SEARCHES ACROSS THE STATE NETWORK. THOSE WERE SOUTHERN CALIFORNIA AGENCIES SEARCHING. MY ASSUMPTION WOULD BE THEY DIDN'T GET ANY OF OUR DATA, WE HAVE NO REASON TO BELIEVE ANY DATA THAT CAME OUT OF THOSE SEARCHES AFFECTED OUR FOLKS DIRECTLY.

>> B. BLACKABY: AND THOSE WERE AUTOMATED PINGS. THERE WAS NO POINT A BPD PERSONNEL OKAYED IT. IT WAS AN AUTOMATED HIT?

>> THE WAY IT'S SET UP, WE DON'T JUST SHARE TO EVERYONE. IN ORDER TO SHARE OUR DATA WITH YOU, YOU HAVE TO FILL OUT AN ATTESTATION AND COMMIT TO FOLLOWING OUR SANCTUARY CITY VALUES, COMMIT TO FOLLOWING STATE LAW AROUND IT. SO WHAT HAPPENED IF AN AGENCY CLICKED THE STATE LOOK-UP BUTTON THEY WERE ABLE TO SEE ACROSS THE STATE. NOW WE ARE ABLE TO LIMIT THAT DOWN. WE STILL HAVE THE ATTESTATION BUT WE LIMITED THE COUNTIES THAT WILL EVEN CONSIDER ONE FROM. AND THEY STILL HAVE TO HAVE THAT ON FILE WITH US.

>> B. BLACKABY: YOU MENTIONED SOME OF THE ADDITIONAL CONTROLS IN TERMS OF THE SCRUTINIZING OF THESE SEARCHES. SO IT'S A NARROWER GROUP. VARIOUS COUNTIES, SACRAMENTO. AND VARIOUS SCRUTINY. CAN YOU TALK ABOUT HOW YOU HAVE TIGHTENED THAT UP?

>> YEAH, ABSOLUTELY. WE ARE AUDITING BIANNUALLY BUT DOING

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INFORMAL CHECKS MORE OFTEN. SO WE ARE ABLE TO CONFIRM ANY SEARCHES THAT WOULD HINT AT AN UNPERMITTED USE AREN'T OCCURRING, IF THEY ARE WE CAN SHUT OFF THAT AGENCY RIGHT AWAY. FLOCK HAS IMPLEMENTED FILTERS THAT DON'T PERMIT ANY SEARCH THAT HAS ANY REFERENCE TO ANYTHING IMMIGRATION OR REPRODUCTIVE HEALTH RELATED GETS THROUGH. AND THEY ARE IMPLEMENTING SOMETHING. ACTUALLY THAT WE HAVE BEEN ASKING THEM FOR AND HAVE IMPLEMENTED INTERNALLY WHICH IS DROP-DOWN LIST OF OPTIONS FOR A SEARCH REASON. SO THAT CLARIFIES TO OFFICERS WHEN THEY ARE DOING THE SEARCH WHICH USES ARE PERMITTED AND WHICH ARE NOT. AND ENSURES THAT EVERY SEARCH IS DONE FOR ONE OF THOSE PERMITTED REASONS. WE IMPLEMENTED THAT INTERNALLY AND THAT WILL BE ROLLING OUT NETWORK WIDE FOR FLOCK.

>> B. BLACKABY: OKAY, THE WAY YOU SPOT SOMETHING THAT IS PROBLEMATIC, THERE'S A REASON FIELD ATTACHED TO EACH OF THESE INQUIRIES. SO WHAT OTHER FILTERS HAVE YOU APPLIED. EXPLAIN HOW THAT WORKS. IS THERE A FLAG THAT GETS RAISED. HOW WOULD YOU IDENTIFY A PROBLEMATIC SEARCH?

>> YEAH, SO RIGHT NOW THERE'S AN AUDIT LOG PART OF THE PLATFORM. SO WE GO IN, DOWNLOAD A BUNCH OF DATA, ANALYZE IT THROUGH SOME REGULAR EXPRESSION SEARCHES AND A FEW OTHER THINGS. AND SO THERE'S SOME LIKE MANUAL ASPECT TO IT. BUT ONE OF THE THINGS WE HAVE BEEN PUSHING FLOCK FOR AND THEY LET US KNOW IS ON THE WAY

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IS A MORE AUTOMATED FUNCTION, AS SOON AS THE SEARCH OCCURS WE ARE ABLE TO COMPARE THAT TO OUR FILTERS AND CHECKS AND DOCUMENT WHAT THOSE SEARCHES WERE.

>> ONE OTHER FEATURE THEY EXPLAINED TO US THAT IS NOW SET UP. FOR EXAMPLE, IF WE THOUGHT OH WE WANT TO SHARE WITH SOMEBODY OUT-OF-STATE, THERE'S NO LONGER THE ABILITY FOR ANY AGENCY IN THE STATE OF CALIFORNIA TO PARTNER OR CONNECT WITH ANOTHER STATE OR FEDERAL AGENCY, THERE'S NO FEDERAL AGENCIES THAT HAVE THAT ACCESS. AND NO STATE CAN COME AND ASK TO JOIN. SO THEY HAVE CUT OFF THAT COMPLETELY. THEY HAVE TAKEN THAT NATIONAL SEARCH OUT. SO AGAIN, I THINK THEY ARE BEING RESPONSIVE TO WHAT THEY ARE OBSERVING NEEDS TO BE DONE TO PROTECT THE VALUES OF CALIFORNIA AND THE STATE LAW.

>> B. BLACKABY: GREAT. I THINK THE ONE PIECE OF THIS THAT WOULD BE EVEN BETTER, SOUNDS LIKE YOU ARE WORKING TOWARD THIS. AT THE TIME THE SEARCH IS INITIATING, IF THERE'S A PROBLEMATIC REASON, RIGHT NOW, RATHER THAN AFTER THE FACT. I DON'T KNOW HOW CLOSE WE CAN GET TO THAT.

>> I THINK THE CHALLENGE YOU WOULD HAVE; YOU WOULD HAVE TO THEN VERIFY ANY SEARCH THAT CAME IN. SOME OF THESE ARE VERY TIME SENSITIVE, TRACKING A VEHICLE AS IT IS TRAVELING THROUGH JURISDICTIONS. SO WE WOULD WANT TO BE CAREFUL AROUND NOT

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HAMSTRINGING THE PROCESS SO MUCH THAT YOU WOULD LOSE THE CONNECTION TO WHERE THAT PERSON WAS TRAVELING.

>> B. BLACKABY: I HEAR ALSO, WELL IT'S PUBLICLY REVEALED THAT THE CHP WAS ONE OF THE ENTITIES. DOES THAT MEAN WE ARE NO LONGER SHARING WITH THE CHP?

>> THAT'S CORRECT. ANOTHER CLARIFICATION, THE LANGUAGE THEY PUT IN THERE FOR US IS CONCERNING BECAUSE IT MENTIONS I.C.E. BUT SB 54 IS CLEAR, YOU CANNOT SHARE INFORMATION THAT IS FOR IMMIGRATION-RELATED PURPOSES. FOR ALL WE KNOW AND WE DON'T KNOW THAT CHP HAD A LEGITIMATE LAW ENFORCEMENT PURPOSE TO DO THAT SEARCH OTHER THAN FOR IMMIGRATION REASONS, LIKE THEY GOT A TIP AROUND SOME CRIME THAT I.C.E. IS LOOKING AT, THEY RAN THAT SEARCH AND USED THE INFORMATION INTERNALLY AND DIDN'T SHARE IT WITH THE FEDERAL AGENCY, RIGHT. BUT WE DON'T KNOW. AND THAT'S OKAY THAT WE DON'T KNOW, WE JUST CUT OFF SHARING. MY STANCE IS IF THEY NEED SPECIFIC INFORMATION ABOUT BERKELEY THEY CAN CALL AND SAY WE ARE WORKING THIS SPECIFIC CASE AND WE WILL CONSIDER WHETHER OR NOT WE WILL ALLOW THEM TO ACCESS FOR THAT PURPOSE.

>> B. BLACKABY: THANK YOU VERY MUCH. APPRECIATE IT.

>> MAYOR ISHII: THANK YOU, NOW GOING TO COUNCILMEMBER TREGUB?

>> I. TREGUB: GREAT. COUNCILMEMBER BLACKABY ASKED ALL MY QUESTIONS. NO. I THINK ONE, BUT FIRST I WANT TO START BY

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APPRECIATING THIS REPORT. AND YOU KNOW, AS SOMEONE WHO I THINK WORKED ALONGSIDE A UNITED COUNCIL ON THE IMPORTANCE OF HAVING AN AUDIT, THIS IS WHY, THIS IS EXACTLY WHY WE DO IT. WE DID RECEIVE A LETTER FROM THE PAB. AND I WANTED TO HONE IN OR PERHAPS DOUBLE CLICK PER A PREVIOUS SPEAKER ON A COUPLE OF POINTS IN PARTICULAR. THEY WERE SUGGESTIONS AROUND SHORTENING THE TIMEFRAME OF NOTIFICATION OF A POTENTIAL DATA BREACH. AND MEMORIALIZING REMEDIAL CONTROLS THAT YOU IMPLEMENTED IN POLICIES 1304 AND 1305. CAN YOU SPEAK TO BOTH, WHATEVER BACKGROUND YOU MIGHT BE ABLE TO SHARE. ALSO, IF YOU HAVE A POSITION ON EITHER OR BOTH OF THOSE RECOMMENDATIONS?

>> YEAH, OF COURSE, I COULD START WITH THE POLICY ONE. I'M ALWAYS VERY CAREFUL TO MAKE SURE WE HAVE GOOD AUDIT PROCESSES. AT THE SAME TIME WE DON'T CREATE ADMINISTRATIVE BURDENS UNNECESSARILY. AN ADMINISTRATIVE BURDEN COULD INCLUDE POLICY UPDATES OR COUNTING OR MEASURING OR CAPTURING INFORMATION THAT IS BETTER RECORDED ELSEWHERE. MY POSITION IS TO BE VERY CLEAR ON THE FACT THAT WE ARE NOT, IF WE HAVE ANY REASON TO BELIEVE AN AGENCY IS NOT FOLLOWING THE RULES WE'RE NOT GOING TO SHARE WITH THEM. SO AT THE POINT WHERE WE FIGURE OUT WHAT EXACTLY WE NEED TO DO TO MAKE THAT CLEAR, WE CAN MEMORIALIZE IT IN POLICY. BUT THE PROTECTIONS THAT FLOCK IS PUTTING IN NOW, THE PROTECTIONS

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THAT WE PUT IN, THE WAY THAT THEY HAVE STOPPED ACCESS FOR STATE, YOU KNOW WHAT I MEAN, I DON'T WANT TO BUILD SOMETHING INTO OUR POLICY THAT REQUIRES US TO DO EXTRA AUDIT STEPS THAT ARE UNNECESSARY BECAUSE THOSE ARE IN PLACE. MY POSITION IS ONCE WE FINISH THIS FIRST AUDIT, WE ARE MONITORING THE DATA MORE, WE WILL LOOK TO OPEN UP THE POLICY ONCE WE KNOW A LITTLE MORE ABOUT WHAT IMPLEMENTATION FLOCK'S DONE. AND JUST REMIND ME WHAT THE SECOND ONE WAS?

>> I. TREGUB: SHORTENING THE TIMEFRAME FOR NOTIFICATION TO COUNCIL?

>> YEAH, OF COURSE. RIGHT NOW WE DO SIX MONTH AUDITS ON THIS TECHNOLOGY. AND ALSO WITH THE SANCTUARY CITY ORDINANCE THERE IS VERY SPECIFIC REPORTING REQUIREMENTS THAT INDICATE A MUCH FASTER TURN AROUND TIME ON REPORTING. WHAT BECAME ABUNDANTLY CLEAR FOR ME FOR PREPARING FOR THIS AND HAVING CONVERSATIONS WITH COUNCIL IS THAT YOU WANT TO KNOW MORE INFORMATION SOONER SO WE CAN MAKE INFORMED DECISIONS. AND YOU KNOW, I ALWAYS WANT TO MAKE SURE I'M GIVING YOU GOOD INFORMATION BEFORE I SHARE. BUT MESSAGE HAS BEEN RECEIVED THAT COMING SOONER AND TALKING ABOUT WHAT WE ARE OBSERVING OR AT LEAST WHAT WE ARE WORKING ON. WE PUT SOME SAFETY MEASURES IN PLACE, LET US DO THE AUDIT AND FIGURE OUT WHAT'S GOING ON. I'M VERY MINDFUL OF THE EMOTIONAL EFFECT AND ANXIETY

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IT COULD CAUSE BY PUTTING SOMETHING OUT THERE AROUND IMMIGRATION-RELATED ISSUES BEFORE THEY ARE VERIFIED. WE HAVE BEEN SHARING BEST PRACTICES WITH OUR COMMUNITY. LIKE DON'T LET RUMORS OR MISINFORMATION BECOME SPREAD LIKE WILDFIRE AND FRIGHTEN PEOPLE MORE. WE ARE CREATING TRAUMA FOR PEOPLE WE DON'T WANT TO CREATE. BUT WE WANT PEOPLE TO KNOW WE ARE PAYING A TEP SHUN AND HAVE GOOD OVERSIGHT. VIA THE CITY MANAGER'S OFFICE I WILL BE SHARING MORE WHEN WE HAVE THINGS LIKE THIS IN OUR PROCESS.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANK YOU FOR THIS PRESENTATION. AND REPORT. IT'S VERY INTERESTING. YOU HAVE DEFINITELY ALREADY ANSWERED THIS QUESTION BUT I'M GOING TO FRAME IT IN A SLIGHTLY DIFFERENT WAY, MOSTLY FOR THE PUBLIC. CAN YOU EXPLAIN YOUR UNDERSTANDING BRIEFLY OF WHAT HAPPENED WITH THE FLOCK LPR DATA IN ILLINOIS AND ALSO IN TEXAS THAT WAS IN THE NEWS A FEW MONTHS AGO. AND WHY, I'M ASSUMING THIS IS THE CASE FOR YOU, WHY YOU ARE CERTAIN THAT NOTHING LIKE THAT COULD HAPPEN HERE?

>> YEAH, SO JUST LIKE THERE WAS A STATEWIDE LOOK-UP FUNCTION WE TURNED OFF WHEN WE NOTICED SOME CALIFORNIA AGENCIES PUTTING INAPPROPRIATE SEARCH REASONS IN, THERE IS ALSO A NATIONWIDE

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LOOK-UP FUNCTION. AND THAT'S HOW ANY OF THE ILLINOIS DATA MADE IT ANYWHERE ELSE. BECAUSE THAT TOGGLE WAS TURNED ON IN THOSE ILLINOIS JURISDICTIONS. WE TURNED THAT OFF EARLY ON AS WE WERE JUST SETTING UP THE SYSTEM AND HAVE CONFIRMED THAT IT WORKS, THAT NO OUT-OF-STATE AGENCIES ARE ABLE TO SEARCH ACROSS OUR NETWORK.

>> S. O'KEEFE: THANKS. AND ISN'T THERE SOMETHING WHERE CALIFORNIA IS ACTUALLY TOTALLY SEPARATED? IS THAT TRUE OR JUST SOMETHING I HEARD?

>> NO, THAT IS EXACTLY RIGHT. FLOCK HAS, EARLIER THIS YEAR, THE BEGINNING OF THE YEAR, JUST MADE IT IMPOSSIBLE FOR CALIFORNIA AGENCIES TO OPT INTO THAT FEATURE.

>> S. O'KEEFE: THAT'S DOPE.

>> MAYOR ISHII: COUNCILMEMBER BARTLETT. I KNOW YOU HAD YOUR HAND UP EARLIER. DID YOU HAVE QUESTIONS?

>> B. BARTLETT: I DID, BUT THEY ARE ALL ANSWERED.

>> MAYOR ISHII: OKAY, GREAT. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU, I HAVE A FOLLOW-UP QUESTION FROM COUNCILMEMBER O'KEEFE. I'M CURIOUS WHY IF THE NATIONAL DATABASE TOGGLE WAS OFF, WHY THE CALIFORNIA TOGGLE WAS NOT, WAS ON.

>> WELL WE OPERATED UNDER THE ASSUMPTION THAT CALIFORNIA AGENCIES WOULD FOLLOW STATE LAW. AND AS SOON, BECAUSE SB 54

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PREVENTS AGENCIES FROM SHARING ANY IMMIGRATION-RELATED ALPR DATA. AS SOON AS WE GOT THE INDICATION THAT MIGHT NOT BE THE CASE, WE TURNED IT OFF.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR ISHII: OTHER QUESTIONS FROM COUNCILMEMBERS? OKAY, I HAVE SOME QUESTIONS AS WELL. I WANT TO SAY THAT MY QUESTIONS ARE FOCUSED IN VERY NARROWLY ON SPECIFIC PARTS OF THESE REPORTS. SO I WANT TO ACKNOWLEDGE THAT YOU HAVE DONE GREAT WORK. AND THIS REPORT IS SO MUCH MORE THAN THE SPECIFIC THINGS I'M FOCUSING ON. I HAVE OTHER COMMENTS LATER. BUT I'M ALSO INTERESTED IN THIS PIECE AROUND DATA AND ACCESS AND I KNOW YOU MENTIONED, ARLO ON OUR TRANSPARENCY HUB WHICH JURISDICTIONS HAVE ACCESS. IF YOU DON'T MIND TELLING US, IF YOU KNOW, TELL US OFF THE TOP OF YOUR HEAD OR PULLING IT UP, WHICH JURISDICTIONS HAVE ACCESS. OR MAYBE YOU CAN MORE EASILY SPEAK TO WHICH CONDITIONS THEY CAN, WHAT CONDITIONS THEY HAVE TO AGREE TO, IN ORDER TO ACCESS OUR DATA?

>> YEAH, IN SHORT, THEY HAVE TO SIGN A LETTER. AND THERE'S A LINK TO THAT LETTER IN OUR POLICY, PROBABLY EVERYBODY CAN SEE THAT. CONFIRMING THAT THEY ARE GOING TO FOLLOW THE STATE LAW AROUND OUR SANCTUARY STATE VALUES, AS WELL AS OUR LOCAL POLICY ON SANCTUARY CITY. SO ONCE THEY SIGN THAT, NOT BEFORE THEY SIGN THAT DO WE GIVE THE ONE-TO-ONE SHARING ACCESS. IF YOU GIVE ME A

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SECOND I WILL LOOK UP THAT LIST.

>> MAYOR ISHII: SURE. AND YOU DON'T HAVE TO READ OFF ALL. ALAMEDA COUNTY.

>> IT'S LIKE 14 JURISDICTIONS IN THAT GREATER AREA.

>> AGAIN, IT'S NOT EVERY AGENCY IN THE COUNTIES. THAT WAS JUST A PRECONDITION TO EVEN BEING ALLOWED. YOU HAVE TO SIGN THAT LETTER AND NOT DO ANY SEARCHES THAT RAISE OUR FLAGS. SO THOSE TWO THINGS.

>> MAYOR ISHII: AND JUST AGAIN, TO HELP THE PUBLIC UNDERSTAND THE TIMELINE OF THIS. WHEN DID WE CUT OFF ACCESS TO THE CHP AND OTHER JURISDICTIONS OUTSIDE OF THE BAY AREA?

>> WE ISSUED THE AUDIT IN LATE JULY AND THAT'S WHEN I SAW ANY INDICATION THERE MIGHT BE IRREGULAR USE. WE CUT THAT OFF IMMEDIATELY AT THAT POINT.

>> MAYOR ISHII: OKAY, THANK YOU. FOR THOSE WHO DON'T FEEL CONFIDENT THAT A DROP-DOWN MENU IS SUFFICIENT, THAT PEOPLE MIGHT THINK THEY CAN LIE AND SAY THEY WERE DOING IT FOR ONE PURPOSE BUT REALLY IT WAS FOR SOMETHING THAT VIOLATED OUR POLICY, IS THERE ANY OTHER INFORMATION THAT IS REQUESTED ON FLOCK, CASE NUMBER, BADGE NUMBER, MORE INFORMATION WOULD BE HELPFUL THERE.

>> YEAH, CASE NUMBER IS ALSO A FIELD THAT WE REQUIRE OF OUR OFFICERS TO ENTER. AND ALL OF THAT IS COLLECTED AND LOGGED ON

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THE AUDITS.

>> MAYOR ISHII: THANK YOU, THAT'S HELPFUL. AND CAN YOU ALSO EXPLAIN, I THINK IT COULD BE CONFUSING FOR FOLKS, YOU KNOW, YOU WERE SAYING, CHIEF, I TOTALLY UNDERSTAND YOU NEED TO LOOK INTO WHETHER OR NOT A CASE, IT SAID I.C.E. FOR INSTANCE OR D.H.S., CAN YOU EXPLAIN HOW A SEARCH LIKE THAT DOESN'T NECESSARILY MEAN THE SEARCH VIOLATED.

>> THERE WAS ONE SEARCH REASON THAT WAS DHS. WE TALKED ABOUT THIS, IT DID NOT STAND FOR DEPARTMENT OF HOMELAND SECURITY, IT WAS DESERT HOT SPRINGS P.D. THE EXAMPLE I GAVE EARLIER, IT MIGHT SAY CBP OR I.C.E. BUT THE JURISDICTION MAY HAVE RECEIVED SOME CRIME INFORMATION ABOUT AN INDIVIDUAL THAT I.C.E. WAS WORKING A CASE FOR A CRIME. WHATEVER THAT CRIME WAS. IN THE STATE OF CALIFORNIA, IN THE UNITED STATES. THEY WERE INVESTIGATING A CRIME. SO THEY TOLD THE JURISDICTION, HEY, YOU HAVE SOMEBODY LIVING IN YOUR CITY WE THINK IS A SUSPECT IN A HOMICIDE OR SOMETHING LIKE THAT, AND WE ARE LETTING YOU KNOW, WE ARE WORKING ON THE CASE OR WHATEVER. THAT AGENCY, I WOULD WANT TO KNOW IF THERE WAS SOMEONE LIVING IN THE COMMUNITY THAT WAS A POTENTIAL HOMICIDE SUSPECT. THAT OFFICER MIGHT RUN THE SEARCH. AND THE REASON THEY ARE RUNNING THE SEARCH IS I.C.E. GAVE THEM INFORMATION. WE DON'T KNOW FOR SURE THAT MEANS THEY THEN TURN TO

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I.C.E. AND SAY HEY THAT CAR GOT PICKED UP ON OUR LICENSE PLATE READER, IT MEANS THE AGENCY RAN THAT SEARCH AND THE REASON THEY CONSIDERED TO RUN THAT SEARCH WAS BECAUSE, AGAIN, THAT'S ME FILLING IN A LOT OF BLANKS AND GIVING A LOT OF GRACE TO SOMEBODY DOING IT RIGHT. BUT AGAIN, I DON'T WANT TO ASSUME SOMEBODY WAS DOING IT WRONG AND VIOLATING STATE LAW. BECAUSE THEY WOULD BE, IF THEY DID THE SEARCH FOR I.C.E. FOR IMMIGRATION ENFORCEMENT RELATED ACTIVITIES, THAT IS AGAINST THE LAW. THAT'S NOT SOMETHING WE WOULD ALLOW IN OR CITY.

>> MAYOR ISHII: THANK YOU. ARLO, YOU SAID OUR OFFICERS NEED TO PUT THE CASE NUMBER IN FLOCK. DOES THAT GO FOR EVERYONE OR JUST OUR OFFICERS?

>> EVERYBODY ELSE HAS THE ABILITY TO. THIS IS ANOTHER FEATURE WE HAVE BEEN REQUESTING OF FLOCK, THAT ANY SEARCH.

>> MAYOR ISHII: SO CURRENTLY WE CAN'T REQUIRE THAT. OKAY. THAT'S GOOD TO KNOW. AND THEN CHIEF, COULD YOU ALSO SPEAK TO WHY WE CAN'T TELL EXACTLY WHAT IT WAS THAT CAME UP WHEN THEY SEARCHED? OR MAYBE ARLO CAN.

>> YOU ARE ASKING WHY WE CAN'T KNOW WHY A STATEWIDE SEARCH DID HIT OR NOT HIT IN BERKELEY. IT'S JUST NOT A FEATURE THAT FLOCK OFFERED BACK THEN. THEY ARE STARTING TO ROLL OUT A FEATURE, FOR CERTAIN SEARCH TYPES WOULD ALLOW US TO KNOW IF THAT SHOWED UP ON

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OUR NETWORK OR NOT. MY UNDERSTANDING IS IT'S NOT COMPLETE EITHER.

>> MAYOR ISHII: THANK YOU, THAT'S HELPFUL TO UNDERSTAND THE LIMITATIONS THERE. OKAY, I THINK THOSE ARE ALL OF MY QUESTIONS. DO WE HAVE PUBLIC COMMENT? DO YOU HAVE PEOPLE WHO HAVE TIME TO GIVE YOU?

>> [OFF MIC]

>> MAYOR ISHII: GO AHEAD. HOLD ON, SORRY. OKAY.

>> GOOD EVENING, HONORABLE MAYOR, COUNCILMEMBERS. I HAD A SPEECH PLANNED FOR THIS EVENING BUT I'M A LITTLE MORE OPTIMISTIC AFTER COMING HERE AND LISTENING TO THE COMMENTS. I'M HERE TO SPEAK ON THE ANNUAL SURVEILLANCE TECHNOLOGY REPORT. THAT'S PRECISELY THE KIND OF USE OUR POLICIES PROHIBIT. YOU WOULD THINK BASED ON THE CONVERSATION THE DEPARTMENT CONCLUDED THERE WAS A VIOLATION BUT IT DIDN'T, I WANT TO ACKNOWLEDGE THE REMEDIAL ACTIONS BPD TOOK. INCLUDING CUTTING OFF SHARING FROM RESPONSIBLE AGENCIES. I THINK COUNCILMEMBER'S TREGUB'S COMMENTS ARE ON POINT. IN BERKELEY POLICE POLICY THERE SHOULD BE A PROVISION THAT SPECIFIES THAT ANY RESPONSIBLE AGENCY THEIR DATA SHOULD BE CUT OFF IN THE CASE OF A VIOLATION. BECAUSE THE AUDIT REPORT DIDN'T FIND THERE WAS A VIOLATION, I DON'T KNOW HOW UNDER THAT POLICY THERE WOULD BE THAT CUT-OFF. SO THERE'S A BIT OF A DISJOINT THERE. IS MY TIME

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UP?

>> MAYOR ISHII: YOU HAVE TWO MINUTES BECAUSE NO ONE ELSE IS SPEAKING.

>> GREAT. I ALSO WANT TO POINT OUT THAT THE PROVISION AROUND NOTIFICATION IS IMPORTANT. IT'S IMPORTANT FOR TRANSPARENCY AND FOR PUBLIC TRUST. I HAVEN'T HEARD PRECISELY WHEN THE DEPARTMENT DISCOVERED THIS INFORMATION, I ONLY KNOW IT WAS IN JULY. IT WAS AROUND THE TIME OF THE CONVERSATION THE FLOCK CAMERAS FOR THE FIXED EXTERNAL SURVEILLANCE USE. I THINK COUNCIL WOULD HAVE BEEN INTERESTED IN THIS DISCUSSION AND IN THIS CONVERSATION WHEN IT WAS CONSIDERING THAT. BECAUSE WHEN COUNCIL WAS CONSIDERING THAT, IT ACTUALLY WAS IMPLEMENTING AN AUDIT PROCEDURE WE TOOK FROM THE ALPR DATA WHICH IT IS CONSIDERING TODAY. I THINK THIS CONVERSATION COULD HAVE BEEN HAD IN JULY HAD THAT NOTIFICATION PROCESS BEEN IN PLACE. THANK YOU.

>> MAYOR ISHII: THANK YOU. IS THERE ANY OTHER PUBLIC COMMENT HERE? OR ANYONE ELSE ONLINE?

>> CITY CLERK: ONE SPEAKER, THEO GORDON.

>> HI, COUNCILMEMBERS. I GUESS IT'S A SLOW NIGHT TONIGHT. JUST HAD A COUPLE QUICK QUESTIONS. I'M GLAD THAT THE POLICE CHIEF HAD DONE THIS AUDIT AND SHUTTING DOWN UNAUTHORIZED ACCESS. I GUESS I WOULD JUST ASK IF THERE ARE PROVISIONS IN THE CONTRACT FOR

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DAMAGES IF FLOCK WERE TO LEAK DATA TO OUT-OF-STATE OR FEDERAL ACTORS, WHETHER ACCIDENTAL OR INTENTIONAL. AND CURIOUS IF FLOCK COULD BE SUBPOENAED BY FEDERAL ACTORS AND GET AROUND OUR DATA SHARING RULES? THANK YOU.

>> MAYOR ISHII: THANK YOU, WAS THAT THE ONLY COMMENT?

>> THAT WAS THE ONLY COMMENT.

>> MAYOR ISHII: ALL RIGHT, THEN. COMING BACK TO COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU VERY MUCH. I WANT TO THANK THE CHIEF AND ARLO FOR YOUR CONTINUED COMMITMENT TO THE CITY'S VALUES. FOR YOUR DECISIVE ACTION TO CUT OFF ACCESS AND LIFT UP THE WORK OF MY COLLEAGUES ON THE DAIS, OUR COUNTERPARTS ON THE PAB, THE CITY MANAGER'S OFFICE, AND CITY ATTORNEY'S OFFICE FOR OUR COLLABORATIVE AND PROACTIVE EFFORTS TO PUT THESE SAFEGUARDS IN PLACE. THANK YOU. WITH THAT I MOVE ADOPTION OF THE STAFF RECOMMENDATION.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I WAS WONDERING IF STAFF COULD FIRST ANSWER SOME OF THE QUESTIONS THAT THE COMMENTER HAD. I WROTE DOWN ONE BUT I DIDN'T WRITE DOWN THE OTHER. IF THE FEDS CAN ACCESS THE INFORMATION THROUGH SUBPOENA, JUST FOR THE PUBLIC'S

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BENEFIT.

>> YEAH, SO FLOCK'S POSITION IS ITS NOT THEIR DATA TO RELEASE, IT BELONGS TO US. IF THEY WERE APPROACHED FOR A REQUEST FOR DATA THEY WOULD IMMEDIATELY, PURSUANT TO THE CONTRACT NOTIFY THAT HAPPENED AND POINT THEM TO US. AT WHICH POINT WE WOULD SAY NO THANK YOU.

>> C. LUNAPARRA: THANK YOU, DID ANYONE CATCH THE OTHER QUESTION?

>> T. TAPLIN: YEAH, WHETHER THE CONTRACT HAD PROVISIONS FOR REMEDY IF DAMAGES.

>> I WANT TO MAKE A REALLY INTERESTING NUANCED POINT TO THAT TOO. WHICH IS, THE CONCERNING SEARCHES OR THE PROBLEMATIC TRYING TO ACCESS FOR AN IMPERMISSIBLE POINT WAS A LAW ENFORCEMENT AGENCY. IT WASN'T THE VENDOR. FOR THIS EXAMPLE GIVEN, IT WOULDN'T BE THE VENDOR WAS IN BREACH OR VIOLATED A TERM OF THE CONTRACT. BECAUSE THEY WEREN'T THE ONE WHO DID THE IMPERMISSIBLE SEARCH, IF IT WAS AN IMPERMISSIBLE SEARCH.

>> C. LUNAPARRA: THANK YOU. JUST TO FOLLOW-UP ON THAT. IF IT WERE TO BE FLOCK'S FAULT AND NOT ANOTHER AGENCY, WHAT, IS THERE A PATH FOR REMEDY?

>> SO THE SANCTUARY CITY CONTRACTING ORDINANCE ALLOWS THAT IF THERE'S A BREACH OF CONTRACT THAT WE ARE ALLOWED TO CALL OUT THAT BREACH WITH A CARE PERIOD AND CANCEL THAT CONTRACT IF THEY

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ARE IN VIOLATION.

>> C. LUNAPARRA: BUT NO DAMAGES OR FINES, CORRECT?

>> I DON'T BELIEVE SO.

>> C. LUNAPARRA: OKAY, THANK YOU. AND THEN I WAS WONDERING IF YOU COULD SPEAK TO THE OTHER PAB CHAIR'S COMMENT ABOUT THE PAB REQUEST THAT THIS BE SENT TO THEM AHEAD OF SUBMITTING FOR COUNCIL REVIEW? AND IT WAS IN THEIR LETTER TOO.

>> THAT THE?

>> C. LUNAPARRA: THE REPORT. THE AUDIT REPORT.

>> THEY HAD 30 DAYS WITH IT BEFOREHAND. I WOULD WANT TO HEAR FROM THEM HOW LONG THEY WOULD NEED. OUR TURN AROUNDS ARE REALLY TIGHT RIGHT NOW BECAUSE WHERE THE AUDIT ENDS AND PREPARATION OF THE SURVEILLANCE DATA RUNS UP WITH OCTOBER WITH FIRST MEETING IN NOVEMBER. I WOULD WANT TO HEAR HOW MUCH MORE THAN 30 DAYS THEY NEED TO LOOK AT IT, BUT CERTAINLY 30 DAYS WE COULD DO.

>> C. LUNAPARRA: THANK YOU. I WANT TO THANK THE CHIEF AND ARLO FOR YOUR IMMENSE WORK THAT WENT INTO THIS AUDIT. I ALSO WANT TO TALK; I'M STILL VERY CONCERNED ABOUT NEW TECHNOLOGY THAT COULD PUT OUR NEIGHBORS AT RISK. THE SITUATION SHOWS WE CAN'T ANTICIPATE ALL SITUATIONS AND ALL CONSEQUENCES BECAUSE WE DON'T KNOW WHAT WE DON'T KNOW. AND WE DON'T KNOW A LOT WHEN IT COMES TO NEW TECHNOLOGY LIKE MASS SURVEILLANCE. AND WITH THAT, I THINK

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IT WOULD HAVE BEEN PRODUCTIVE TO CONFER WITH THE PAB AHEAD OF BRINGING THIS TO COUNCIL. I ALSO, WE ALSO HAVE THESE AUDITS IN PLACE FOR A REASON. I WANT TO THANK THE CHIEF AND HER TEAM FOR TAKING IT SERIOUSLY. I WANT US TO CONTINUE TAKING IT SERIOUSLY. I THINK IMMIGRANTS AND OUR VULNERABLE POPULATIONS DESERVE HONEST SKEPTICISM OF NEW TECHNOLOGY. AND I RECOGNIZE THAT ACTIONS HAVE BEEN TAKEN TO ENSURE SOMETHING LIKE THIS DOESN'T HAPPEN AGAIN. WHICH I REALLY APPRECIATE. I'M ALSO CONCERNED THAT ONE, IT HAPPENED IN THE FIRST PLACE AND TWO, COUNCIL AND THE PUBLIC DIDN'T KNOW THIS HAD HAPPENED OR THERE WAS ANY INVESTIGATION GOING ON ABOUT THE EXACT ISSUE WE WERE WORRIED ABOUT AS WE WERE PREPARED TO ENTER INTO OUR NEXT FLOCK CONTRACT. I'M CONCERNED THIS IS NOT GOING TO BE THE LAST TIME OUT OF OUR DEPTH WITH THE NEW TECHNOLOGY AND I THINK THE STAKES ARE TOO GREAT TO RISK IT. THANKS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO THANK THE CHIEF, ARLO, AND EVERYONE AT BPD FOR THEIR WORK TO CAREFULLY MONITOR AND REGULATE THE USE OF THESE TECHNOLOGIES AND PROVIDING THESE REPORTS ABOUT HOW THE TECHNOLOGIES ARE BEING USED AND WHAT, IF ANY, ISSUES ARE ARISING. THE REPORT AND CHIEF AND ARLO'S RESPONSES HERE TONIGHT CONTINUE TO GIVE ME A LOT OF

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CONFIDENCE IN BPD'S USE OF THE VARIOUS SURVEILLANCE TECHNOLOGIES WE HAVE CHOSEN TO ALLOW SO FAR. IN MY VIEW, THE IMPACTS OF OUR USE OF THESE TECHNOLOGIES, ESPECIALLY THE RECENT EDITION OF THE LICENSE PLATE READERS, HAVE BEEN INCREDIBLY POSITIVE. I'VE SEEN COMPELLING EVIDENCE THEY ARE HELPING TO DETER AND SOLVE CRIMES AND ARE WORKING AS INTENDED. THAT SAID, GIVEN WHAT'S HAPPENING AT THE FEDERAL LEVEL I THINK WE NEED TO BE CAREFUL GOING FORWARD WITH ALL OF OUR SURVEILLANCE TECHNOLOGIES. BUT KNOWING BPD IS MONITORING THE USE OF THESE TECHNIQUES AND TECHNOLOGIES AT THIS LEVEL OF DETAIL AND TAKES ISSUES OF PRIVACY AND DATA SECURITY VERY SERIOUSLY, AGAIN GIVES ME CONFIDENCE THAT WE WILL BE ABLE TO CONTINUE USING THESE PRODUCTIVELY AND RESPONSIBLY. THANKS AGAIN TO BPD LEADERSHIP AND THE OFFICERS FOR THEIR WORK TO PRODUCE THIS REPORT AND I'M PLEASED TO VOTE TO ACCEPT IT TONIGHT ONCE WE TAKE A VOTE. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER HUMBERT. WE ARE MOVING ONTO COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU VERY MUCH. AGAIN MADAM CHIEF AND ARLO. CHIEF LOUIS.

>> MAYOR ISHII: THAT'S A NEW ONE. [LAUGHTER]

>> I. TREGUB: I WOULD SAY IT'S LATE BUT IT'S NOT AS LATE AS THE LAST TIME. I WANT TO THANK YOU FOR BEING FORTHCOMING AND SO

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TRANSPARENT WITH THIS AUDIT REPORT. AS SOMEONE WHO HAS DONE ASSESSMENTS IN THE PAST, ONE ASPECT THAT WAS GRILLED INTO ME EARLY ON IS THE SPIRIT OF CONTINUOUS IMPROVEMENT. ONE THING I WANTED TO MENTION BEFORE I PROVIDE FEEDBACK FOR CONTINUOUS IMPROVEMENT, I JUST WANT TO MENTION THAT THIS REPORT IS VERY COMPREHENSIVE AND I THANK YOU FOR IT. AND I THINK IT ONCE AGAIN DEMONSTRATES THAT THE WORK OF BPD REPRESENTS REALLY THE APEX OF PROFESSIONALISM AND TRANSPARENCY. AT A VERY CHALLENGING TIME, BOTH LOCALLY AND NATIONALLY. SO WITH THAT, I DID WANT TO, I APPRECIATE HAVING THIS INFORMATION NOW. I, TOO, LIKE THE PAB CHAIR ALSO FEEL VERY COMFORTED HEARING YOUR RESPONSES. AND I HOPE THAT SHOULD SITUATIONS LIKE THESE HAPPEN IN THE FUTURE WHERE THERE MAY BE SOME QUESTIONS AS TO WHO MIGHT BE ACCESSING DATA THAT MAY POTENTIALLY IMPACT INFORMATION RELATING TO BERKELEY, THAT THE COUNCIL WOULD BE NOTIFIED. AT THE MOST EXPEDITIOUS TIME POSSIBLE AFTER JUDICIOUS INVESTIGATION HAS BEEN DONE TO VALIDATE THE INTEGRITY OF SUCH INFORMATION. I WOULD BE INTERESTED GOING FORWARD -- I ALSO WANT TO THANK THE WORK OF THE PAB. AND I THINK THERE'S AN OPPORTUNITY HERE TO CONTINUE WORKING COOPERATIVELY AND COLLABORATIVELY BETWEEN THE PAB AND BPD. AND TO THE EXTENT THAT THERE MAY BE SOME ADDITIONAL TIGHTENING THAT WOULD BE APPROPRIATE AROUND SECURING THE INTEGRITY OF OUR DATA

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AND SAFEGUARDING IT AS IT MUST BE SAFEGUARDED, I SURE WOULD BE VERY INTERESTED IN HAVING CONTINUED CONVERSATIONS AND ALSO VERY INTERESTED IN HAVING SUCH SUGGESTIONS COME BACK TO THE COUNCIL. WITH THAT SAID, YOU MENTIONED THESE WERE YOUR FIRST AUDITS. I REMEMBER WHEN WE WERE WORKING ON A POLICY AROUND THIS. THIS IS CERTAINLY THE KIND OF REPORTING STRUCTURE AND LEVEL OF COMPREHENSIVENESS THAT I HAD IN MIND. AND SO I DO BELIEVE THAT THE PROCESS IS WORKING AND SO TO THE EXTENT THAT THERE IS ALWAYS GOING TO BE ROOM FOR CONTINUOUS IMPROVEMENT, I LOOK FORWARD TO WORKING WITH YOU TO SUPPORT THE EXECUTION OF THAT AS WELL.

>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. COUNCILMEMBER BARTLETT, I KNOW YOUR HAND IS UP, SO I WILL GO TO YOU AND COME BACK OVER HERE.

>> B. BARTLETT: THANK YOU SO MUCH, MADAM MAYOR. I WANT TO THANK THE TEAM FOR PUTTING THIS TOGETHER. IN MANY WAYS IT AFFIRMS THE PROCESS WE HAD BACK IN THE DAY. CRAFTING LEGISLATION, POLICY AROUND THIS DATA AND PRIVACY RIGHTS TO THE RESIDENTS HERE. SO IT LOOKS LIKE THE DATA SHARING THAT DID OCCUR WAS INADVERTENT AND NOT MANY TIMES. THIS SEEMS TO BE PAR FOR THE COURSE IN THE ITERATIVE PROCESS FOR CREATING A COMPLIANCE MECHANISM THAT IS RESPONSIVE AND PRECISE. AND SO, THIS APPEARS TO BE A VERY NORMAL CREATION OF THAT PROCESS. AND I'M REALLY THANKFUL FOR YOUR

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RESPONSIVENESS AND LOOK FORWARD TO FURTHER ITERATIONS OF THIS AS WELL. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. THANK YOU, ARLO, THANK YOU CHIEF FOR BEING HERE, AND PAB CHAIR KITANA FOR BEING HERE AND THANK YOU FOR ROBUST DISCUSSION AND Q&A. AS WE SAID FROM THE OUTSET, I THINK THE GOOD NEWS HERE IS THE AUDIT PROCESS IS WORKING. BECAUSE THE AUDITS WE FOUND THESE THREE PROBLEMATIC SEARCHES THEY WERE FLAGGED, THE DEPARTMENT IS RESPONDING, WE HAD THIS HEARING TONIGHT AND THOROUGH VETTING OF THIS INFORMATION. TO ME, THIS IS AN EXAMPLE OF THE KIND OF GOOD EFFECTIVE OVERSIGHT WE WANT AND EXPECT. THAT'S THE CONVERSATION WE'VE HAD AND WE SORT OF PLUMED IT IN A THOROUGH WAY. I'M SURE THE PROCESS COULD BE IMPROVED; I KNOW IT CAN. I KNOW THERE COULD BE MORE COLLABORATION AS WE BUILD MORE TRUST AND JUST SORT OF RELATIONSHIPS IN THIS PROCESS. BETWEEN THE VARIOUS ENTITIES AND ANYTHING I CAN DO TO CONTINUE TO SUPPORT THAT I WOULD LIKE TO DO. ONE THOUGHT, JUST AS WE ARE KIND OF SITTING HERE, IF THERE ARE OPPORTUNITIES FROM VARIOUS TIME PERIODS TO DO KIND OF A QUICK REVIEW, TO SORT OF GET PAB EYES ON SOMETHING BEFORE IT COMES TO COUNCIL WITHOUT BOGGING DOWN THE PROCESS IN A WEEKS OR

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MONTHS EFFORT, IS THERE A WAY TO DO A QUICK CHECK OR EYES ON REVIEW AN OPPORTUNITY TO SEE SOMETHING BEFORE IT COMES HERE. I DON'T KNOW WHAT CIRCUMSTANCES OR HOW WE CAN PLAY WITH THE BROWN ACT AND NOTICING THAT IS NEEDED. BUT I WONDER IF THERE'S SOMETHING THAT CAN MEET OUR NEEDS OF EXPEDITIOUS NOTIFICATION TO COUNCIL. I WOULD BE INTERESTED IN EXPLORING THAT, AND CHIEF, IT LOOKS LIKE YOU ARE TO. I THINK MOST OF US ARE SOLD ON THIS TECHNOLOGY, THE ALPR'S ARE WORKING. AND NOW THE GOOD NEWS, UNLIKE WHEN WE FIRST ACQUIRED THE TECHNOLOGY FROM FLOCK, THERE ARE MULTIPLE VENDORS AVAILABLE TO PROVIDE THESE SORTS OF TECHNOLOGIES. I THINK THE GOOD NEWS AS THE PURCHASER OF THIS TECHNOLOGY IS NOW WE COULD BE PUTTING THESE VENDORS TO THE TEST TO OUTCOMPETE EACH OTHER NOT JUST HOW SAFE WILL THEY KEEP THE COMMUNITY BUT DATA AND GUARD PRIVACY RIGHTS OF OUR CITIZENS AND WE SHOULD FORCE THESE VENDORS TO COMPETE ON ALL OF THOSE BASES, AND I'M INTERESTED IN DOING THAT. I SUPPORT THE TECHNOLOGY; WE SHOULD HAVE THE ALPR'S BUT WE SHOULD ALSO HOLD THE VENDORS TO A HIGH REGARD. I HOPE THERE WILL BE AN OPPORTUNITY AS WE THINK ABOUT THE NEXT SORT OF WAVE OF SURVEILLANCE TECHNOLOGY TO THINK ABOUT THE DIFFERENT VENDORS, HOLD THEM ACCOUNTABLE AND HOLD THEM TO THE TEST AND MAKE THEM OUTCOMPETE TO THESE REQUIREMENTS. THANK YOU FOR THE WORK HERE AND I WILL SUPPORT THE ADOPTION OF

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THE RESOLUTION AND LOOK FORWARD TO MOVING THIS FORWARD. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR, CHIEF LOUIS, MR. MALBERG, THANK YOU FOR BEING HERE THIS EVENING. I APPRECIATE THE TRANSPARENCY YOU INCLUDED AROUND THOSE THREE CONCERNING SEARCHES AND THE QUICK ACTION THAT WAS TAKEN TO ADDRESS IT. THE REPORT AND YOUR PRESENTATION TONIGHT GIVE ME CONFIDENCE WE ARE USING THESE TECHNOLOGIES TO KEEP OUR COMMUNITIES SAFE WHILE SAFEGUARDING OUR DATA. AND AS OTHERS HAVE NOTED WE ARE SEEING REGULARLY THAT TECHNOLOGY LIKE AUTOMATED LICENSE PLATE READERS ARE HELPING US SOLVE CRIMES THAT I THINK WE WOULD HAVE A HARD TIME SOLVING OTHERWISE. I SEE YOU NODDING AT THAT. I THINK WE NEED TO KEEP IN MIND IN THIS ERA OF SHORT STAFFING, TO BE QUITE HONEST, I KNOW WE ARE WORKING AS HARD AS WE CAN TO RECRUIT OFFICERS BUT WE NEED EVERY TOOL OF AUTOMATION IN OUR TOOLBOX. I KNOW COUNCILMEMBER TAPLIN HAS BROUGHT FORWARD THE CONSIDERATION OF DRONES THAT COULD ACTUALLY ACT AS FIRST RESPONDERS WHEN OUR OFFICERS WILL TAKE MORE TIME TO GET TO THE SCENE OF A PARTICULAR ISSUE. SO I AM SUPPORTIVE OF THIS TECHNOLOGY BUT ALSO APPRECIATE THE TRANSPARENCY AND DATA BEING PROVIDED TONIGHT. SO THANK YOU VERY MUCH.

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>> MAYOR ISHII: THANK YOU, OTHER COMMENTS FROM COUNCILMEMBERS? THANK YOU ALL VERY MUCH FOR THE REPORT. I WANT TO TAKE A HUGE STEP BACK AND JUST SAY THE FACT THAT WE HAVE A POLICE DEPARTMENT WHERE OUR CHIEF REALLY PRIORITIZES THIS TRANSPARENCY, THAT WE HAVE ARLO HERE GOING OVER THIS DATA, DOING THIS AUDIT. I SPENT A LOT OF TIME ALREADY, A GOOD CHUNK OF TIME TALKING TO THE CHIEF TODAY, ASKING ABOUT SOME OF THE QUESTIONS THAT WERE BROUGHT FORWARD BY THE PAB. I JUST WANT TO THANK YOU, CHIEF, FOR TAKING THE TIME TO ANSWER MY QUESTIONS AND HELP ME UNDERSTAND DIFFERENT PIECES OF IT. AND JUST GENERALLY, I REALLY APPRECIATE HOW QUICKLY YOU ALL RESPONDED TO THE ALPR CONCERNS THAT CAME UP. AND I ALSO DO WANT TO ADD MY COMMENTS HERE ABOUT MY CONCERN OF TECHNOLOGY AND HOW IT GETS USED IN OUR CITY. OF COURSE WE ACTED VERY QUICKLY, BUT WE DON'T REALLY KNOW WHAT HAPPENED WITH THAT INFORMATION. AND I THINK THAT IS SOMETHING THAT MAKES ME CONCERNED. AND I KNOW IT'S SOMETHING THAT CONCERNS OUR COMMUNITY AS WELL. SO AS WE ARE THINKING ABOUT WAYS THAT WE CAN MAKE CHANGES, I REALLY THOUGHT IT WAS GREAT THAT BEFORE EVEN DOING AN INVESTIGATION YOU DECIDED THAT YOU WERE GOING TO JUST CUT OFF ACCESS. IF THAT'S SOMETHING THAT SHOULD BE PUT INTO WRITING, I KNOW YOU STATED CHIEF, YOU WOULD BE INTERESTED IN HAVING THAT CONVERSATION. I WOULD SAY I'M ALSO INTERESTED IN THAT. I THINK

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YOU ABSOLUTELY DID THE RIGHT THING. IT'S GOOD TO HAVE THINGS DOWN SO WE CAN ALL BE CLEAR ABOUT WHAT THAT LOOKS LIKE MOVING FORWARD. I ALSO JUST WANT TO MAKE SURE THE COMMUNITY UNDERSTANDS, AND YOU SAID THIS MANY TIMES BUT THESE ARE OUR VALUES THAT WE CARE ABOUT. WE ARE A SANCTUARY CITY. SO THIS ISN'T LIKE A GOTCHA MOMENT. WE ARE REALLY TRYING TO MAKE SURE IT'S CLEAR, OUR POLICE DEPARTMENT CARES ABOUT THIS AS WELL. I DO REALLY APPRECIATE, CHIEF, YOU MENTIONED YOU WOULD LET US KNOW AHEAD OF TIME, GIVING US A FLAG THESE THINGS ARE GOING ON. I, TOO, WOULD HAVE LIKED TO HAVE THIS INFORMATION SOONER. I KNOW COUNCILMEMBER LUNAPARRA HAS AUTHORED, AND I CO-SPONSORED A PROPOSED AMENDMENT THAT WILL REQUIRE MORE TIMELY REPORTING IN THE CASE OF A VIOLATION. I REALLY WANT TO SAY THAT'S SOMETHING I'M LOOKING FORWARD TO AND MAKING SURE THAT EVERYTHING IS REALLY TIGHT HERE. I HAVE A BUNCH OF OTHER RANDOM COMMENTS. I HEARD YOU SAY, CHIEF, YOU WOULD LIKE TO UNDERSTAND MORE, HOW MUCH MORE TIME IS NEEDED THAN 30 DAYS IF PAB NEEDS TIME. I AM HOPING YOU ALL CAN HAVE THAT CONVERSATION. I AGREE WITH COUNCILMEMBER TREGUB, I THINK THERE ARE OPPORTUNITIES HERE FOR COLLABORATION WHILE ALSO UNDERSTANDING THAT WAS NOT A REQUIREMENT OF YOU TO SEND IT TO PAB WITHIN A SPECIFIC AMOUNT OF TIME BEFORE. I REALLY WANT TO ACKNOWLEDGE THAT BUT APPRECIATE YOUR COMMENTS OR

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INTEREST IN HAVING MORE COLLABORATIVE CONVERSATIONS. AND SOMETHING ELSE I WANT TO COMMENT FOR ALL OF US TO MAKE SURE WE KNOW THIS. THIS REPORT COMES OUT THE SAME TIME EVERY YEAR. SO KNOWING THAT, I THINK IT'S GOOD FOR ALL OF US TO THINK ABOUT, WHAT IS IT WE WANT TO SEE? HOW ARE WE PREPARING FOR THIS REPORT TO COME? THAT WAY WE CAN LET YOU KNOW AHEAD OF TIME WHAT IT IS WE WANT TO SEE. ANOTHER THING I'M INTERESTED IN SEEING IS THAT IF THERE ARE SITUATIONS IN WHICH THE TECHNOLOGY ISN'T BEING USED PROPERLY, THAT EVEN IF IT'S NOT A CITIZEN COMPLAINT, THERE WAS A CONCERN BROUGHT UP IN THE PAB ABOUT, A CONCERN THAT CAME UP DURING AN INVESTIGATION ABOUT THE TECHNOLOGY. AND I UNDERSTAND THAT'S NOT SOMETHING THAT WAS REQUIRED TO BE PART OF THE AUDIT. BUT THAT'S SOMETHING I'M INTERESTED IN KNOWING, IF DURING THE INVESTIGATION THERE WAS A CONCERN ABOUT HOW THE TECHNOLOGY WAS USED, IT WOULD BE GOOD, I THINK, FOR US TO KNOW THAT. AND I BELIEVE THOSE ARE ALL OF MY COMMENTS. I WANT TO JUST THANK YOU AGAIN. I KNOW THIS IS AN IMMENSE AMOUNT OF WORK. I REALLY AM PROUD OUR OFFICERS CONDUCTED ALL PROPER SEARCHES TOO. I WANT TO NOTICE THAT AS WELL. I THINK THAT SHOWS GOOD TRAINING, GOOD VALUES, GOOD OFFICERS. I THINK THAT THE TECHNOLOGY, I REALLY SEE THE BENEFIT AND WE WANT TO MAKE SURE WE ARE USING IT IN THE RIGHT WAY. THANK YOU VERY MUCH FOR BEING ALIGNED WITH THAT. AND

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THOSE ARE MY COMMENTS. SO CAN WE TAKE A VOTE, PLEASE?

>> CITY CLERK: OKAY, TO ADOPT THE RESOLUTION TO ACCEPT THE REPORT. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YEAH.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> MAYOR ISHII: THANK YOU, THANKS, CHIEF. THANKS, ARLO. ALL

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RIGHT, THANK YOU ALL VERY MUCH. ARE WE DOING OKAY? CAN WE PUSH THROUGH? WE ARE GOING TO MOVE ONTO ITEM #12, REFERRAL TO AMEND BERKELEY MUNICIPAL CODES 3.24.120 AND 3.24.300 TO IMPROVE PROCEDURE FOR DESIGNATING LANDMARKS AND HISTORIC DISTRICTS AND STRUCTURES OF MERITS. AND COUNCILMEMBER KESARWANI AND HUMBERT YOU ARE THE SPONSORS DO YOU HAVE A PRESENTATION?

>> R. KESARWANI: YES, I WOULD LIKE TO MAKE A BRIEF PRESENTATION, MAYOR. THANK YOU FOR THE OPPORTUNITY. FIRST I WANT TO THANK EVERYONE WHO HAS ENGAGED WITH ME AND MY CO-SPONSORED ON THIS ITEM. I WANT TO THANK COUNCILMEMBER HUMBERT, BLACKABY AND LUNAPARRA FOR THEIR CO-SPONSORSHIP OF THIS ITEM. AND FIRST, I JUST WANT TO SAY THAT I HOPE THAT OUR CITY CAN DO A HISTORIC CONTEXT STATEMENT AT SOME POINT IN THE NEAR FUTURE. A HISTORIC CONTEXT STATEMENT FOR THOSE WHO DON'T KNOW IS A DOCUMENT THAT INCLUDES A COMPREHENSIVE UNDERSTANDING AND STRUCTURE FOR GROUPING INFORMATION ABOUT THE CITY'S HISTORY, HISTORIC PROPERTIES AND THE BUILT ENVIRONMENT. WE KNOW THAT THE COSTS FOR DOING A HISTORIC CONTEXT STATEMENT ARE AROUND $250,000. AND WE HAVE TRIED IN RECENT BUDGETS TO FUND AND HAVE BEEN UNSUCCESSFUL. WE WILL TRY TO PRIORITIZE THAT IN THE FUTURE. HAVING SAID THAT, THE ITEM BEFORE US IS INTENDED AS A STOP GAP MEASURE. MYSELF AND MY COLLEAGUES, MY CO-SPONSORS WE ARE CONCERNED ABOUT WHAT WE

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HAVE CALLED SOME OF THE FRIVOLOUS ATTEMPTS TO LANDMARK STRUCTURES IN THE CITY. WE HAVE A BEAUTIFUL CITY WITH MANY VARIED STRUCTURES SOME WORTHY OF LANDMARKING. I BECAME PARTICULARLY CONCERNED WITH OUR PROCESS WHEN, AS I RECALL IN MAY, WE HAD TWO LANDMARKING APPEALS BEFORE THE COUNCIL IN WHICH A DEVELOPER HAD SUBMITTED AN APPLICATION FOR A PRELIMINARY USE PERMIT UNDER STATE LAW, SB 330 KNOWN AS THE HOUSING CRISIS ACT OF 2019. IN BOTH CASES THE DEVELOPER WAS PROPOSING A SIGNIFICANT NUMBER OF HOMES AT SITES THAT TURNED OUT TO BE UNREMARKABLE HOMES. AND THAT WAS ACCORDING TO OUR STAFF REPORT. THAT THOSE HOMES WERE NOT WORTHY OF LANDMARKING. SO WHAT WE ARE PROPOSING HERE, THIS IS JUST A REFERRAL. SO I DON'T WANT FOLKS TO GET TOO CAUGHT UP IN THE NUMBER OF SIGNATURES, WHETHER THE PROPERTY OWNER IS GOING TO BE REQUIRED TO SIGN AND HOW MANY SIGNATURES MIGHT BE REQUIRED IF THEY DO NOT SIGN. BECAUSE WE ARE ASKING OUR CITY MANAGER AND OUR CITY ATTORNEY TO TAKE A LOOK AT THIS. BECAUSE WE WANT TO MAKE SURE THAT WE ADDRESS CALIFORNIA ENVIRONMENTAL QUALITY ACT CONCERNS. AND JUST DOT OUR I'S AND CROSS OUR T'S WITH THIS. THE IDEA HERE IS TO INCREASE THE THRESHOLD FOR INITIATING A LANDMARK PETITION. AND THE REASON FOR THAT IS BECAUSE OVER THE COURSE OF MY TIME ON THE CITY COUNCIL, I HAVE HEARD ABOUT NUMEROUS ATTEMPTS. WE PROFILED FOUR CASES IN

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THE REPORT. BUT NUMEROUS ATTEMPTS TO LANDMARK WITH ESSENTIALLY THE SAME 50 PEOPLE ACROSS THE CITY SIGNING EVERY PETITION. THE CONCEPT OF INCREASING THE SIGNATURE THRESHOLD IS NOT TO PREVENT LANDMARKING BUT ENSURE A CRITICAL MASS OF PEOPLE ARE IN FACT SUPPORT OF THE LANDMARKING AND TO TRY TO HELP ENSURE THAT IT IS A LEGITIMATE SITE THAT IS REALLY WORTHY OF LANDMARKING. AND I KNOW COUNCILMEMBER TREGUB WILL PROBABLY GET AN OPPORTUNITY TO PRESENT. I DO WANT TO EXPRESS MY APPRECIATION FOR HIS ENGAGEMENT. AND THAT, I THINK THAT I'LL JUST SAY THIS TO HOPEFULLY GET US MOVING TOWARDS A RESOLUTION QUICKLY. THE CONCEPT OF ASKING FOLKS TO WAIT FIVE YEARS AFTER THE SUBMISSION OF THE PRELIMINARY APPLICATION UNDER SB 330, I AM VERY SUPPORTIVE OF THAT. I THINK IT GETS AT ONE OF THE KEY PROBLEMS WE WANT TO ADDRESS. ONCE THAT APPLICATION IS SUBMITTED, THE DEVELOPER HAS VESTED RIGHTS AND WE CANNOT CHANGE THE RULES AFTER THAT. I KNOW THIS IS SOMETHING THAT OUR CITY ATTORNEY WILL HAVE TO REVIEW IN MORE DETAIL. BUT I WOULD BE OPEN TO REFERRING THAT CONCEPT AS WELL WITH THIS. AND I DO WANT TO SAY, I STILL THINK THAT THE SIGNATURE THRESHOLD HAS TO BE INCREASED. BECAUSE IT'S NOT JUST THE BIG PROJECTS WE ARE SEEING THIS HAPPEN. TWO OF OUR CASE STUDIES ARE ABOUT SMALLER PROJECTS. WE HAD JUST A SINGLE FAMILY HOME THAT WASN'T REALLY A SIGNIFICANT SITE, IN WHICH,

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ABOUT 57 NEIGHBORS DECIDED THEY WANTED TO LANDMARK IT. AND THAT WAS DONE AFTER IT BECAME KNOWN THAT PROPERTY OWNER NEEDED TO DO SOME REMODELING SO THEY COULD BE ABLE TO HOUSE AN ELDERLY PARENT. SO I JUST WANT TO MAKE SURE WE TREAT EVERYBODY FAIRLY, THAT WE AREN'T ENSNARING HOMEOWNERS WHO HAVE SORT OF AN HONEST DESIRE TO REMODEL THEIR HOME TO MEET THEIR CHANGING FAMILY NEEDS TO BE ABLE TO DO THAT. SO LET ME PAUSE THERE. I KNOW WE STILL NEED TO TAKE PUBLIC COMMENT AND ALL OF THAT. THANK YOU VERY MUCH FOR THE OPPORTUNITY TO PRESENT.

>> MAYOR ISHII: THANK YOU. I WOULD LIKE ACTUALLY COUNCILMEMBER TREGUB, UNLESS YOU WANT TO ADD TO THE PRESENTATION, COUNCILMEMBER HUMBERT?

>> M. HUMBERT: WELL, I HAVE COMMENTS TO MAKE.

>> MAYOR ISHII: IT WOULD BE HELPFUL TO HEAR ALSO FROM COUNCILMEMBER TREGUB. AND THEN I WILL GO TO COMMENTS, SINCE HE'S ALSO GOT A SUPPLEMENTAL.

>> M. HUMBERT: I THINK THAT'S FINE.

>> MAYOR ISHII: THANK YOU.

>> I. TREGUB: THANK YOU, MADAM MAYOR. AND I, TOO, WOULD LIKE TO ECHO THE GRATITUDE EXPRESSED BY COUNCILMEMBER KESARWANI. THANK YOU FOR TEEING OFF THIS ISSUE. SO MY SUPPLEMENTAL BUILDS UPON THE ORIGINAL PROPOSAL. AND SPECIFICALLY SUPPLEMENTAL #1. IT

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PURPORTS TO DO TWO THINGS. ONE, AS HAS ALREADY BEEN MENTIONED, MANY OF THE EXAMPLES THAT WERE PROVIDED IN THE COUNCILMEMBER KESARWANI REPORT AND ALSO WHAT I BELIEVE TO BE THE CONCERN IN THE COMMUNITY IS AROUND APPLICATIONS THAT RECEIVE THEIR PRELIMINARY SB 330 ENTITLEMENT ARE THEN SUDDENLY ARE PART OF THE PROCESS OF BEING, AN APPLICATION FOR LANDMARKING GOING IN. AND SO, I HOPE THAT RECOMMENDATION DIRECTLY ADDRESSES THE CONCERN. THE SECOND PART OF THE RECOMMENDATION IS SIMPLY TO STREAMLINE THE NUMBER OF SIGNATURES TO 200 IN ALL CASES. I USE THAT NUMBER, SUPPLEMENTAL #1 WAS A STARTING POINT FOR THAT. I AM CONCERNED ABOUT STAFF TIME INVOLVED IN FIGURING OUT NOT JUST, WELL, THE STAFF TIME INVOLVED IN COUNTING 400 SIGNATURES. BUT ALSO WHAT IS GOING TO BE THE MECHANISM TO DETERMINE WHETHER THE PROPERTY OWNER OF THE APPLICATION UP FOR LANDMARKING BEING SUPPORTIVE OF IT? WHAT IS THAT GOING TO LOOK LIKE? AND YOU KNOW, WHAT HAPPENS IF, SAY, THEY DO NOT RESPOND TO IT. THE 200 NUMBER, I FEEL, THAT IS A FOURFOLD INCREASE FROM THE CURRENT NUMBER OF 50. I BELIEVE IT PROVIDES THE APPROPRIATE THRESHOLD. WHILE STILL ALLOWING THE PROCESS TO MOVE FORWARD IN CERTAIN CASES. I LOOK FORWARD TO THE DISCUSSION ON COUNCIL. I THINK THAT WE CAN FIND A MIDDLE GROUND HERE AS WELL. PERHAPS REFER BOTH TO THE CITY MANAGER AND CITY ATTORNEY. I, LIKE EVERYONE ON THE COUNCIL, SUPPORT ALL THREE P'S

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OF HOUSING. PRODUCTION, PROTECTION AND PRESERVATION. THANK YOU.

>> MAYOR ISHII: OKAY. SO THOSE WERE THE TWO PRESENTATIONS ON THE SUPPLEMENTAL, BOTH THE ITEM AND THE SUPPLEMENTALS THIS EVENING. SO I WILL GO TO COUNCILMEMBER HUMBERT. ACTUALLY WAS GOING TO TAKE QUESTIONS FIRST. DO YOU HAVE QUESTIONS AND COMMENTS?

>> M. HUMBERT: NO, I HAVE MAINLY COMMENTS. I SUPPOSE I COULD WAIT UNTIL AFTER PUBLIC COMMENT.

>> MAYOR ISHII: SORRY, I WILL PUT YOU FIRST IN THE QUEUE, HOW'S THAT. DO WE HAVE QUESTIONS FROM COUNCILMEMBER TAPLIN?

>> T. TAPLIN: YEAH, I HAVE TWO QUESTIONS. THE FIRST IS, IF SOMEONE COULD CLARIFY WHAT THE THIRD P OF THE THREE P'S. PRESERVATION OF EXISTING AFFORDABLE HOUSING. IS THAT CORRECT?

>> I. TREGUB: PRESERVING EXISTING AFFORDABLE HOUSING.

>> T. TAPLIN: IS IT CORRECT IF YOU OWN A PROPERTY AND DO NOT WISH TO LANDMARK IT, IT COULD BE LANDMARKED AGAINST YOUR WILL. IS THAT CORRECT?

>> YES.

>> T. TAPLIN: I GOT MY ANSWER.

>> R. KESARWANI: COUNCILMEMBER TAPLIN, YES. THAT IS WHAT WE HAVE FOUND IN ONE OF THE CASE STUDIES WE DESCRIBED IS A SITUATION WHERE THE PROPERTY OWNER WANTED TO REMODEL THEIR HOME AND IT WAS THE NEIGHBORS WHO INITIATED THE LANDMARKING. ULTIMATELY THEY

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REACHED A COMPROMISE. BUT IT WAS NOT SOMETHING THAT THE HOMEOWNER INITIATED. I DON'T WANT TO SPEAK FOR THEM BUT THEY DIDN'T SEEM TO SUPPORT IT INITIALLY.

>> T. TAPLIN: IT WAS DONE IN RESPONSE OF THE HOMEOWNER DESIRING TO MAKE THE PROPERTY, THE MODIFICATIONS TO ENABLE, MAKE IT POSSIBLE TO HOUSE THEIR ELDERLY FAMILY MEMBER?

>> R. KESARWANI: YES, THAT IS CORRECT.

>> T. TAPLIN: THANK YOU. NO FURTHER QUESTIONS.

>> MAYOR ISHII: THANK YOU. OTHER QUESTIONS FROM COUNCILMEMBERS? COUNCILMEMBER BARTLETT. SORRY, I SEE YOUR HAND.

>> B. BARTLETT: THANK YOU, MADAM MAYOR. AND THANK YOU, COUNCILMEMBER KESARWANI AND TREGUB FOR YOUR WORK HERE. WITHOUT A DOUBT, THE LANDMARKS PROCESS HAS BEEN TRICKY FOR QUITE SOME TIME. THE GROUP THAT SORT OF RUNS IT TENDS TOWARD A CERTAIN CULTURAL AND IGNORES OTHERS. I'VE NOTICED THIS OVER THE YEARS. AND THEN YOU ALSO, I THINK WHAT YOU ARE RESPONDING TO, WHICH I ALSO WAS VERY UPSET ABOUT. WHAT APPEARED TO US OF BEING ABUSE OF PROCESS WITH THOSE TWO PARCELS DOWNTOWN. SO I GUESS, MY QUESTION IS, I GUESS I'M TRYING TO UNDERSTAND WHAT THE PROCESS WOULD BE FOR THE CITY MANAGER TO GO THROUGH WITH THIS AND COME BACK WITH RECOMMENDATIONS, IS THAT IT? AND SECOND, MAYBE THIS IS ONE QUESTION ONLY. BECAUSE AGAIN, AS WE DO THIS, I DON'T KNOW WHAT

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THE RIGHT NUMBER IS, IS IT 200, IS IT 400? IS IT 80? I'M COGNIZANT OF THE BURDEN OF AN ORDINARY PERSON WHO HAS STUDIED SOMETHING HISTORICAL AND SHARE SOMETHING AMAZING WITH PEOPLE AND GET IT LANDMARKED. I'M COGNIZANT OF AN ORDINARY PERSON WHO IS NOT AN ACTIVIST, NOT AN ORGANIZER, NOT ONE OF US. BUT A PERSON WHO TALKED TO THEIR NEIGHBORS. I DON'T KNOW WHAT THE RIGHT BURDEN IS ON THAT PERSON. MY QUESTION, I WOULD HAVE LOVED TO HAVE HEARD THIS AT MY COMMITTEE, THE LAND USE COMMITTEE AND DISCUSSED IT WITH YOU, I WONDER WHY WE AVOIDED THE COMMITTEE PROCESS FOR THIS ONE?

>> R. KESARWANI: COUNCILMEMBER BARTLETT, IF I MAY, JUST TO ADDRESS YOUR FIRST QUESTION ABOUT WHAT IS THE APPROPRIATE SIGNATURE THRESHOLD. I THINK THAT IS, TO BE HONEST, MY BROWN ACT CIRCLE AND I STRUGGLED WITH AS WELL. AND WE DID CONSULT WITH OUR PLANNING STAFF ABOUT IT. I WANT TO REMIND YOU THIS IS A REFERRAL. I'M HOPE TO REFERRING MY VERSION AS WELL AS COUNCILMEMBER TREGUB'S VERSION, WHICH PROVIDES FOR THE STRAIGHT 200 SIGNATURES AND HAVE THAT REVIEWED BY OUR CITY MANAGER, PLANNING DEPARTMENT AND CITY ATTORNEY AND COME BACK TO US SO THAT WE CAN THEN MAKE A DETERMINATION WHAT'S BEST. WHAT I KNOW FOR SURE IS THAT 50 SHOULD BE INCREASED.

>> MAYOR ISHII: DID YOU HAVE FOLLOW-UP QUESTIONS?

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>> B. BARTLETT: JUST THE QUESTION ABOUT THE PROCESS OF THE LAND USE PROCESS. WONDERING WHY YOU DIDN'T BRING IT TO ME.

>> R. KESARWANI: THAT'S A DECISION MADE BY THE AGENDA AND RULES COMMITTEE. I WOULD DEFER TO ANYBODY ON THAT COMMITTEE WHO WOULD WANT TO SPEAK TO THAT.

>> T. TAPLIN: FOR ME, I WOULD SAY THAT GIVEN THAT THE ITEM DOESN'T RECOMMEND FINAL AMENDMENTS. IT WOULD MAKE MORE SENSE TO ME TO SEND THAT WORK PRODUCT, OR WHATEVER THEY RETURN TO THE LAND USE COMMITTEE BECAUSE THAT'S CLOSER TO WHEN THE FULL COUNCIL WOULD VOTE ON THE FINAL RECOMMENDATION. IN MY OPINION, IT'S BEST PRACTICE TO MAKE REFERRALS AS LEAST PRESCRIPTIVE AS POSSIBLE. AND I WOULD WORRY THAT HAD WE SENT THIS TO COMMITTEE THAT THE RECOMMENDATION MIGHT RESULT IN A MORE NARROW PRESCRIPTIVE RECOMMENDATION WHICH WOULD THEN RENDER THE REFERRAL TO THE CITY MANAGER AND CITY ATTORNEY NOT NECESSARILY REMOVE BUT IT WOULD KIND OF PREDETERMINE HOW COUNCIL WOULD VOTE, WHICH IS NOT IDEAL FOR THE COMMITTEE PROCESS, IN MY OPINION.

>> MAYOR ISHII: DID YOU WANT TO RESPOND TO THAT, COUNCILMEMBER HUMBERT?

>> M. HUMBERT: NO, I DON'T. ALTHOUGH I DO WANT TO JOIN IN COUNCILMEMBER TAPLIN'S COMMENTS.

>> MAYOR ISHII: I THINK I WAS THE LONE PERSON WHO WANTED TO MOVE

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THIS TO LAND USE, BUT I AGREED, I UNDERSTAND WHY YOU WANTED TO KEEP IT ON THE AGENDA. I THINK MY FEELING IS THAT OFTEN TIMES IT COULD BE REALLY VALUABLE TO SEND THINGS TO COMMITTEE SO FOLKS CAN KIND OF HAVE SOME TIME TO WORK OUT THE DETAILS AND PERHAPS COUNCILMEMBER TREGUB WOULD HAVE BROUGHT HIS PIECE TO THE LAND USE AND WE COULD HAVE FIGURED OUT WHAT IT LOOKED LIKE A LITTLE MORE TOGETHER. SO I THINK THAT WAS MY THOUGHT. NOT THAT I KNEW WHAT COUNCILMEMBER TREGUB WAS DOING, BUT IF THERE WERE OTHER OPPORTUNITIES FOR COUNCILMEMBERS TO WEIGH IN, BY THE TIME IT CAME HERE WE MIGHT BE MORE ALIGNED. BUT I DON'T THINK WE ARE FAR, I THINK IT'S OKAY. BUT I JUST ADDRESS YOUR QUESTION, COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU VERY MUCH.

>> MAYOR ISHII: YEAH. DID YOU HAVE QUESTIONS, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: ACTUALLY HAVE A QUESTION FOR THE CITY MANAGER. I'M A LITTLE SURPRISED AT HOW SORT OF LOOSE THESE NUMBERS SEEM TO BE. BECAUSE MY READ ON THIS REFERRAL, IT SEEMS PRESCRIPTIVE. LET'S SAY WE PASSED IT WITH 200. THE WAY IT'S WRITTEN IT SEEMS PRESCRIPTIVE, COME BACK WITH A RECOMMENDATION CHANGING IT TO 200. MY QUESTION TO THE CITY MANAGER, IF THIS IS PASSED, HOW MUCH LEEWAY DO YOU FEEL YOU HAVE TO PRODUCE A DIFFERENT NUMBER?

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>> CITY MANAGER BUDDENHAGEN: I WOULD WORK WITH STAFF AND THE PLANNING DEPARTMENT AND CITY ATTORNEY'S OFFICE FIRST TO ASSESS WHAT KIND OF WORKLOAD ISSUES DO WE THINK THAT MIGHT PRESENT. IF IT SEEMS MINIMAL AND PURELY A POLICY CALL I WOULD SAY 200 IS NOT AN ISSUE FOR US AT THE STAFF LEVEL FOR US TO MANAGE. SOME OF THE OTHER ASPECTS ARE PRETTY STRAIGHT FORWARD AS WELL. THERE MAY BE SOME LEGAL ISSUES WITH, I DON'T KNOW, STATE LAW. I DON'T KNOW. BUT WE WOULD CONFER WITH EACH OTHER. AND IF IT SEEMED LIKE WE WOULD NEED TO MAKE A RECOMMENDATION TO APPROVE IT ON OPERATIONAL OR LEGAL SIDE WE WOULD BRING BACK. OTHERWISE WE WOULD JUST BRING BACK WHAT YOU PROPOSED.

>> S. O'KEEFE: SOUNDS LIKE YOU WOULDN'T NECESSARILY BE MAKING A CHANGE FOR POLICY REASONS, JUST FOR LEGAL ISSUES OR STAFF ISSUES?

>> CITY MANAGER BUDDENHAGEN: CORRECT.

>> S. O'KEEFE: THANK YOU. SO IT SEEMS WE SHOULD GIVE SOME SERIOUS THOUGHT ABOUT WHAT NUMBER WE PROPOSE. I THINK THAT'S UP TO US.

>> MAYOR ISHII: AND JUST FOLLOWING UP ON WHAT YOU JUST SAID, MR. CITY MANAGER, FOR OUR CITY ATTORNEY, ARE THERE THINGS YOU WANTED TO FLAG. SOMEONE JUST MENTIONED FARIMAH MIGHT HAVE SOME THOUGHTS.

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>> I DON'T HAVE ANY THOUGHTS IN TERMS OF LEGAL ISSUES. IT'S A REFERRAL SO WE ARE GOING TO TAKE THE OPPORTUNITY TO DO A DEEP DIVE. GENERALLY, I DON'T SEE ANY RED FLAGS WITH THE PROPOSAL OR THE SUPS.

>> MAYOR ISHII: THANK YOU. AND ALSO FOR THE CITY MANAGER, A QUESTION WAS ASKED EARLIER, OR A CONCERN WAS MADE ABOUT HOW STAFF MIGHT GO THROUGH SIGNATURES. BUT MY UNDERSTANDING IS IT WOULD BE THE SAME PROCESS AS CURRENTLY DONE FOR THE 50 SIGNATURES, IS THAT RIGHT?

>> CITY MANAGER BUDDENHAGEN: THAT'S CORRECT.

>> MAYOR ISHII: COULD YOU BRIEFLY --

>> CITY MANAGER BUDDENHAGEN: STAFF DOESN'T ATTEMPT TO VERIFY EACH SIGNATURE AGAINST A VOTER ROLL OR ANYTHING LIKE THAT, WE JUST LOOK TO MAKE SURE IT'S NOT THE SAME PERSON WITH DIFFERENT HANDWRITING.

>> MAYOR ISHII: THANK YOU. ANY OTHER QUESTIONS? COUNCILMEMBER BARTLETT, DO YOU HAVE YOUR HAND UP JUST FROM BEFORE?

>> B. BARTLETT: SORRY, THAT WAS A REMNANT.

>> MAYOR ISHII: OKAY. [LAUGHTER] THANK YOU. DO WE HAVE ANY PUBLIC COMMENT ON THIS ITEM? WE ARE ON ITEM #12. WHICH IS THE REFERRAL TO AMEND BERKELEY MUNICIPAL CODES. THANKS. OKAY, WE'VE GOT SOME FOLKS COMING UP. HOW MANY ONLINE? OH A BUNCH. OKAY. I

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THINK GIVEN THAT WE HAVE MANY PEOPLE, WE WILL HAVE ONE MINUTE PER.

>> ONE MINUTE IS FINE. GOOD EVENING, I'M DR. STEPHEN ALPERT, A RESIDENT OF DISTRICT 5. I'M HERE TO OPPOSE THE UNJUSTIFIED MINOR CHANGES TO THE PRESERVATION LANDMARK ORDINANCE. THE ORIGINAL REQUIREMENT, WHICH I UNDERSTAND HAS CHANGED ONLY SUDDENLY FROM 50 TO 400 SIGNATURES IS CERTAINLY EXCESSIVE. BUT MY COMMENT WITH THE RECENT PASSAGE OF THE MIDDLE HOUSING ORDINANCE AND PROPOSED UPZONING OF THE SOLANO, COLLEGE AND NORTH SHATTUCK AVENUES, CITY STAFF AND THIS COUNCIL HAVE DEMONSTRATED COMPLETE DISREGARD FOR THE UNIQUE ARCHITECTURAL CHARACTER AND HERITAGE OF BERKELEY AND DETERMINATION TO TRANSFORM THIS CITY TO A LANDSCAPE OF NON-DESCRIPT APARTMENTS.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, I'M DR. CELEST PARKS. THE CHANGE GOING FROM 50 SIGNATURES TO 400 SIGNATURES IS EXCESSIVE. THIS COUNCIL SHOWED ITS DISDAIN WHEN IT OVERRULED THE LANDMARK STATUS, SUPPORTED BY BAJA FOR TWO PROPERTIES TO ALLOW A 20-STORY BUILDING AT THE SITE OF AN 1886 VICTORIAN AT 2421 DURANT AND 8-STORY TO REPLACE A 1906 GEORGIAN REVIVAL AT 2238 KITTRIDGE. I DO NOT SUPPORT ANY CHANGE TO THIS LAW. NOTHING IS JUSTIFIED.

>> MAYOR ISHII: THANK YOU.

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>> BRANDON YUNG, I'M THE ZONING ADJUSTMENTS BOARD. ONE OF THE ISSUES WITH SB 330, IT DOESN'T CHANGE HOW CEQA INTERACTS WITH PLANNING, I SENT YOU AN EMAIL WITH ONE OF THE PROJECTS, THERE WAS A FOUR YEAR DELAY EVEN AFTER IT WAS LANDMARKED AFTER THE SB 330 APPLICATION. I SUPPORT RASHI IN THE MAIN ITEM. WE REQUIRE OWNER CONSENT FOR THIRD PARTY PETITION. THE STATE OF WASHINGTON RECENTLY OUTLAWED LOCAL GOVERNMENTS FROM LANDMARKING PROPERTIES WITHOUT THE OWNER'S PERMISSION, STATEWIDE. THAT'S OUR PEER WEST COAST STATE. LBC CAN ALWAYS INITIATE AND THAT'S A BETTER APPROACH. IT'S MORE PUBLIC, IT'S MORE CIVIC, IT'S BETTER THAN HAVING NEIGHBORS GO BEHIND NEIGHBOR'S BACKS TO TRY TO DESIGNATE LANDMARKING TO PREVENT PERMITTING. WE ARE IN NEED OF MORE REFORM. THANK YOU.

>> MAYOR ISHII: NOT SURE I CAUGHT THE LAST FEW WORDS BUT THANK YOU FOR YOUR COMMENT. GO AHEAD.

>> I THINK YOU CAN'T REALLY TAKE THIS OUT OF THE CONTEXT OF THE MIDDLE HOUSING EITHER. AS FAR AS THE PUBLIC BEING HEARD IT SEEMS LIKE A SLAP TO US TO CURTAIL. BECAUSE ALTHOUGH IT TAKES YOU A LOT OF TIME AND YOU MIGHT FEEL IT'S AN ABUSE OF YOUR TIME, I THINK YOU WANT TO SMOOTH OVER THE OIL HAS ROILING WHERE WE FEEL OUR TIME IS ALSO NOT RESPECTED. THE PEOPLE WHO KNOW ABOUT HISTORY AND ARCHITECTURE PROBABLY KNOW A LOT MORE THAN ANY OF

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US. AND IT TAKES A LOT OF EFFORT TO APPROACH YOUR NEIGHBORS AND GET 50 SIGNATURES.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> HI. I'M EMILIA. I WASN'T PLANNING ON SPEAKING TONIGHT. I JUST THINK AN AMENDMENT TO FURTHER DISEMPOWER YOUR CONSTITUENTS IS BOTH UNNECESSARY AND MEAN SPIRITED. AS FOR THE DISDAINFUL LANGUAGE AROUND CONSTITUENTS FRIVOLOUS, DID A BULLDOZER WRITE THIS? COME ON. THERE IS MEAN LANGUAGE IN HERE. THE CASE STUDY CITED ARE EXAMPLES OF THE CURRENT POLICY WORKING DEMOCRATICALLY AS INTENDED. YOU LISTED FOUR STORIES OF PEOPLE COMING TOGETHER TO PROTECT SOMETHING THEY LOVED AND LOSING AT THE COST OF DELAYING A BULLDOZER. YOU DIDN'T ASK THE FIREFIGHTERS WHY THEY ONLY USE HOSES ON BUILDINGS THAT ARE ON FIRE. I APPRECIATE YOU CREATED A LOGISTICAL NIGHTMARE FOR YOURSELVES. BUT THE IDEA -- OKAY.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU.

>> GOOD EVENING, COUNCILMEMBERS, I'M STEVE FINACOM ON THE LANDMARKS COMMISSION. BUT SPEAKING AS AN INDIVIDUAL. THE L.A.P.D. MARKS ORDINANCE HAS BEEN AROUND ABOUT 50 YEARS. WE HAVE ABOUT 400 LANDMARKS OUT OF ABOUT 20,000 PARCELS OR BUILDINGS IN BERKELEY. THAT'S AN AVERAGE OF ABOUT EIGHT DESIGNATIONS A YEAR.

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SINCE MANY WERE DONE IN EARLY YEARS WE HAVE HAD FAR FEWER RECENTLY, IT'S SIMPLY NOT THE CASE THIS IS POPPING UP ALL THE TIME. AND A LOT OF THE INFORMATION GIVEN TO THE COUNCIL, COUNCILMEMBER KESARWANI IS INCOMPLETE, AND I WISH I COULD SPEAK TO WHAT ACTUALLY HAPPENED ON THOSE INITIATIONS. I WANT TO SAY THAT ONE THING THAT I HOPE YOU WILL DO, FIRST I THINK YOU SHOULD REFER THE GENERAL CONCEPT, NOT EXACT SPECIFICS BUT I REALLY HOPE YOU REFER THIS TO THE LANDMARKS COMMISSION AS WELL FOR ITS COMMENTS. BECAUSE THE COMMISSION, YOUR APPOINTEES WORK REALLY HARD AND EXPERTISE TO SHARE WITH YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] MOVING ONLINE?

>> CITY CLERK: I CURRENTLY HAVE NINE HANDS RAISED ONLINE. THE FIRST SPEAKER IS DAVID SHERE.

>> HI. I AM SPEAKING IN SUPPORT OF ITEM 12, AS WELL AS SUPPLEMENTAL ONE. ARTICLE IN "BERKELEYSIDE" THAT 400 COULD BE DIFFICULT FOR NICHE STATUS. IT'S A HOBBY FOR SOME PEOPLE AND THAT IS FINE AND GOOD. I HAVE MANY HOBBIES BUT THAT HOBBY AND PREFERENCE FOR A CERTAIN AESTHETIC SHOULDN’T HAVE ANY FORCE OF LAW WHATSOEVER. THIS PROPOSAL IS A MODERATE AND TRULY INCREMENTAL REFORM. SOMEONE CALLED GOING FROM 50 TO 400 SIGNATURES EXTREME. 50 IS EXTREME. 400 IS ONE THIRD OF ONE PERCENT OF THE POPULATION. BERKELEY HAS A LONG AND STORIED

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HISTORY OF PLACING THE INTEREST OF BUILDINGS OVER THE INTERESTS OF PEOPLE. THAT'S WHAT THE LANDMARKS PRESERVATION COMMISSION WAS AND IT DEVASTATED THIS TOWN. WE NEED TO TURN AWAY FROM THAT LEGACY AND I HOPE YOU WILL TAKE A STEP IN THAT DIRECTION TODAY.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS, IT JUST SAYS IPHONE 3.

>> GOOD EVENING, MAYOR, AND COUNCILMEMBERS. THIS IS CATHLEEN CRANDALL; I'M VICE CHAIR OF THE LANDMARKS PRESERVATION COMMISSION. I'M SPEAKING TONIGHT AS AN INDEPENDENT VOICE. BUT I HAVE SERVED EIGHT YEARS ON THE COMMISSION. AND SO IF YOU FOLLOW THE VOTES, YOU KNOW I HAVE OFTEN BEEN THE DISSENTING VOICE FOR MANY OF THE SAME REASONS COUNCILMEMBER KESARWANI HAS RAISED. I AGREE WITH HER THAT REFORM IS NEEDED. WITH RESPECT TO MYSELF BERKELEY DISTRICT HAS A POINT BY COUNCILMEMBER BARTLETT, I URGE YOU TO TAKE A LITTLE MORE TIME. EVEN THOUGH LATE CHANGES FOR RAISING THE SIGNATURE THRESHOLD IT FROM 200 TO 400 DESERVES MORE DISCUSSION AND NUANCE. IT COULD MAKE IT DIFFICULT FOR SOME NEIGHBORHOODS LIKE AFRICAN AMERICAN NEIGHBORHOODS. MY CHAIR MONTGOMERY ASKED ME TO EMPHASIZE THE JAPANESE COMMUNITY.

>> MAYOR ISHII: THANKS, CATHLEEN, I'M SORRY, YOUR TIME IS UP.

>> NO PROBLEM, THANK YOU.

>> MAYOR ISHII: THANK YOU.

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>> CITY CLERK: NEXT IS WILLIAM TORCHIANA.

>> THANKS VERY MUCH. I JUST WANTED TO WEIGH IN BRIEFLY ON THIS. AND I AGREE WITH THE PRIOR COMMENTS THAT THE SPECIFICS HERE IN TERMS OF THE 50 OR 200 OR 400 OR THE 300 FOOT REQUIREMENT THAT WAS IN THE EARLIER MATERIALS REALLY NEEDS TO BE THOUGHT ABOUT. I THINK THE IDEA THAT THE CURRENT SYSTEM PRODUCES ONLY FRIVOLOUS APPLICATIONS IS VERY, VERY MISGUIDED. THE SUBSTANTIVE REQUIREMENTS FOR MAKING A LANDMARK DETERMINATION ARE ALREADY IN THE LAW OR IN THE CODE. SO THOSE SHOULD BE WHAT YOU ARE GUIDED BY. IT DOESN'T MATTER WHETHER THE NUMBER IS 50 OR 150 BUT THE SUBSTANTIVE QUESTION IF SOMETHING NEEDS THE LANDMARK DESIGNATION IS ALREADY IN THE MUNICIPAL CODE AND THAT SHOULD BE RESPECTED. I DON'T THINK YOU SHUT DOWN PEOPLE'S VOICES AND DEEM EVERYTHING TO BE FRIVOLOUS WITHOUT ALLOWING THINGS TO GO FORWARD AND BE DECIDED ON THEIR OWN MERITS. THAT'S BACKWARDS AND DENYING PEOPLE A VOICE. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS LEILA MONCHARSH. LEILA?

>> GOOD EVENING. I'M FROM BAHA, YOU PROBABLY ALREADY KNOW. I THINK I HAVE ONE MINUTE FROM ISAAC WARSHAUER. IF HE CALLED IN. I DON'T KNOW IF HE DID.

>> CITY CLERK: YES, HE DID. ISAAC, ARE YOU YIELDING YOUR MINUTE

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TO LEILA?

>> I YIELD MY MINUTE.

>> SO DO I HAVE TWO MINUTES NOW?

>> CITY CLERK: YES, YOU HAVE TWO MINUTES.

>> THANK YOU. I'M THE PRESIDENT OF BAHA. I'VE BEEN ON THE BAHA BOARD FOR 15 YEARS. I'M A LAND USE ATTORNEY. AND I HAVE QUITE A LOT OF EXPERIENCE WITH PRESERVATION. AND LET ME JUST SAY ONE SENTENCE. BECAUSE THAT'S ALL I'M GOING TO SAY ABOUT THIS. THERE'S A BIG DIFFERENCE BETWEEN EVIDENCE AND WIVES TALES. EVIDENCE AND HEARSAY. EVIDENCE AND CONJECTURE. AND WE ARE GOING TO GO AHEAD AND SPEND MORE TIME ON WHAT EVIDENCE THERE REALLY IS. BUT RIGHT NOW THERE IS THIS PENDING MATTER THAT WE NEED TO RESPOND TO. IT IS IMPORTANT. THERE'S A COMMENT THAT PEOPLE THAT DO THE ORGANIZING OR WHATEVER DON'T CARE ABOUT THE CULTURAL WHATEVER. YOU KNOW, THAT, ONE OF MY BIGGEST CONCERNS WE HAVE A MAJOR PROBLEM GOING ON WITH U.C. WITH THE SAN PABLO NEIGHBORHOOD. SAN PABLO PARK NEIGHBORHOOD. WE HAVE INVESTED A LOT OF MONEY; SAN PABLO HAS INVESTED A LOT OF MONEY. TO DO SOMETHING TO TALK ABOUT THAT NEIGHBORHOOD AND HOW IT SURVIVED MANY YEARS OF ABUSE. THAT MAY BE GOING TO THE WAYSIDE. WE HAVE TO BE ABLE TO WORK WITH THE COUNCIL. AND WE CAN'T DO THAT IF WE'VE GOT A BAD RELATIONSHIP. AND RIGHT NOW WE DON'T HAVE A VERY

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GOOD RELATIONSHIP WITH YOU FOLKS. AND THAT'S REALLY TOO BAD. BECAUSE IT MAY COST THAT PROJECT. BUT RIGHT NOW LET'S TALK ABOUT WHAT'S IN FRONT OF US. THE COUNCILMEMBER TREGUB, I APPRECIATE HIS EFFORT. I THINK HE AT LEAST ZEROED IN ON THE TWO ISSUES THAT WERE BROUGHT UP TO US. WHICH WAS SB 330 AND ALSO THE STAFF TIME. THAT'S WHAT WE GOT TOLD, THAT IT WASN'T GOING TO BE A HATE SCENE.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT WE HAVE DARRELL OWENS. DARRELL, OH THERE HE GOES. GO AHEAD. I SEE YOU ARE UNMUTED; YOU SHOULD BE ABLE TO GIVE YOUR COMMENTS. WE CAN COME BACK TO DARRELL, I SUPPOSE. SARAH BELL.

>> HI, SARAH BELL, I'M CALLING IN FROM D-1 HERE TO SUPPORT THE ITEM AND SUPPLEMENTAL 1. CALIFORNIA HAS SEEN CASES OF PARKING LOTS AND GAS STATIONS LANDMARKED IN ORDER TO PREVENT HOUSING CONSTRUCTION. LANDMARKING, IT'S POSSIBLE TO BLOCK ANYTHING WITH LANDMARKING. SO IT'S A PROCESS THAT IS VERY EASY TO ABUSE. I THINK IT'S VERY REASONABLE TO RAISE THE SIGNATURE THRESHOLD, 50 IS TOO LOW FOR A CITY OF BERKELEY'S SIZE, 200 IS MORE REASONABLE AND MAY STILL BE ON THE LOW SIDE. MIDDLE HOUSING PROJECTS ARE ALREADY VERY DIFFICULT TO PENCIL. IF THERE'S THIS BACKGROUND THREAT THAT PEOPLE WHO DON'T LIKE YOUR PROJECT, NEIGHBORS MAY

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TRY TO LANDMARK YOUR STRUCTURE THAT COULD HAVE A CHILLING EFFECT ACROSS THE CITY. ALSO THIS IS THE SAME SET OF PEOPLE SHOWING UP ON EVERY PETITION, REQUIRING NEIGHBORS WHO ARE MORE FAMILIAR WITH THE SITE TO SIGN THE PETITION IS A GREAT SOLUTION TO THE PROBLEM. THESE REFORMS ARE GREAT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: ALL RIGHT, LET'S TRY DARRELL OWENS ONE MORE TIME. DARRELL, YOU SHOULD BE ABLE TO UNMUTE AND SPEAK. WE AREN'T HEARING ANYTHING, WE WILL COME BACK TO YOU AT THE END. THERE HE IS. TRY IT AGAIN, DARRELL?

>> OKAY.

>> CITY CLERK: YEAH, ALL RIGHT.

>> I GAVE MY WHOLE COMMENT AND DIDN'T REALIZE I WASN'T BEING HEARD. BASICALLY, I REALLY LOVE THE WORK BAHA DOES AND I THINK HISTORIC PRESERVATION IS EXTREMELY IMPORTANT, SO I HAD PROBLEM WITH THE ORIGINAL ITEM. I DON'T THINK LIVING NEXT TO IT GIVES YOU ANY MORE SAY. I THINK TREGUB'S SUPPLEMENTAL NAILS THE ISSUE THAT SB 330 PROHIBITS THE USE OF LANDMARKING TO OBSTRUCT OR IMPEDE IN ANY WAY INCOMING HOUSING. EVEN IF COUNCIL HAD APPROVED FOR EXAMPLE THAT PROJECT ON DURANT IT WOULD HAVE BEEN ILLEGAL UNDER STATE LAW ANYWAYS. ESSENTIALLY CUTTING THAT OFF SO WE DON'T WASTE TIME ON THAT IS A GOOD IDEA. LONG TERM I THINK A

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BETTER APPROACH IS ASCENSUS APPROACH WHERE WE LOOK AT THE CITY COMPREHENSIVELY RATHER THAN ON A CASE-BY-CASE BASIS.

>> CITY CLERK: OKAY, THANK YOU. NEXT IS THEO GORDON.

>> HELLO, COUNCILMEMBERS. THEO GORDON, SPEAKING IN FAVOR OF THE ORIGINAL MEASURE AS WELL AS SUPPLEMENTAL ONE. IT'S CLEAR THE EXISTING PROCESS IS NOT USED TO PRESERVE RESOURCES; IT'S USED AS A VETO POINT FROM THE SAME OLD CHARACTERS WHO ARE OUT OF TOUCH WITH WHAT THE PEOPLE OF CITY OF BERKELEY VOTED FOR AND THE HOUSING CRISIS. FINACOM WENT ON A DIATRIBE. IF THE COMMISSION THINKS IT'S THEIR JOB TO UNILATERALLY VETO THE HOUSING LAWS PASSED BY BUFFY WICKS AND WASTE COUNCIL'S TIME THEY NEED TO BE REIGNED IN. THE COMMISSION KNOWS ABOUT SB330 BUT TRY TO HOLD UP PROJECTS THEY KNOW WILL BE TURNED DOWN AT COUNCIL BECAUSE OF SB 330. IF THEY ARE GOING TO BE VIOLATING THESE LAWS AND WASTING ALL OF OUR TIME WE NEED TO RAISE THIS THRESHOLD, 400, 1,000 SIGNATURES OR --

>> MAYOR ISHII: THANKS, THEO.

>> CITY CLERK: THANK YOU. NEXT IS KELLY HAMMARGREN.

>> HEY, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> OKAY. I LIVE IN A FORMERLY RED LINED AREA THAT I UNDERSTAND WAS THE NEIGHBORHOOD THAT BECAME THE CAUSE FOR THE LANDMARKING

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ORDINANCE IN THE FIRST PLACE. THERE IS A MISCONCEPTION THAT LANDMARKING STOPS CONSTRUCTION, FROM WHAT I'VE OFTEN SEEN BUILDINGS THAT WERE A LANDMARK YEARS AGO, DECADES AGO ARE DEMOLISHED ANYWAY AND WE GET A PLAQUE ON THE NEW BUILDING DESCRIBING WHAT WAS THERE. WHAT IS WORTH LANDMARKING FOR ONE PERSON MAY BE DIFFERENT FOR ANOTHER. IT WOULD HAVE BEEN GOOD TO SEND THIS TO LAND USE FIRST. IT'S REALLY DISAPPOINTING THAT IT DIDN'T GO THERE. BECAUSE WE COULD HAVE HAD A FULL RICH DISCUSSION. THE PROBLEM WITH SB 330, THOSE APPLICATIONS ARE SUBMITTED BEFORE THE PROJECT APPLICATION IS COMPLETE. WE DON'T EVEN KNOW THAT IT'S THERE. AND JUST TO THE COMMUNITY, FOR ANY MEMBER THAT NEEDS SIGNATURES --

>> MAYOR ISHII: KELLY.

>> CITY CLERK: OKAY. LAST SPEAKER IS SUSAN ORBUCH. WE HAVE ONE MORE AFTER THAT. OKAY, SUSAN, YOU SHOULD BE ABLE TO UNMUTE.

>> CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> HI. I'M ON THE LANDMARK PRESERVATION COMMISSION. I'M BEEN APPOINTED TO REPRESENT DISTRICT 5. I CAN SEE THE CONCERNS THAT YOU HAVE, ESPECIALLY BASED ON THE APPEALS THAT HAVE COME BEFORE YOU OVER THE LAST YEAR. REGARDING TO SB 330 APPLICATIONS THAT CAME BEFORE YOU, THERE WAS SOME QUESTION AS TO WHETHER IT WAS

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OKAY TO LANDMARK SOMETHING THAT ALREADY HAD AN APPLICATION IN THAT WOULD NOT APPLY TO THE DEVELOPMENT, BUT ONLY IF THAT DEVELOPMENT APPLICATION ENDED UP NOT GOING THROUGH OR EXPIRING APPLYING AFTER THE FACT. I THINK WHAT'S HAPPENED IS DURING THE PROCESS THAT WAS EVALUATED AND FOUND THAT'S NOT HOW THE CITY OR PERHAPS EVEN THE STATE, ALTHOUGH WE ARE NOT CLEAR, INTERPRETS IT. SO I DON'T THINK YOU WILL SEE THE COMMISSION TAKING THAT STUFF IN THE FUTURE. NOW IT'S CLEAR HOW WE ARE INTERPRETING THE LAW. I WOULD RECOMMEND YOU ADD A NOTE TO THE WEBSITE.

>> MAYOR ISHII: I KNOW YOU ARE CUTTING YOU OFF, IF YOU WANT TO FINISH THAT THOUGHT, FEEL FREE TO EMAIL THAT COMMENT. I WANT TO KNOW WHAT IT WAS.

>> CITY CLERK: LAST SPEAKER IS WILHEMINA CONDON.

>> HELLO, CAN YOU HEAR ?E? ME?

>> CITY CLERK: YES.

>> I MOVED TO BERKELEY IN 1974. AND I'VE WATCHED THE CHANGES. I JUST WANT TO SAY BERKELEY IS UNIQUE. IT IS, YOU ARE GOING TO KILL THE GOOSE IF YOU KEEP GOING ON PUTTING IN THESE STEEL STRUCTURES THAT ARE EIGHT STORIES HIGH THAT ARE ARCHITECTURALLY UGLY. THERE'S NO OTHER WAY TO DESCRIBE IT. STEEL AND GLASS IN NORTH BERKELEY, ACROSS THE STREET FROM CHEZ PANIS. PEOPLE COME FROM ALL OVER THE WORLD FOR OUR NEIGHBORHOOD FEEL, FOR THE

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QUALITY OF THE COMMUNITY. YOU ARE MAKING IT LOOK LIKE ANOTHER CORPORATE CITY. AND OF COURSE WE HAVE TO PRESERVE OUR HISTORIC BUILDINGS. OF COURSE WE SHOULDN'T HAVE MORE THAN 50 PEOPLE SIGN.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. [APPLAUSE]

>> CITY CLERK: THAT'S ALL. THAT'S THE LAST SPEAKER.

>> MAYOR ISHII: OKAY, I PROMISED COUNCILMEMBER HUMBERT I WOULD LET HIM GO FIRST, GO AHEAD.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO SAY I REALLY LISTENED CAREFULLY TO THE PUBLIC COMMENTS MADE HERE TONIGHT. A LOT OF THEM WERE VERY THOUGHTFUL. I WANT TO THANK COUNCILMEMBER KESARWANI FOR BRINGING FORWARD THIS OVERDUE REFORM AND FOR ALLOWING ME TO BE A CO-SPONSOR ON THE PROPOSAL. IN PAST COMMENTS WE HAVE ADJUDICATED, IN PAST INSTANCES WHERE WE ADJUDICATED INDIVIDUAL LANDMARK APPLICATIONS I EXPRESSED MY POSITION THAT IT'S IMPORTANT FOR US TO KEEP THE ULTIMATE PUBLIC PURPOSE OF LANDMARK PRESERVATION EFFORTS IN MIND AS WE CONSIDER POTENTIAL LANDMARKS AND THAT ULTIMATE PUBLIC PURPOSE IS TO BENEFIT THE PEOPLE OF BERKELEY. RECEIVING THAT ULTIMATE PURPOSE ALSO DEMANDS THAT WE REEVALUATE OUR LANDMARKING PROCEDURES FROM TIME TO TIME. WHEN THE NEGATIVE IMPACTS OF OUR PRESERVATION EFFORTS START TO OUTWEIGH THE POSITIVE IMPACTS IT'S TIME TO CONSIDER REFORM. I FEEL WE HAVE BEEN SEEING THAT WITH MORE LANDMARKS FOR THE

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SPECIFIC PURPOSE OF BLOCKING NEW HOUSING. SOME LANDMARK APPLICATIONS DON'T SEEM TO FULLY MEET EVEN THE FAIRLY LIBERAL CRITERIA ESTABLISHED BY OUR ORDINANCE. THIS ALSO TAKE UP TIME OF STAFF AND PRESERVATION COMMISSION AS WELL. I THEREFORE AGREE WITH COUNCILMEMBER KESARWANI THAT WE NEED TO RAISE THE BAR FOR INITIATION OF A LANDMARK. I ALSO THINK WE OUGHT TO PROBABLY SEND BOTH THE KESARWANI ITEM AND THE TREGUB ITEM TO THE CITY MANAGER AND CITY ATTORNEY. SO I WOULD SEND THEM BOTH. I WANT TO SAY WHEN WE ESTABLISH A LANDMARK THAT SHOULD BE AN EXPRESSION OF BROAD COMMUNITY, WHAT CONTRIBUTES TO THE COMMUNITY. WHEN A SMALL AND SELF SELECTED GROUP OF PEOPLE ARE ABLE TO REPEATEDLY INITIATE LANDMARKS WITH MINIMAL EFFORT AND COMMUNITY SUPPORT OUR LANDMARKS PROCEDURES ARE NO LONGER EFFECTIVELY SERVING THAT BROAD PUBLIC INTEREST. AND THERE'S ROOM TO TINKER WITH A NUMBER OF SIGNATURES. BUT I DO THINK THAT ONE CRITICAL ELEMENT IS THE NUMBER OF SIGNATURES OUGHT TO VARY DEPENDING ON WHETHER THE OWNER CONSENTS TO THE LANDMARKING. BECAUSE WE HAVE SEEN AT LEAST ONE SIGNIFICANT CASE OF ABUSE WHERE THE NEIGHBORS ATTEMPTED TO OVERRIDE THE OWNER'S LEGITIMATE CONCERNS. SO AGAIN THANK YOU. I APPRECIATE BEING INVITED TO BE A CO-SPONSOR AND I LOOK FORWARD TO MOVING THIS AND THE TREGUB ITEM AS A REFERRALS TO THE CITY MANAGER AND CITY ATTORNEY. THANKS.

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>> MAYOR ISHII: POINT OF CLARIFICATION. WHAT WOULD IT LOOK LIKE IF WE WERE TO SEND BOTH. BECAUSE I JUST WANT TO MAKE SURE WE ARE UNDERSTANDING HOW YOU ARE BOTH IMAGINING HOW THAT WOULD LOOK.
>> R. KESARWANI: YES, THANK YOU, MADAM MAYOR. IT WAS MY INTENTION, I DON'T KNOW IF COUNCILMEMBER HUMBERT SAID HE WOULD MAKE THE MOTION OR SUPPORT SUCH A MOTION. LET'S CLARIFY, THE WAY I BELIEVE IT WORKS. SO THE CONCEPT THAT WE HAVE PUT FORWARD IN THE ITEM THAT I AUTHORED IS THE IDEA OF INCREASING THE THRESHOLD TO 200 AND HAVING THE PROPERTY OWNER SIGN. AND BARRING THE PROPERTY OWNER'S SIGNATURE REQUIRING A GREATER THRESHOLD. WE SAID 400 BUT THAT COULD EASILY BE AMENDED UPON RETURN. IN REFERRING THIS ITEM, I THINK WHAT WE ARE SAYING WE WANT TO CONSIDER THAT CONCEPT OF A DIFFERENTIATION BETWEEN WHETHER THE OWNER SIGNS OR NOT. AS YOU CAN SEE, THESE ARE MINIMAL EDITS TO THE ORDINANCE. JUST TWO PLACES THIS WOULD HAPPEN. AND I THINK WHAT COUNCILMEMBER TREGUB HAS BROUGHT UP WITH ISOLATING FOR THOSE SB 330 APPLICATIONS AND PUTTING IN A FIVE-YEAR FREEZE IS ALSO WORTHY OF CONSIDERATION. AND I THINK WHAT COUNCILMEMBER TREGUB IS ALSO PROPOSING IS THE ALTERNATIVE, YOU JUST SAY A FLAT 200. I THINK WE JUST WANT TO REFER BOTH CONCEPTS TO STAFF. I'M COMFORTABLE WITH THAT AND ALLOW THEM TO PRESENT ANY FURTHER CONSIDERATIONS WE HAVEN'T THOUGHT OF. I KNOW YOU ALREADY TALKED

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ABOUT THE ADMINISTRATIVE PROCESS FOR VERIFYING THE SIGNATURES. MY UNDERSTANDING IS THERE MAY -- I APPRECIATE THAT THE CITY ATTORNEY SAID SHE DIDN'T SEE ANY MAJOR LEGAL ISSUES. I DON'T THINK THERE ARE MAJOR LEGAL ISSUES BUT WE WORDED IT AS A REFERRAL BECAUSE THERE COULD BE POTENTIAL CEQA ISSUES. AND OBVIOUSLY WITH THE INTRODUCTION OF THE SB 330 FIVE-YEAR FREEZE JUST WANT TO TAKE A LOOK AT THAT. BOTH IDEAS WOULD GO TO STAFF. AND ULTIMATELY, THE COUNCIL WOULD HAVE TO DECIDE BETWEEN THE TWO OR SOME HYBRID WHEN THIS RETURNS. DOES THAT ANSWER THE QUESTION, MADAM MAYOR?

>> MAYOR ISHII: YES, THANK YOU. I GUESS I WANTED TO MAKE SURE THAT IF WE SENT IT OVER, I WASN'T CLEAR ABOUT THE NUMBER SINCE IT DOESN'T SOUND LIKE WHAT NUMBERS WE ARE USING. IF THEY WOULD MAKE RECOMMENDATIONS ON NUMBERS AS WELL.

>> CITY MANAGER BUDDENHAGEN: I THINK WE WOULD JUST BRING BACK THE OPTIONS YOU PRESENTED AND YOU MAKE THAT POLICY CHOICE.

>> MAYOR ISHII: I JUST WANTED TO MAKE SURE. ALL RIGHT, MOVING FORWARD ON OUR QUEUE, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU. SO WITH THAT I WOULD LIKE TO MOTION TO REFER SUPPLEMENTALS 1 AND 2 TO THE CITY MANAGER AND THE CITY ATTORNEY. THAT'S MY MOTION.

>> M. HUMBERT: SECOND.

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>> R. KESARWANI: THANK YOU.

>> MAYOR ISHII: OKAY. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU. I WAS NOT PREPARED TO SPEAK. PLEASE BE PATIENT WITH ME. JUST TO RESPOND TO A COUPLE THINGS I'M NOT SURE WHAT THIS ITEM HAS TO DO WITH THE MIDDLE HOUSING ORDINANCE OTHER THAN THE SAME PEOPLE WHO DON'T LIKE APARTMENTS DON'T LIKE MIDDLE HOUSING AND DON'T LIKE HOUSING OR PEOPLE IN THE NEIGHBORHOODS. TO WHOEVER SPOKE ABOUT BLACK NEIGHBORHOODS IN SOUTHWEST BERKELEY, I SPEND A LOT OF TIME IN THOSE NEIGHBORHOODS. THERE ARE A FEW THINGS I COULD SAY ABOUT THOSE NEIGHBORHOODS. ONE OF WHICH IS THE NEIGHBORHOOD PRESERVATION ORDINANCE DIDN'T REALLY INCREASE THE BLACK POPULATION. ANOTHER THING I COULD SAY IS THAT WE ARE FULLY CAPABLE OF SPEAKING FOR OURSELVES AND ARTICULATING WHAT WE WANT TO SEE, ESPECIALLY WHEN IT COMES TO OUR PROPERTIES. THE IDEA THAT SOMEONE COULD HAVE THEIR HOMELAND MARKED WITHOUT THEIR CONSENT IS, TO ME, RIDICULOUS. AND HERE'S WHY. WHEN MY FAMILY MOVED HERE IN THE 60'S, IT WASN'T BECAUSE THEY WERE ENAMORED WHAT WAS HAPPENING IN 1906 OR THE 1800'S. THEY CAME BECAUSE THEY WERE FOLLOWING THE WAR AND GETTING JOBS. THEY WERE FINDING HOMES IN THE FEW PLACES THEY WERE ALLOWED TO LIVE. SO THE IDEA, IF MY GRANDMOTHER CHOSE TO SUBDIVIDE HER HOUSE, OR ADD AN ADDITIONAL FEATURE TO IT AND THERE JUST SO HAPPENED TO BE

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SOME KIND OF STRUCTURE THAT A SMALL GROUP OF PEOPLE THOUGHT WAS MERITORIOUS, SHE WOULD HAVE HER RIGHTS IMPEDED AFTER CENTURIES OF MY FAMILY ENDURING THAT. TO ME, IS SO FAR AFOUL OF WHO WE ARE AS A CITY AND WHAT WE STAND FOR. AND IN CLOSING, YEAH, I WOULD SUPPORT 400 SIGNATURES FOR THE PROPERTIES WHERE THE OWNER DOESN'T WANT IT LANDMARKED. I WOULD SUPPORT 600. AND I'LL SAY IN CLOSING. IF BERKELEY HAD BEEN FROZEN IN AMBER WHEN EVERYONE ELSE GOT HERE, I DON'T THINK ANYTHING THAT ANY OF YOU OR ANY OF THE FOLKS WHO MOVED HERE, ANY OF THAT, THAT YOU FOUND APPEALING, I DOUBT WOULD HAVE BEEN CONCERNED IF BERKELEY WAS FROZEN IN AMBER AT THE TIME YOU GOT HERE. THANK YOU.

>> MAYOR ISHII: THANK YOU, I WILL GO TO COUNCILMEMBER BARTLETT WHO IS ONLINE AND COME BACK HERE.

>> B. BARTLETT: THANK YOU, MADAM MAYOR. AND I GUESS TO SORT OF ENDORSE AND BUILD UPON COUNCILMEMBER TAPLIN'S COMMENTS, YOU KNOW, THE LAND OWNERSHIP IS WEALTH IN AMERICA AND THE WORLD. IT'S THE KEY TO WEALTH. FAR BE IT FOR ANY OF US TO PREVENT ANYONE FROM ACTUALIZING THEIR FAMILY'S PROSPERITY. THEIR ONE SHOT AT ACTUALIZING THEMSELVES FINANCIALLY. AND I HATE TO EVEN BRING THIS UP BECAUSE, I REALLY WOULD LIKE THE LANDMARKS PRESERVATION COMMITTEE, THE LANDMARKS PEOPLE, THE LANDMARK PROCESS, THE LANDMARK PROCESS AND LANDMARK DOCTRINE TO MOVE AWAY

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FROM THE CONCEPT OF UTILIZING LANDMARKING TO IMPEDE ECONOMIC GROWTH, TO IMPEDE HOUSING, TO IMPEDE WHAT YOU SEE AS AN AFFRONT TO WHAT THE CITY IS. TO STOP MISSING MIDDLE, ET CETERA. IT REALLY SHOULD BE A CULTURAL THING. IT REALLY SHOULD BE A CELEBRATION OF CULTURE. LIKE YOU HAPPEN TO KNOW THIS PLACE OVER HERE WHERE THIS AMAZING THING HAPPENED IN 1920 THAT PRODUCED SOMETHING AMAZING FOR THE WORLD. AND BRING THAT STORY OUT. THAT IS A TRUE USE OF YOUR ENERGIES AND POWERS AND I THINK YOU LOSE YOUR WAY WHEN YOU ARE TRYING TO PREVENT MISSING MIDDLE OR PREVENT HOUSING PRODUCTION. IT'S JUST NOT APPROPRIATE.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I WANTED TO SPEAK ON SOMETHING THAT I'VE HEARD BROUGHT UP A LOT. I THINK IT'S IMPORTANT TO TALK ABOUT, PEOPLE BRINGING THE "UGLY CORPORATE BUILDINGS GOING UP IN BERKELEY". THOSE UGLY BUILDINGS ARE ACTUALLY PEOPLE'S HOMES AND PEOPLE LIVE THERE. PEOPLE OF ALL INCOME LEVELS. PEOPLE DISLIKING THE ARCHITECTURAL STYLE OF ANY BUILDING IS FINE, THAT'S ONE THING. I THINK IT KIND OF DEPENDS ON THE NEW BUILDING. BUT I WANT TO POINT OUT WHEN YOU SAY THAT YOU ARE SPEAKING POORLY ON SOMEONE'S HOME AND LIVELIHOOD. WE TALK ABOUT TENANTS HOMES AS FUNDAMENTALLY DIFFERENT FROM HOMEOWNER'S HOMES AND I THINK THAT

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IS REALLY DISGUSTING AND IT REALLY COMES OUT IN SOME OF THESE CONVERSATIONS. ANYWAY, I WANT TO EMPHASIZE THAT ALSO THE LANDMARKS PRESERVATION COMMISSION, AT LEAST IN THE PAST COUPLE YEARS HAS SHIFTED POLITICALLY. AND THEY ARE ALSO INTERESTED, AT LEAST A GROUP OF THEM ARE INTERESTED IN THIS KIND OF REFORM AND HAVE BEEN WORKING ON IT ALSO. ANYWAY, I THINK THESE CHANGES ARE IMPORTANT AND I SUPPORT INCREASING THE SIGNATURE REQUIREMENT AND CONSIDER THE RESTRICTION ON SB 330 HOMES. THANKS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. I WILL BE BRIEF. THANKS TO COUNCILMEMBER KESARWANI FOR BRINGING THIS FORWARD AND ALLOWING ME TO CO-SPONSOR. AND FOR COUNCILMEMBER TREGUB FOR HIS VERY THOUGHTFUL SUPP 2. I SUPPORT MOVING THE PROCESS FORWARD AND KEEPING THE CONVERSATION GOING. I WOULD SAY A PIECE OF THIS THAT COUNCILMEMBER KESARWANI BROUGHT UP, I THINK DARRELL OWENS MENTIONED THIS IN PUBLIC COMMENT AND OTHER PEOPLE HAVE NOTED. I, TOO, ESPECIALLY AS WE ARE TALKING ABOUT MORE REZONING ON SAN PABLO AVE AND THE CORRIDORS AND THINKING ABOUT SOME OF THESE CHANGES, THIS DOES FEEL LIKE THE TIME TO LAUNCH THIS HISTORICAL SURVEY TO MAKE SURE WE ARE BEING STRATEGIC AND SMART ABOUT THOSE LOCATIONS THAT MIGHT BE WORTHY OF HISTORIC PRESERVATION. BUT LET'S DO IT IN A STRATEGIC WAY. LET'S DO IT AS A COMMUNITY. AND

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LOOKING MORE PROACTIVELY THAN SORT OF REACTING ONE AT A TIME TO INDIVIDUAL PROPERTIES BECAUSE OF THE POTENTIAL FOR DEVELOPMENT THAT MIGHT BE HAPPENING. I KNOW WE HAVE BUDGET CONSTRAINTS. BUT I WOULD REALLY SUPPORT TRYING TO FIND SOME MONEY SOON IN THE BUDGET CYCLE TO SUPPORT THAT KIND OF STUDY, WHICH WOULD ALLOW US AGAIN TO BE MORE PROACTIVE AND THOUGHTFUL AND STRATEGIC ABOUT THOSE RESOURCES WE DO WANT TO PRESERVE WHILE ALLOWING US TO CONTINUE BUILDING HOUSING IN AS MANY PLACES AS WE CAN THAT MAKES SENSE FOR US AS A CITY. SO THANKS AGAIN FOR AUTHORING THIS AND I WILL BE SUPPORTING IT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: YES. I'M GOING TO INTRODUCE A NEW ARGUMENT. ACTUALLY I DON'T THINK IT'S NEW, I THINK IT'S CAPTURED IN COUNCILMEMBER TREGUB'S SUPPLEMENT. I ACTUALLY DO NOT BELIEVE WE SHOULD DIFFERENTIATE BETWEEN OWNER-INITIATED AND NOT. I THINK THAT'S THE WAY TO GO. BECAUSE IF YOU KIND OF THINK ABOUT THE PHILOSOPHY, WHAT IS THE PURPOSE OF A LANDMARK DESIGNATION? IT'S LIKE, IT'S THE COMMUNITY RECOGNIZING A COMMUNITY VALUE IN A PROPERTY. IT'S SAYING I KNOW THIS BELONGS TO SOMEBODY, BUT IT KIND OF BELONGS TO ALL OF US SO WE WILL RESTRICT WHAT YOU CAN DO WITH IT. IF YOU THINK ABOUT IT AS THE COMMUNITY IDENTIFYING A COMMUNITY VALUE, I ACTUALLY DON'T THINK THE OWNER SHOULD GET

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MORE OF A VOTE THAN EVERYONE ELSE. SO THAT'S, I LIKED THE FLATTENING OF THE OWNER/NOT OWNER DISTINCTION. HOWEVER, I REALLY APPRECIATE COUNCILMEMBER TAPLIN'S COMMENTS. I THINK HE PAINTED A VERY CLEAR PICTURE OF HOW THIS COULD GO WRONG. I ALSO, AT THE SAME TIME, I DO COMPLETELY AGREE WE NEED TO RAISE THE SIGNATURE THRESHOLD AND PERHAPS EVEN MORE SO. IF A PROPERTY REALLY IS TRULY SUCH A VALUE TO THE COMMUNITY WE ARE GOING TO IMPINGE THE PROPERTY RIGHTS OF THE OWNER, IT HAS TO BE REALLY, REALLY REAL. IT HAS TO BE REALLY, REALLY STRONGLY FELT BY THE COMMUNITY AND THAT'S REPRESENTED THROUGH SIGNATURES. I WOULD PROPOSE -- I GUESS I'M FINE WITH THE MOTION, I THINK IT'S JUST, WE ARE KIND OF KICKING THE CAN DOWN THE ROAD A LITTLE BIT ON TERMS OF NUMBERS. THAT'S FINE, WE DON'T HAVE TO DECIDE THIS NOW, I AM JUST SAYING WHAT I THINK. IF I WAS WRITING IT, I WOULD SAY SOMETHING LIKE 300 IN ALL CASES. BECAUSE THAT IS RAISING IT BUT FLATTENING THE OWNER NOT AN OWNER ISSUE. THAT'S WHAT I WOULD LIKE TO SEE. BUT I WILL SUPPORT THE MOTION.

>> MAYOR ISHII: THANK YOU. I REALLY WANT TO APPRECIATE THE REMOVAL OF THE RADIUS. WE HAVEN'T TALKED ABOUT THAT YET. THAT MAKES SENSE. SOMEONE BROUGHT UP A COMMENT AT COUNCIL A WHILE BACK, I THINK IT WAS HERE, ABOUT APARTMENT BUILDINGS. IT'S HARD TO ACCESS THEM. I THINK THAT MAKES SENSE AND I APPRECIATE YOU

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TAKING THAT FEEDBACK AND THINKING ABOUT IT. AND I REALLY WANT TO APPRECIATE COUNCILMEMBER BARTLETT'S COMMENTS ABOUT WHAT GETS LANDMARKED AS HISTORIC. I THINK THAT'S REALLY IMPORTANT TO BRING THAT UP, CONSIDERING WE HAVE A VERY DIVERSE COMMUNITY AND IT'S OFTEN TIMES COMMUNITIES OF COLOR THAT HAVE THEIR HISTORIES ERASED, SO I REALLY APPRECIATE THAT. AND THANK YOU ALSO TO COUNCILMEMBER TAPLIN FOR YOUR COMMENTS IN THAT VEIN. I THINK IT'S IMPOSSIBLE TO DENY SOME LANDMARKS INITIATED WERE AN EFFORT TO PREVENT SOME HOUSING FROM BEING BUILT. THAT'S NOT ALL CASES BUT I THINK THAT HAS HAPPENED. I APPRECIATE COUNCILMEMBER'S LUNAPARRA'S COMMENTS, THESE ARE PEOPLE'S HOMES. WHEN WE SAY THESE BUILDINGS ARE UGLY, WE ARE SAYING YOUR HOME IS UGLY TO PEOPLE. I DO SUPPORT INCREASING THE SIGNATURES, I THINK 50 IS WAY TOO LOW. AND ALSO KNOWING WE AREN'T SUPER INTENSE ABOUT HOW WE AUDIT THOSE SIGNATURES, IT WAS INTERESTING TO HEAR. I DO WANT TO SAY, AND TO YOUR COMMENTS COUNCILMEMBER O'KEEFE, SOMETHING THAT CAME UP FOR ME, LITERALLY AS YOU WERE SAYING IT, I SEE IT LESS AS THERE'S SORT OF A DIFFERENCE BETWEEN -- I GUESS IN ADDRESSING THE DIFFERENCE BETWEEN WHETHER IT'S INITIATED BY THE HOMEOWNER OR SOMEBODY ELSE, A MEMBER OF THE PUBLIC. I THINK THE WAY I'M FRAMING IT IN MY MIND, IT'S EASIER TO LANDMARK SOMETHING AS THE HOMEOWNER. SO KIND OF FLIPPING THE WAY YOU ARE LOOKING AT

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IT A LITTLE BIT. THAT WE ARE MAKING IT EASIER TO THE HOMEOWNER, AS OPPOSED TO WHAT THE HIGHER THRESHOLD WOULD BE. DOES THAT MAKE SENSE? NO? OKAY, THAT'S ALL RIGHT. ALL RIGHT. IT'S GETTING LATE. LET'S JUST WRAP THIS UP. THANK YOU ALL, I APPRECIATE IT. SO WE HAVE A MOTION ON THE FLOOR.

>> CITY CLERK: WHO WAS THE SECONDER?

>> MAYOR ISHII: I THINK COUNCILMEMBER HUMBERT WAS.

>> CITY CLERK: SO THE MOTION IS TO REFER BOTH THE PROPOSAL FROM COUNCILMEMBER KESARWANI IN SUPP 1 AND PROPOSAL FROM COUNCILMEMBER TREGUB IN SUPP 2 TO THE CITY MANAGER AND THE CITY ATTORNEY. ON THE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT? HE'S NOT ON ANYMORE? COUNCILMEMBER BARTLETT, ON THE MOTION?

>> B. BARTLETT: SORRY, I HAD TO RUN AND CHECK ON HER. COULD YOU REPEAT THE MOTION?

>> CITY CLERK: THE MOTION IS TO REFER BOTH THE PROPOSAL FROM COUNCILMEMBER KESARWANI AND THE PROPOSAL FROM COUNCILMEMBER TREGUB TO THE CITY MANAGER AND CITY ATTORNEY.

>> B. BARTLETT: YES.

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>> CITY CLERK: YES. TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION PASSES.

>> MAYOR ISHII: THANK YOU ALL. THANK YOU VERY MUCH. MOVING ON FOR PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. DO WE HAVE ANY PUBLIC COMMENT?

>> I JUST WANT TO BUILD A LITTLE BIT ON ONE OF THE ITEMS EARLIER.

>> MAYOR ISHII: WAIT, SORRY. THIS JUST FOR ITEMS NOT ON THE AGENDA.

>> RIGHT, NOT ON THE AGENDA. I WANTED TO SAY THAT LIVING IN THE FLATLANDS, I HAVE NOTICED IN PAST COUPLE YEARS A HIGH INCREASE

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IN THE NUMBER OF TREES BEING CUT DOWN. AND MY NEIGHBORS AND OTHER RESIDENTS TELL ME THEIR INSURANCE COMPANIES ARE DEMANDING THAT THEY CUT DOWN TREES TO CLEAR PROPERTY. AND I'VE HEARD PEOPLE PUT UP SIGNS SAYING I'M REALLY SORRY I HAD TO CUT DOWN MY TREE, I WAS ORDERED TO. WHEN YOU ARE DEALING WITH ONE SIDE OF THE COIN IS FIRE IN THE HILLS BUT THE OTHER SIDE IS ENVIRONMENT AND GREENERY IN THE FLATLANDS AND YOU SHOULD BE PAYING ATTENTION TO THIS ISSUE IN THE LONG TERM. BECAUSE BERKELEY FOUGHT LONG AND HARD TO GET STREET TREES AND PARKS AND EVERYTHING IN THE FLATLANDS AND THAT IS SORT OF ALL IN QUESTION NOW BECAUSE PRIVATE PARTIES AND INSURANCE COMPANIES IN GENERAL ARE SAYING, AND PG&E TOO IS SAYING IN THE FLATLANDS GET RID OF TREES.

>> MAYOR ISHII: THANK YOU.

>> KARL HANSEN, 45 YEARS IN BERKELEY. I WANTED TO DISCUSS THE UNIVERSITY AVENUE WEST BUS STOP'S PROJECT, WHICH IS HAPPENING AT BONE YARD UNIVERSITY ABOUT A BLOCK AWAY, I HOPE YOU WILL TAKE A LOOK AT IT PERSONALLY SO YOU KNOW WHAT I'M TALKING ABOUT. WHAT THEY HAVE DONE IS REMOVE SIX PARKING LOTS, PARKING SPOTS AND PUT CONCRETE ON LONG STRIP THERE WHERE THERE WAS ROOM TO PULL OVER AND LET PEOPLE OUT OR OTHER THINGS. SO THERE'S ONLY TWO LANES OF TRAFFIC NOW. AND AS I UNDERSTAND IT, THE BUS STOP WILL NOW BE STOPPING IN ONE OF THE TWO LANES OF TRAFFIC. WHICH, BEFORE THEY

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COULD PULL OVER INTO THE SPACES, THERE'S ACTUALLY, THE BUS STOP HAD NO PARKING THERE SO YOU COULD PULL OVER. THAT'S BEEN ELIMINATED. AND SIX PARKING SPACES HAVE BEEN ELIMINATED.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. FEEL FREE, IF YOU'VE GOT OTHER THOUGHTS FEEL FREE TO SEND THEM TO US.

>> OKAY.

>> MAYOR ISHII: THANK YOU.

>> SUNDAY MY NEIGHBOR, I WAS TALKING TO HER HUSBAND AND THE CALL CAME IN FROM HER THAT SHE HAD JUST HAD A CAR ACCIDENT. SO THIS IS APPROACHING SAN PABLO FROM DWIGHT WAY. AND SHE, A BIG SEMI WAS MAKING A LEFT TURN. AND IT MOVED HER OVER. SHE HAD TO SWERVE. BECAUSE IT'S THE BIGGEST TRUCK SHE HAD EVER SEEN. SHE HAD TO SWERVE TO THE RIGHT TO GET OUT OF THE WAY AND SHE HIT A CAR. WHICH, THEY DIDN'T, THERE'S NO POLICE REPORT, I JUST TOLD HER SHE SHOULD REPORT IT TO THE CITY COUNCIL BECAUSE HER CAR WAS DAMAGED BUT THE OTHER CAR WAS JUST SCRAPED SO THERE'S NO POLICE REPORT. SHE JUST REPORTED TO INSURANCE. BUT I TOLD HER TO WRITE TO YOU, YOU SHOULD KNOW. IT WAS IN THE EARLY MORNING SO THERE WAS NO PLACE FOR HER TO GO, IT BACKED UP TRAFFIC.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: ONE SPEAKER ONLINE. TWO SPEAKERS ONLINE. FIRST IS KELLY HAMMARGREN.

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>> I AGREE WITH THE PEOPLE WHO COMMENTED EARLIER ABOUT SAN PABLO AND TAKING UP THAT PROJECT AT 11:00 AT NIGHT. I THINK THAT THEY REALLY DO DESERVE A WORK SESSION THAT'S EARLIER IN THE DAY. I'M ALSO REALLY KIND OF CONCERNED WITH THE ATTITUDE THAT I HEAR FROM COUNCIL ABOUT DESCRIPTIONS ABOUT HOUSING. SHOULD NOT BE THAT BECAUSE SOMEONE IS LOW INCOME THEY NEED TO LIVE IN UNATTRACTIVE, POORLY-DESIGNED PROJECTS. GOOD ARCHITECTS CAN DESIGN GREAT LIVABLE ATTRACTIVE -- THEY DO IT IN OTHER CITIES, THEY DO IT IN OAKLAND AND ALL OVER THE WORLD. WHY CAN'T WE HAVE ATTRACTIVE MULTI-UNIT AFFORDABLE HOUSING HERE IN BERKELEY? SO THAT'S MY COMMENT.

>> MAYOR ISHII: OKAY, THANKS, KELLY.

>> CITY CLERK: OKAY. THE FINAL COMMENTER IS THEO GORDON.

>> MIGHT AS WELL GIVE GENERAL COMMENT. I ACTUALLY WANT TO ECHO WHAT PEOPLE WERE SAYING ABOUT SAN PABLO, I THINK IT IS UNFAIR THEY WERE GIVEN LESS TREATMENT THAN THE CORRIDORS. I THINK THIS OVERALL CORRIDOR PROJECT IS BEING A LITTLE TOO MYOPIC, AND IT WOULD BE BETTER IF WE DID ONE BIG UPZONING FOR CORRIDOR AND TREATED THEM THE SAME.

>> MAYOR ISHII: THANKS, THEO.

>> CITY CLERK: AND THAT IS IT.

>> MAYOR ISHII: OKAY, THANK YOU ALL VERY MUCH FOR YOUR PUBLIC

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COMMENT. IS THERE A MOTION TO ADJOURN?

>> SO MOVED.

>> MAYOR ISHII: OKAY. EXCUSE ME, FOLKS? WE ARE STILL --

>> CITY CLERK: IS THERE A SECOND?

>> MAYOR ISHII: DOING THE CITY'S BUSINESS.

>> CITY CLERK: SECOND BY O'KEEFE.

>> MAYOR ISHII: OKAY, THERE'S A SECOND FROM COUNCILMEMBER O'KEEFE. COULD YOU TAKE THE ROLL PLEASE CLERK?

>> CITY CLERK: TO ADJOURN, KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES .

>>> BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

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>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: WE ARE ADJOURNED.

>> MAYOR ISHII: WE ARE ADJOURNED. THANK YOU ALL. [END 9:33 P.M.

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